

THE FIFTEEN CELLS

BY
STUART MARTIN



HARPER & BROTHERS *Publishers*
New York *and* London

1928

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CELLS ***

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THE FIFTEEN CELLS

THE VISITOR

It was all a matter of routine.

Precisely at nine o'clock in the morning the Governor entered the prison, just as he had entered for years.

The warder who met him at the gates saluted smartly and said, "All correct, sir," just as he had said it for years.

Every warder who was stationed between the gates and the Governor's office saluted and said, "All correct, sir," just as they had said it for years.

The Deputy-Governor rose from his chair as the Governor entered the office, and said, "All correct, sir. Good morning, sir."

The correspondence was looked over. The Governor dictated a few replies to his clerk; routine replies. The stewards received their portion of the mail dealing with the accounts and the cookhouse, laundry, etc. The chief warder reported that the adjudication room was ready. The Governor and the Deputy-Governor went in to adjudicate.

The newcomers to the prison were attended to first. They had been brought in the previous day, had been bathed, medically examined, and given prison clothes. There were fourteen arrivals. Next came those who were due to return to the world shortly. Their papers were put in order.

The Governor went to his lunch.

In the afternoon he attended to his less important correspondence. He adjudicated on the applications for petitions, wherein prisoners desired to tell the Home Secretary that their sentences were too long or complained of other matters. Every prisoner has a right to petition. Very few have their petitions granted.

The Governor went to tea.

His work was not ended. He returned to his office and signed a request to the local coroner to be good enough to hold an inquest the following day on

the body of a man who was at that moment perfectly healthy; but he was in the condemned cell.

The Governor then took a walk round the grounds. It was a dull, heavy evening. Fog had been coming up all day. In a corner of the prison precincts two warders had almost finished digging a grave. The Governor wondered how the condemned man would face his execution; and came to the conclusion that he would probably do as practically all condemned men did—take his ounce or so of brandy, toss it off, and wipe his lips with his cuff. The executioner would be at the door and would enter the cell, while the chaplain, the assistants, the officials, would look on. The executioner would pretend to be cheerful. Most of them affect this frightful cordiality. He would say persuasively: "Hullo, old man. Put your hands behind your back, if you don't mind. That's the idea." By the time the executioner ceased to speak the condemned man would be pinioned. The chaplain would lead the procession, reading aloud the Burial Service (a kindness granted to ordinary people when they can no longer hear it). The shed, ten yards off, would be reached. A belt would be strapped round the prisoner's ankles, the executioner would put a white cap over the man's head and adjust the noose; then, stepping back quickly from the platform, he would pull the lever. The trap-door would open, its sides thudding against the sides of the pit with a crash that would be heard throughout the prison. The law would be satisfied; at any rate, it would be fulfilled. Everything was routine.

The Governor had still one call to make. He had to go to the condemned cell.

He passed into the prison, walked along the corridors, which were steam-heated and scrupulously clean. He stopped before the condemned cell at the door of which a warder was on guard.

"All correct, sir," said the warder, saluting.

The Governor looked into the cell through the trap in the door. The prisoner was enjoying a smoke. The Governor closed the trap.

"Gives you no trouble?" he asked in a low tone.

"None at all, sir."

"Chaplain been here?"

"Yes, sir."

"There is a visitor coming to see him to-night. Report him to my deputy. Don't bother me."

The warder saluted. The Governor went back to his room. His rounds were finished. He would not be disturbed. The friends of condemned men always wanted to see the Governor just before the executions—as if he could do anything! The Governor drew a chair close to the fire, lit a cigar, and picked up a newspaper.

His room was a large apartment. There were no curtains on the windows, but the glass was of the frosted, corrugated kind so that nobody could see inside, even if the position of the room had made it possible otherwise; which it did not. The Governor had attended many executions in his prison and had seen men die on the scaffold. These ceremonies did not affect him, never made him turn a hair. Like many other Governors he had been an Army officer before he became a prison official. He had no interest in the present case. The crime had been cold-blooded. The Governor had asked his deputy to represent him at the final scene. Everything was in readiness to launch the criminal out of this world.

The Governor went to dinner.

The clock on the mantel-piece of his private room was just striking eight when he returned. He was going to write some private letters, and he had just lit another cigar when a knock sounded on the door. A warder appeared.

"That visitor is here, sir."

"Has he been to the condemned cell?"

"Yes, sir."

"Has he seen my deputy?"

"Yes, sir."

"Then why trouble me? I left instructions——"

"Yes, sir. But he insists on seeing you."

"Very well. Bring him up and then leave us. Do not trouble me again. I will show him out."

The warder departed, but was back in less than a minute. At his heels was the visitor who had come to see the condemned man. The warder closed the door on them and clumped along the corridor for good. The Governor raised his eyes from his desk where he had pretended to be busy.

"You wish to see me?"

"I do."

"I can't give you much time. The prison is already officially closed for the night——"

"That doesn't matter."

"You have already interviewed my deputy?"

"It's you I want to speak to."

"What can I do for you?"

Up to this point the routine had been strictly followed. At this point routine suddenly received a jolt that destroyed it and blew it to smithereens.

"You can just sit where you are, Governor. And don't attempt to move."

The Governor obeyed—he who was in the habit of being obeyed. He was facing the barrel of a small revolver which the visitor had thrust forward and was holding in his gloved hand. For a moment neither of the two men spoke. Neither of them was afraid. It was a meeting of two persons well drilled in the art of controlling emotions. The Governor examined his visitor. The visitor examined the Governor.

The Governor saw a man of medium height, dressed shabbily, but with a certain air of superiority. His face was furrowed, two lines running down, one on either side of his cheeks, from the nose past the corners of the mouth, to the chin. It was a prominent chin, and hiding under it was a duplicate one. The man's brow was broad and wide, his eyebrows shaggy and heavy. At the corners of his eyes were wrinkles telling of concentration and meditation. The eyes themselves were small, piercing, alert, with no trace of nervousness about them. They were a trifle too close together, however, and this gave them a touch of cunning. The general impression was that the face might have belonged to a student, a professor. On the other hand, it might have belonged to a criminal. Prison often moulds such

faces. It was a face at once interesting and common; pleasing and yet unattractive; arresting and still unremarkable. But the Governor knew that only an uncommon personality would have come into his room with a revolver levelled at him.

The stranger, on his part, studied the Governor minutely. He saw a tall man, nearly six feet high, head going bald on the top, military face, lean flanks, broad shoulders. In contrast to the intruder's face the Governor's had no superfluous flesh. His eyelids were heavy, especially at the corners where they almost over-lapped the eyes. The hands, which were spread out on the edge of the desk, were well shaped. They were hands that could hit hard. The wrists, which appeared under the cuffs, were well developed and strong. The fact that the Governor had gripped the desk as he swung round, and still gripped it when he saw the revolver, proved that he had disciplined himself to crises. A less disciplined man would have leaped to his feet; and would have been dead next moment. The visitor's revolver was equipped with a silencer.

"You can take your hands off the desk now, Governor," said the visitor. "Swing round so that you can sit at your ease. I don't want to kill you—yet."

The Governor swung round as directed, but out of the corner of his eye he saw the visitor step backwards to the door and turn the key in the lock. He put the key into his pocket and advanced until he was on the opposite side of the desk. He laid the revolver down.

Why did the Governor not leap up and over-power this visitor who menaced him? Because the Governor knew men. He knew from the way this individual handled his weapon that he was a master and that before he could raise his arm to sweep it from the desk the bullet would be fired. The Governor could read men. It was his business to read them. He was aware that he faced a man capable of extraordinary things, and of ordinary things too; but for the moment the extraordinary predominated.

The Governor took up the cigar he had laid on the ash-tray beside his chair and lit it leisurely.

"Will you kindly come to business?" he asked. "What is it that you want?"

"You have a man in the condemned cell?"

"I have."

"He is due to be hanged to-morrow morning?"

"At eight o'clock exactly."

"He must not be hanged."

"It is the law, and I am afraid that he will be."

"If he is hanged you will die quickly."

"I don't see how I can prevent it."

"You can sign this paper."

The stranger pulled a blue sheet of foolscap from his pocket and tossed it across the desk. The Governor glanced at it.

"You have procured this at the Home Office."

"I brought it from the Home Office specially for you."

"That means you stole it. Burglary of State documents."

"What does it matter? I mean you to sign it. It will constitute the completion of an official reprieve. You will notice that the Home Secretary's signature is there."

"Forgery."

"You may put it that way. I obtained his signature and traced it by using a piece of carbon paper. Over that tracing I used ink. You will be able to plead that the document has all the signs of genuineness."

"You mean that I have to act on this as an official reprieve?"

"That is what I am about to compel you to do."

The Governor stared at his visitor. The whole thing was preposterous; but it was possible. One point was obscure and presented a difficulty.

"Supposing the condemned man is freed on this paper, there are formalities to be gone through. The trick would be found out in the morning——"

"By that time he would be safe."

"I don't quite follow."

"It is simplicity itself. I suggest that you, in your official capacity, send for the prisoner to be brought to this room. Your warders would bring him."

"Well?"

"This would be quite in the usual course of procedure. When he arrives you would acquaint your officers with the arrival of the official reprieve. I should be here. It would not be untrue to say that I have come direct from the Home Office with it."

"And if I refused to do this?"

"Well, sir, you would die. I shoot straight. Do you care to see proof of my shooting?"

"It would be interesting to have such proof, but——"

"Please hold your cigar up above your head."

The Governor did so. The visitor raised his revolver with the swiftness of a flash of light, a sharp "ping" sounded, followed by a second similar sound. The ash of the cigar fell in a cloud on the Governor's knees.

"You see?" said the visitor quietly.

"Where did the bullet go?"

"Ah, you expected to hear the crash of it against the furniture, a sound that might have brought one of your warders—is it not so? If you will note the angle at which I fired you will see that the bullet went through the bottom right-hand corner of the window about six inches from the sash."

The Governor turned his head and saw that such was the case. A small, perfectly drilled hole had been cut in the glass.

"It was well gauged," said the Governor. "You can shoot. But still I insist that the shooting of myself would not help you personally, nor your friend the prisoner. My warders would fall on you. Ultimately you would be hanged."

"You are wrong. You would send two warders only for the prisoner. That is the usual number. There are still five rounds in this gun."

"It is usual for a Governor to acquaint a prisoner with his reprieve in the cell."

"We must depart from routine on this occasion."

The Governor considered while he gazed at the carpet. Presently he lifted his head.

"And if I accepted this as a genuine, official document?"

"The rest would be easy. The warders would be dismissed while you acquainted the prisoner with the lifting of the death sentence. I would do the few necessary acts that are required for the plan I have formed. The prisoner would be dressed in another suit of clothes——"

"Where would he get them?"

"I am wearing two suits now. He could have one. He and I are the same height."

"Oh, I see."

"We would go out by your window, after switching off the light. I have a length of stout cord around my waist. We would not be seen."

The visitor walked over to the window and pointed towards the glass.

"A heavy fog is coming up. It is fairly thick now. The weather prophets state in the evening papers that it is likely to last for some time. You, of course, would have to be considered. I assure you there would be no damage to your reputation."

"How so?"

"I have in my pocket a small phial of dope. A few drops in a glass of water, or in a whisky and soda, would put you to sleep for many hours. If you objected to that there is another way."

"What is it?"

"We could bind you to your chair and gag you. In either case you would be found helpless."

"That would be awkward."

"It would be better than being dead."

The Governor threw the stub of his cigar into the fire and pondered the situation for a little while.

"There is one point which you have overlooked," he said quietly, "though I hardly dare hope that it will appeal to you."

"What is it?"

"It is a simple one also. The prisoner who is to be executed to-morrow morning——"

"You mean who is sentenced to be executed to-morrow morning."

"If you put it that way you can do so. My point is that he does not deserve a reprieve. Do you understand the nature of his crime? It was a most repulsive one——"

"You mean that therefore you, as Governor of this prison, would naturally suspect that a reprieve would never be granted, and so would take all precautions, such as calling up the Home Secretary on the telephone?"

"Well, you must give me credit for taking measures to make sure——"

"I see. Then there is still another way out whereby you could not be accused of laxity."

"I shall be interested to hear it."

"It is this. You could send for him as I suggest, for the purpose of having a last talk with him. He has never repented of his act, according to the newspapers. Would not a Governor be acting within his province in giving a prisoner a chance of a final opportunity of repentance?"

"The chaplain has charge of prisoners' consciences."

"I was merely offering an alternative suggestion to save your reputation."

While this conversation had been taking place the Governor had been busy looking for an opening to defeat the plan of his visitor. He had not been discussing the most unusual situation merely to pass the time. He recognised that the man in front of him was no ordinary person, and that he was one who was determined as well as daring. All the time they had been speaking, the eyes of the visitor had been fixed on the Governor with the intentness of a cat watching a mouse. One false move, one attempt to reach the bell-push on the wall, and the revolver would have spoken. The Governor did not want to die. But he knew he would die if he met the proposal of his visitor with a blank refusal. Besides, it was not a Governor's

place, nor his duty, to die. It was his duty to hold a criminal once he had him. He recognised in his visitor a man who ought to be inside the prison. Already this man had committed acts sufficient to give him a long sentence.

There was no doubt that, up to a point, the visitor held the winning cards. His scheme had been planned with a thoroughness that defied criticism. But how was it that a visiting permit had been obtained by him, and how was it that he had dared the cast-iron rules of the gaol and had walked through them? These things puzzled the Governor. Discipline was part of the Governor's nature. His whole life had been lived under discipline, his entire nature was bound up in it. He also held strong views in regard to crime and criminals, views which were well known to his superiors and to the Commissioners. Yet he realised that this was a case which discipline and routine failed to handle. Something else had to be brought into play.

"Supposing," he said, as he crossed his legs and put his clasped hands behind his head, "that we take a little time to discuss this matter? I give you my word that I shall make no attempt to test the accuracy of your shooting abilities. I have observed that you know how to handle a gun. But the situation is unusual and is worth analysis. We have plenty of time to spare."

The visitor glanced at the clock on the mantel-piece.

"It is now 9:45," he said with a nod. "We have ten and a quarter hours."

"Have you a watch?" asked the Governor.

"No. But you have a clock."

The Governor smiled.

"That is so; and I was just about to wind it up for the night when you entered. Permit me to do so now."

The visitor did not object, and the Governor rose and wound up the clock, explaining as he did so that he wound it every night. They were beginning to understand each other. Each knew that he could trust the other's word.

The Governor sat down again in his chair, and the visitor took the chair on the opposite side of the desk. He placed his revolver within easy reach of his hand, then unbuttoned his overcoat.

"Would you care for a cigar, or a cigarette?" asked the Governor amiably. "And perhaps a whisky and soda?"

"A cigarette will do. I never touch spirits."

"Ah, then perhaps a plain soda?"

"Thank you."

The Governor opened a cupboard and provided a box of choice cigarettes and a siphon. These he placed on the desk, while the visitor's hand closed over his weapon. But there was no need for the movement. The Governor smiled. They resumed their former positions.

"The man who is in the condemned cell at this moment," began the Governor, "was caught after he had committed a callous crime of murder, the object of which was burglary. I need not go into details, since you doubtless know them. The newspapers were full of the case, which was tried at the Old Bailey before a wise judge and an intelligent jury. There was practically no defence. The prisoner, whose name is Floxton, was proved to be the culprit. He had been a music-hall artist before he became a criminal. He and another man, named Steve Jenkins, toured the halls as knock-about comedians. Jenkins always took the part of the gentleman in their turns. It is believed that the murderer was the less intelligent of the two and that his actions have for some time been dominated by Jenkins, a cleverer criminal, and an intellectual. The two took to fraud when they fell on bad times. They went to Chicago and became gunmen. Floxton had served more than one sentence. Jenkins was too clever to be caught. I would be glad to think that he was in prison with his companion. I have said he was an intellectual——"

"You see him before you," interrupted the visitor. "I appreciate your testimonial."

"Ah, as I suspected. The two suits of clothes you mentioned gave me the clue. Of course, these heavy eyebrows are not your own?"

"They are not."

"The make-up is clever. The permit to visit the prisoner—how did you obtain it?"

"It was made out on the application of a third party. That is all you need know."

"Impersonation? Really, my friend, you have broken the law in a great number of ways to carry out your scheme. I admit its bravery. But I see also another side to it. What will it profit you or your companion even if you save him from the gallows? You know I have firm theories on the question of crime. You would be hunted, every avenue of escape would be closed to you. This island would be merely a large prison. England would be your gaol."

"It would be big enough."

"But in the end it would be too small. You would make a mistake one day and your liberty, perhaps your life, would be forfeit."

"You think that a mistake is inevitable?"

"Decidedly so."

"I do not agree with you."

"I never expected that you would. But the fact remains. Every man in prison to-day is there because he made a mistake in tactics, in judgment, in action. Consider what you criminals are up against! To escape the law you must never make a mistake! Is that humanly possible?"

"I do not claim infallibility. Since every man in every walk of life must make mistakes, we may do so. But it is possible to recover. You have proof that I can defy your rules and regulations. I am here."

"It is true you are here. But is that any guarantee that you will not make a mistake?"

"I have made none so far. You are my prisoner."

"That is also true; and yet I am Governor of a prison full of men who have made mistakes. Indeed, so sure am I that all criminals must make a mistake somewhere, somehow, some time—the fatal mistake that places them in the cells—that I have arranged the floors of this prison in a sort of series of degrees. In the main block I have placed those whose mistakes are the mistakes of ignorant, brutal men. They are by far the great majority of

criminals. Their mistakes are blunt, coarse ones; I call them the Errors of the Illiterate. The ordinary police have run these men to earth."

"I have heard of your theories," said the visitor grimly. "You are a crank."

"In the right wing," went on the Governor, "are the men who have a higher intelligence. They are the blackmailers, the cruder kind of forgers, the confidence men. I call their tactical mistakes the Errors of the Intelligent. They were arrested by the detectives of the Criminal Investigation Department."

"I remember reading your evidence before a Select Committee," smiled the visitor. "You rather let yourself go on your theories. If I mistake not, your idea was that by keeping your prisoners in grades they kept to their own lines of crime?"

"Exactly, that was my theory. I have special accommodation for each grade. My third and highest in the scale are housed in the left wing. They are all men of highly developed mentality. But they all made their mistakes when they became criminals, and they were all caught. I call them the Intellectuals. The condemned cells are placed in a separate portion of the building, apart from these graded prisoners, because into the condemned cells go men of all these grades—illiterate, intelligent, intellectual. Murder, you see, is mostly an impulse. Spasmodic acts are not controlled by intelligence or intellect."

"That is your theory, but there are exceptions. What about premeditated murder—such as I contemplate if you refuse to do as I say?"

"You have entered the region of pathology now," replied the Governor. "Murder is degeneracy, and men who commit murder are always degenerates. For the moment they revert to the primitive. That reversion may be the result of a deliberate plan or the work of a moment."

"It does not matter much, does it?"

"In a way it does not—to the victim. But in a way it does—to the students of crime. If we can grade law-breakers we can see the operations of their minds, and so classify them. We can almost anticipate their acts. For these reasons I never allow my illiterate prisoners to mix with my intelligent ones, nor my intelligent ones to mix with my intellectual ones. At least I

contrive to separate them as much as possible. A prison, you must be aware, has three functions to perform."

"What are they?"

"The first is punitive. The criminal must be chastised."

"And the second?"

"The second is deterrent. The punishment must be a warning to others, as well as to the criminal himself."

"And the third?"

"The third is educational. We strive to cure evil propensities."

"How do these functions apply to hanging?"

"The first function automatically wipes out the second and the third so far as the defaulter is concerned; but it is held the others still operate with potential defaulters."

The visitor shrugged his shoulders, and a grim smile played round his lips.

"My presence here proves that you are wrong," he said. "If I wished to kill a man I would kill him. The satisfaction of having done so would out-weigh all other considerations. It is up to you. Have you decided whether you will hand over your prisoner—or die?"

"You mistake my meaning," said the Governor. "You may be the exception that proves the rule. Or you may not. I am not talking in the hope of help arriving. We shall not be disturbed. I dismissed the officer who brought you here, and the night staff are now in charge. They do not know you are with me. I often sleep on that settee in the corner.... Allow me to elaborate my meaning on the question of the miscalculations of criminals. I maintain that they all, ultimately, make a fatal error; and that error brings them to the cells. Some get short sentences, some get long ones, some walk to the scaffold. Did you notice, as you came along to this room, that you passed, in the middle block, a corridor which is barred off from the remainder of the prison?"

"I noticed it."

"There are fifteen cells in that corridor. Into these fifteen cells go fifteen of the new prisoners when they are admitted here. They are the men whose cases interest me most. I study them before classifying them into the three grades. This morning I had only fourteen prisoners to put in that corridor. It would be a great favour to me if you would consent to hear why these fourteen men came to be in my charge."

"You imagine it would influence me? You are surely a crank."

"I love to test my theories. You know, of course, that the Central Criminal Court is in session. The fourteen prisoners who joined my company this morning received their sentences there. I am convinced that you will be interested to hear how these fourteen men made their mistakes, and came to the cells they now occupy. Their stories are intensely fascinating, I assure you. Will you not allow me to give you the benefit of their errors? If I bore you, then you may tell me to stop, but we have still plenty of time at our disposal, and your friend in the condemned cell can be brought out at very short notice."

"You are a curious person to be a Governor," said the visitor with a smile, "but then you are a crank. Why should I not humour you? But first let me make absolutely sure that we will not be interrupted."

He took a small pair of pliers from his pocket and snipped the telephone cord. Then he walked over to the bell-push in the wall, unscrewed the wooden top, and pulled out the small piece of metal that acted as a contact. He put the wooden top on again. His revolver had been in his right hand all the time and his eye had flirted constantly towards the Governor. The latter had not moved in the slightest. He was well aware that he was in considerable danger.

The visitor returned to his chair and laid the small piece of metal from the bell on the desk.

"When you ring for your warders," he said, "this may still be used. I see by the clock that we have now precisely ten hours before the proposed execution time. Allow half an hour for getting my friend out of the cell. That gives you nine and a half hours to live if you go the full length; provided, of course, I don't tire of your recital before then."

"Thank you," said the Governor. "The reason I am anxious that you hear the stories of these fourteen newcomers to my prison is that I desire, even if it is the last thing I do in life, to demonstrate the accuracy of my theory that all criminals make one fatal error some time. You have called me a crank. I am conscious that others have thought so, even if they have not been frank enough to say it. It is a crank's weakness to be whimsical even at the risk of his existence. So, if you will please make yourself comfortable, I shall do my best to play the part of the amiable Scheherazade, while you assume the attitude of the excellent Sultan Schahriah, holding the gift of Life and the sentence of Death in your hands."

THE STORY OF THE OCCUPANT OF THE FIRST CELL

There is at least one disadvantage under which I labour (said the Governor) in taking upon myself the mantle of the wise and delightful Sultana Scheherazade. While she knew that she would be allowed to live so long as she amused and engaged the attention of the Sultan of the Indies, I am restricted to barely ten hours; and though I believe that I also could entertain you for one thousand and one nights, I will do my best, in the single unit at my disposal, to prove to you the theories I hold so strongly. Without, therefore, entering into any of the side issues which would otherwise give rise to much profitable speculation, permit me to relate to you the story of the occupant of the first of the fourteen cells to which I have directed your attention.

David Fleming and his wife lived in a little cottage about twenty miles from London. They never went up to town except occasionally, and then only on business, and their business was not lawful. In the intervals between their "jobs" they posed as respectable citizens.

On the night of which I speak they were in the sitting-room of their small house, which was situated several miles from the nearest village. They had a visitor, a dealer in precious stones, who had come down in haste from London to treat with them for some jewels which he had heard were for sale. The jewels were part of a tiara which David Fleming's wife had risked much to obtain—her liberty and her reputation as a thief. Having no honour, in the matter of honesty she did not count honour. She, like her husband, was a social bandit.

She stood in the shadow of the badly lit room while her husband sat at the table with the prospective buyer of the stones. The tiara had been melted down, and the gold had been disposed of elsewhere. Only the gems remained. Loose gems can always be sold at any of the subterranean markets in London, but these were better than the average thus disposed of, and to get a purchaser who could pay the extra price had been somewhat

difficult. But the visitor they wanted had come at last, one who was in a position to bargain.

"You want one thousand pounds for these?" asked the dealer, shrugging his shoulders. "I will give you eight hundred, their utmost value. Say the word and it is a deal."

Fleming raised his huge head and looked towards his wife who stood in the shadow beyond the table. She was motionless, a small woman with a keen, sharp face like the face of a weasel.

"Shall we take it?" asked Fleming.

His wife retreated a step so that the dim light of the lamp on her face became dimmer. She was like a ghost in the gloom. Presently she spoke, though her features could not be distinguished.

"Has he brought the money?"

"No; but he says he will write out a cheque."

The dealer lifted his head, but did not look round as he addressed the woman, nor did he look at the man whose eyes were fixed on his face.

"I have written out a cheque," he said.

"For a thousand?" came the query from the dim outline of the woman.

"For eight hundred."

There was a silence. The dealer was one of those business men who do not speak much. He picked up one or two of the stones and began to lay them out on the table under the shaded lamp. David Fleming watched him curiously, unemotionally. His wife watched also, holding her breath.

The dealer seemed to be absorbed in handling the stones. His fingers lifted one after another and held each before his eyes and against the light of the lamp for a moment before he placed them on the white table-cloth. On the window the rain was beating furiously. When the dealer had placed all the stones, large and small, rubies and topazes, cat's-eyes and peridots, diamonds and sapphires, in the position he desired, he cast a glance at Fleming and breathed deeply.

An exclamation from the back of the room brought Fleming's eyes from the table. He peered over the dealer's shoulder towards his wife.

"Did you speak? Shall I close the deal?"

Her weasel face emerged from the shadow and her finger pointed to the stones arranged on the table.

"Why did he put them in that fashion?"

The dealer answered, still looking at Fleming, to whom the question had been directed.

"These stones are, I think, from a tiara that disappeared from a dressing-room of a London ballroom a few months ago. This is the arrangement they formed in the tiara. One stone is missing."

"Well?"

The woman took a step nearer. Her husband glanced at the dealer, then at his wife.

"I am wondering," said the dealer, "where the little stone is. Perhaps it was lost when you broke up the tiara?"

"You are wrong. The stone fell out when I grabbed it and ran off. What of it? We take the risk. All you have to do is to buy what you see."

There was a challenge and a sneer in her tone, to which the dealer merely replied:

"What you say is true. It is your risk. Come, I must get back to town. My car is out there in all the rain. Is it a deal?"

"Why didn't you bring cash?"

"I came down after the banks closed. Besides, it is easier to carry a cheque—and safer."

"But I wanted the money."

"You can apply at the bank in London to-morrow morning. I have given you a card with my address, and I have shown you a bank-book with a balance that will easily meet the cheque."

"I must think it over."

It was noticeable that she said, "I," not "we." Her husband had not uttered a word during the latter part of the conversation. He sat with his eyes fixed on the stones arranged in the form of the tiara. The woman crossed the room and went out. The two men heard her go along the passage leading to the back door. They heard her open it and go outside.

She returned to the room in a few minutes and approached the table. Rain had damped her shoulders and glistened on her dress.

"It is a wild night," she said. "I went to get some coal from the cellar in the yard. We need fires in this weather."

Her husband lifted his eyes towards her and now spoke.

"What have you decided?"

The question revealed the relationship between them vividly. It was she who was the master—he the servant. Beside her, Fleming was a giant in stature. In brain he was a pigmy.

They were a couple who had been attracted—if one can use the word—to each other by the law of contrasts. In their relationship as a married pair everything about them seemed inconsistent. In the normal run of things they ought to have been mutually antagonistic. Even in appearance this was so.

Fleming was a mountain of a man. She was a mouse of a woman. Her very features suggested the sharpness of a rat. Her teeth stuck out in front, yet she was not bad-looking. She appeared to be a woman of fifty, yet she was her husband's age exactly—thirty. She looked ill and she was perfectly well. This physical deception had been of use to her more than once when she had been arrested for stealing jewellery. The hotels were her hunting ground, ballrooms her gold mines. Her game was the rich people who frequented social events. Sometimes she went as a servant, sometimes as a guest. She never returned empty-handed. When she was caught, as had happened once or twice, her captors pitied her seeming frailty. Judges had been misled by her physical fraudulence and had been lenient where they might have been severe. She was a living imposture.

Her audacity was out of all proportion to her appearance. It was she who planned the part her husband played in their lawlessness. It was she who had taken the tiara from a dressing-room in front of a watching maid, and had given it to Fleming, who was hiding by the side entrance. It was she

who had flung pepper into the maid's eyes, and had then stalked confidently among the guests raising the alarm. She had gone out by the front door as the police came in. The maid had been blinded permanently. In the agony of her torture she could not give a detailed account of the incident.

To this monstrous paradox her husband had surrendered his personality, unconsciously but finally. He was himself a paradox, which explains the curiosity. In spite of his bulk David Fleming was merely a pickpocket. His courage never went beyond taking a wallet, or a watch, from a stranger's dress. He looked a burglar capable of murder. In reality he was afraid of a single policeman. He had not the courage to take risks. His whole life had been spent among the sneaks of the street corners. He had married this needle of a woman because she willed it, knowing that he would be of use to her. He did not know whether to admire her or fear her. She ruled him because her rodent mind gnawed constantly at his bovine one. It was in the nature of both of them to steal, but she had been the cleverer of the two—she had stolen his personality from him. It was the case of the mosquito moving the elephant.

All this, of course, did not enter into the docketed information which the police possessed of them. Scotland Yard, having their finger-prints and their photographs, swept aside subtleties. It classified them both as rogues.

"What have you decided?"

For the second time Fleming asked the question, blinking his big eyes towards her as she stood beyond the circle of light. She rubbed her thin hands together, making a smooth noise like the rubbing of sandpaper on a polished surface.

"I have not decided anything—yet."

The dealer turned in his chair and looked at her.

"The cheque is here," he said, tapping his breast. "I wrote it out, knowing that eight hundred was the limit I could go to. Have you had these stones here since you stole the tiara?"

The woman did not move a muscle of her face as she replied.

"We melted the piece down and sold the gold. We kept the stones because there are not many who can give the cash they are worth. How did you get

to know they were for sale?"

"News travels, you know. I had the word from a mutual friend. I gave you his name when I wrote to you saying I was coming to-night. But I could not get off before the bank closed. It will be difficult for you to dispose of these stones if you don't sell them to me."

"Well?"

"Isn't that all the more reason why you should take my offer?"

"Perhaps."

"Look here. I can't waste my time. Take it or leave it. I must get back to London to-night, rain or shine. It is not as if there was a hotel here. You have fairly buried yourselves in this neck-of-the-woods."

"Will you stay the night if we provide a bed for you?"

"What would be the use? You don't need all night to make up your mind? No, I'll get back home."

He rose to his feet and began to button up his coat.

"Eight hundred is my offer. Take it or leave it. I will give you ten minutes to decide. I am going out to crank up my car, and when I come in you must say what it is to be. Eight hundred is better than nothing."

"Eight hundred is less than we ought to get."

"You can't tell me of another diamond merchant who is willing to give you eight hundred and ask no questions. Just think of the trouble you'd have to get rid of the loot."

With that the dealer strode to the door. As soon as he was gone from the room the woman approached her husband, who was still seated at the table.

"He must not go back to-night," she said in a low tone, banging her clenched fist on the table.

"Why? If you'd take his price——"

"You fool! Don't you see? He is no dealer. That man is a detective. He is one of the Flying Squad."

The words sent a shock like electricity through Fleming. He sat up suddenly, his large face white and scared.

"How do you know?" he stammered.

"It is easy. Had he been a dealer he would have paid in cash. A cheque would be evidence against him if anything came out later. And he used the word 'stole.' No dealer uses that word. He gave a name in his letter—the name of the man who he says told him we had the goods to sell. I don't believe it. I tell you that man is a detective from the Yard. I was watching him. I know now."

"Are you sure?"

"Sure? Of course I'm sure. I tell you he is one of the Flying Squad who came to investigate after the tiara was lifted. I have been watching his face. I can place him. That is why I kept to the background. He is setting a trap for us."

"If he is a detective, why doesn't he arrest us?"

"Don't you see? He heard about the stones somehow, but hadn't time to get a warrant made out for us. It was late when he left London. He came to make sure we were here—to make sure we had his letter——"

"But his cheque? His offer to buy?"

"A snare! A ruse! Had he brought the warrants and arrested us, did that give him the diamonds? He had to come to see them for himself—as a dealer. He needed evidence. Did you not see him working out his case as he arranged the stones on the table? Detectives don't carry big money—so he offered us a cheque."

"Well?"

"Ass! A dealer would have had the money, as I tell you. Think, fool! If we accepted a cheque from this so-called dealer we would have to go to London to cash it. It would be made out on a London office. And they would be waiting for us at the bank door, or at the counter when we presented the paper—so!"

She made a movement with her hands to imitate the claspings of handcuffs over her wrists. Fleming shivered.

"It will go hard with you, wife. There is the blind maid. It means penal servitude—almost life for you——"

"It will be as much for you as for me, unless we do something. We can get out of it yet. We must."

"How can it be prevented?" he demanded dully.

"By countering plot by plot. He has set a snare for us and we have walked into it. Let us set one for him. Do as I say. Here he comes."

The door of the room was thrown open and the dealer entered hurriedly. Rain was running from his coat. His shoulders glistened like black mirrors.

"Here is a fine thing!" he cried angrily. "My car is standing on her rims. Somebody has slashed my tyres. Who could have done it?"

"Who indeed?" echoed the woman. David Fleming jumped to his feet, glancing from his wife to the dealer.

"Your tyres?" he said. "Your tyres cut!"

"Oh, we have had some trouble with tramps in these parts lately," said his wife quickly. "They hate cars and motorists. They say that at night they are sometimes nearly run down by cars. One of them has played a bad trick on you, mister."

"It is a trick I'd make him pay for if I could find him," said the dealer in wrath. "I cannot go to London on three rims. I have only one spare tyre. The nearest garage——"

He looked helplessly from one to the other, while the rain dripped from his coat and formed pools on the floor. The woman looked at the sitting-room clock.

"It is miles off," she said. "It is closed long ago, anyway. Don't you see it is nearly midnight?"

"What can be done?"

"What I said before you went outside. We'll give you a bed until morning. Switch off your lights and put the car in our shed. If you stay it will serve a double purpose. I may make up my mind about the stones and let you have

them at your price, and you may take us both up to London in the morning so that we can cash the cheque."

"That means that you are willing to accept eight hundred?"

The dealer took the slip of paper from his pocket-book and signed it, receiving in return the stones in a small canvas bag. He put the bag into his inside pocket.

"It is kind of you to put me up," he said, "but all the same there must be a way to get back. The village is not more than three or four miles off."

"It is merely a place of one short street."

"But I may be able to telephone——"

"The telephone is in the post office. It closed early in the evening."

"Is there no train?"

"None before dawn. And that is a slow milk train."

"Well, London is twenty miles away. It is a nuisance. But surely there is a garage where I may hire a car?"

"There is a garage, but they have no cars to let for hiring. They just do repairs and sell petrol."

A slash of rain hit the window. The dealer could think of no more suggestions.

"I may as well stay in that case," he said. "I'll go up by train in the morning and tell the garage people to call for it after I've gone. I can come down in a few days for it."

"That is the best plan," said the woman. "And in the meantime you two men had better push the car into the shed and I'll prepare your room."

As she went upstairs she struck her hands together repeatedly, muttering to herself.

"He does not want to drive us up to town. He wants to go alone with his evidence. I know! I know! We'll see who can set snares best!"

She was still up in the bedroom when the men returned to the sitting-room. The dealer walked through the room straight to the kitchen and bent down

in front of the dwindling fire, spreading his hands out. Fleming followed him. The dealer glanced round the kitchen. He lifted the lid of the coal-scuttle in order to put some fuel on the dying fire, but there was no coal in the scuttle. When Fleming offered to get some the dealer shook his head.

"I'll go up to bed soon. I came in here because there isn't a fire in the sitting-room. It doesn't matter. These tyres will cost me a bit to repair."

At that moment the woman entered.

"Would you like a bite of supper?" she asked.

"No, thanks. I'm going to bed."

"Then let me show you the way to your room."

The dealer nodded to Fleming and followed her. She lit a candle and took him to his room. The room was small and mean. The bed was ready, the blind drawn. He thanked her once more and flung himself into a chair, yawning. She bade him good-night and went downstairs.

When she descended to the kitchen her husband was standing gazing at the embers in the grate. He looked up as she entered.

"Well?"

"The snare is set," she answered, primping at her straight hair. "We have only an hour or so to wait."

"What do you intend to do?"

There was a tremble in his tone and a startled look spread over his face. Her features were more than ever like those of a rat just then.

"You shall see. It is him or us. He knows all. And he is the only one who knows."

"What then?"

"There is an old mine shaft less than a mile off. What could be a better hiding-place for his car?"

"A mine shaft?" repeated Fleming, and his face became livid.

"It is better than the river," she said calmly. "It would never be found in the mine shaft."

She went to the cupboard and drew out a long carving knife, running her finger along the edge. Her husband trembled at her coolness. She saw his agitation and smiled, her front teeth showing.

"All you have to do," she said, "is to obey. I have his cheque. If we get someone to cash it we shall have ready money. We need not go to the bank. Let someone else go. We shall find a 'fence' who will cash it. For the present, consider that the stones are in his inside pocket—his coat pocket. We shall have them also. There is no lock on his bedroom door. If you are afraid, you may go to bed."

"What are you going to do?" asked Fleming in a shaking voice.

She replied quite coolly.

"Close the jaws of the trap. While he lives he has evidence. It is his existence or ours."

There was a cold ferocity about her that even Fleming had never previously seen, and the new knowledge of her character stupefied him with horror. Into his dull brain there crept a vague knowledge of a terrible truth. This was the climax of evil-doing. First a small theft, then a larger one, then a still greater, then a crime that chilled his bones and branded them both for ever. The progress of crime, of violation of the law, had worked to its consummation.

"Woman!" he cried suddenly, in desperate revolt. "Woman, I have married you!"

She answered his outburst swiftly and with venom.

"Fool! I have kept you!"

It was the truth. Left to himself he would never have become more than a minor criminal, snatching small prizes, swaying between the gutter and the prison cell. Her greed had done two things; it had enriched them, but it had involved them. The law of compensation, of responsibility clinging to the heels of daring, worked in crime as in respectability. She had always viewed the prize and had disregarded the corollary. He coveted the one but always shrank from the other.

In a little while she spoke again.

"It was I who slashed his tyres. That was the beginning of the counter-snare. It kept him here. There is nothing much for you to do. When I have made it possible, you shall take him in his car——"

"When you have made it possible?" he repeated.

"When I have made it possible. Listen. This is what you have to do. Carry him down and lay him in his car. It must be done before dawn. You know how to drive a car. Bring it out of the shed and lay him in it. Then drive it to the mine shaft. On the rims of the wheels. It doesn't matter. Stop the car just as you come near the mine shaft, and get out. Then start it again and let it plunge into the shaft. Him with it."

"But the car tracks?"

"There is more rain coming. The tracks will be washed out. And nobody can prove anything."

"What about us after this?"

"We will leave this house. When we get the money from a receiver for this cheque we will be all right. We have had passports ready for some time. There will be no difficulty at all. We can sell the stones over in Paris."

Fleming let his head fall into his hands, and remained in that position.

The woman put a handful of sticks on the fire, and crossed her hands in her lap, her eye on the clock.

It was nearly one hour after midnight. The rain had ceased, but the moon was struggling behind great clouds which chased each other across the sky. A strange quiet fell on the house.

Another hour passed. Fleming remained with his hands clasping his forehead, his eyes on the floor. His wife kicked off her shoes and rose softly to her feet.

She moved noiselessly towards the door and passed out. Fleming did not stir.

He strained his ears, nevertheless. Would there be a struggle? His wife was agile, swift, inexorable. The sleeper was defenceless.

A floorboard above the kitchen creaked. Fleming took his hands from his forehead and listened, his head cocked in a strained position. The ceiling of the kitchen was old and thin; it was the floor of the bedroom to which his wife had gone.

Did he hear a cry? Breathlessly he waited. A blow? A groan? No. Not a sound. All was silent. He wanted to shout and dared not. His nerves were all unstrung.

It seemed like an eternity, but in reality it was not more than fifteen minutes before the kitchen door was pushed open. His wife appeared. She was like a ghost. Her face was pale and grim, but her lower lip was held down by her projecting teeth. In her hand was a small canvas bag. It was the bag in which the precious stones were kept. She sat down and emptied the contents into her lap. They sparkled and gleamed in the darkness.

"It is done," she said. "We hold the trump card. The snare worked."

She put the stones back into the bag and hid it in her bosom. Her husband waited for her to speak. She pulled on her shoes slowly.

"He did not stir. His coat was lying over him—to keep him warm, no doubt. It was easy to get the stones. He had not even taken them out of his coat pocket."

"Did he—did he—move?"

"No. Lay like a log. One blow was enough! One blow! The knife is sharp. I sank it deep into him. The point must be through his heart."

"He did not turn?"

"He had the bedclothes over his head. The room was dark, but I knew my way. I did not touch him. I stood beside the bed and struck. I left the knife there. One blow! It was easy. The knife slid down deep."

Fleming gazed, speechless with horror at her recital. Her words were ghastly in their simplicity.

"It is your turn next," she said.

"For what?"

"In a little while we shall be going—away. The car must be got out. You will bring him down. You know what to do. We needn't go to bed now. Let us eat."

She went about the business without a shiver. They ate a hurried meal and drank some liquor. His wife allowed Fleming a free supply of liquor, knowing him for what he was. When they finished their meal she made a gesture, and he got to his feet.

It was raining again, but Fleming did not notice this as he walked from the front door to the shed. He pushed the car out and guided it to the front entrance. He coaxed the engine, and saw that there was a supply of petrol in the tank. All that was needed was to crank it up. He returned to the house and found his wife putting on her coat.

He turned his head away from her and walked towards the narrow stairs. His hand was on the siderail when a noise struck into the heavy silence of the night. The sound petrified them both. They gazed at each other. A motor-car was roaring its way up the lane.

It stopped at their door. They were without power to act.

Into the house strode three men. The foremost stepped into the lamp light, and the Flemings saw his face and cried aloud in terror. The woman's eyes seemed to start from her head.

"His ghost!" she screamed.

"Not his ghost," replied the man. "I heard you and your husband planning my death when I went out to start my car and when I went to my room. I slipped out of the window, leaving the pillows made up to appear as if I were asleep. I have been to the village. I telephoned to Scotland Yard. These men are also detectives. They came down in a fast car. You are being arrested, both of you, for the theft of the tiara, the blinding of the maid, and the attempted murder of myself. Had you really brought coal for the fire when you went out, madam, you might have killed me in bed, for I did not suspect you would try murder. But I saw that you had been out and that you had not brought coal as you professed, so I knew *you* had slashed my tyres. Let me warn you both that whatever you say will be taken down in writing."

David Fleming did not answer. His wife thrust out her rodent-like face as she saw the handcuffs being produced.

"Why did I forget to bring the coal?" she muttered, a rat to the end.

THE STORY OF THE OCCUPANT OF THE SECOND CELL

"An interesting narrative," was the comment of the visitor when the Governor finished his tale, "but David Fleming was obviously a man of low intelligence or he would not now be in the cell of your prison. His wife made the error that brought them both to gaol—at least I presume she also is now in a cell."

"She is, but not under my charge, of course," said the Governor in reply. "Now, had you been in David Fleming's place, could you have foreseen, do you think, the small item that led to their undoing?"

"I am certain that any man of ordinary common sense would have avoided the pitfall," smiled the visitor. "It is fatal to trust a woman."

"There may be something in what you say," rejoined the Governor. "You have the historic case of Antony and Cleopatra on your side. But generalisations do not always apply. It is curious that you should have mentioned that point, because it is the very one that influenced the actions of John Dennison."

"Who is John Dennison?"

"In order to know John Dennison," said the Governor, "you must hear the story of the occupant of the second cell, which I shall have pleasure in relating to you now."

Imagine yourself (continued the Governor) in a certain jewellery shop in the West End of London just after closing time. It is the custom in most warehouses of this description to take all the goods from the windows and lock them up in the safe every night, and Dennison and another salesman were engaged in this duty.

"One claw diamond ring—£1,000!" called Dennison, as he stood in front of the safe, holding a tray of jewellery.

"One claw diamond ring—£1,000," repeated his fellow-assistant, who bent over a stock sheet at the counter.

"One necklace—£300!" called John.

The checker repeated the words, and ticked the item off.

The manager, from the back office, watched the two assistants at their work. The shop was closed, the front door bolted and locked, the iron fence padlocked across the plate glass windows. All the other hands had gone home, and Dennison and his fellow-salesman were taking the valuable goods from the window and putting them in the safe. This was Dennison's job—to carry the trays from the window and deposit them in the safe. While he called out the contents of the trays and the prices his helper checked each article off from a list. This occurred twice daily—in the morning, when the goods were taken from the safe to be displayed in the windows, and in the evening, when they were returned to the safe.

Under such conditions one would think a robbery impossible. John Dennison did not think so. He was robbing the firm under the manager's nose.

Dennison was given the job of handling the trays because he was the man who, next to the manager, best knew jewels. He could value stones at a glance. He could detect a flaw in pearls before the average salesman was able to recognise that a flaw was present. For over a year he had held the position with this firm in the West End. For over a year he had been using his brains towards one end—the idea of the robbery.

"One brooch, Burma ruby—£450," he called.

"Completion of trays!"

He stepped towards the door of the large safe as the checker droned his reply. John Dennison's long, thin fingers moved across the tray as he placed it on the shelf, the brooch was lifted and dropped inside his coat cuff. It was the work of an instant, showing no more than the flash of a hand. A second later he drew his handkerchief from his sleeve, holding it tightly as he dabbed his brow; then he put it into his coat pocket. The brooch now lay

under the handkerchief, beside the necklace, the claw ring, and several other articles he had extracted from the trays in exactly the same way.

"That's all, sir," he said to the manager.

The manager nodded. John Dennison put his weight on the safe door to close it. He heard the lock click into position. This made him perfectly satisfied, for only someone who knew the combination could open the door again, and the manager, who was the only person in the shop who knew it, already had his hat on his head and was pulling on his gloves.

Dennison took the sheet of foolscap from the checker and laid it on the manager's desk. The manager dropped it into a drawer and turned the key. The list would not see daylight until the next morning. Dennison bade the manager good night and went out, with his assistant, by the side door. At the corner of the street he bought a newspaper and scanned it casually. He was not interested in the news, but he was waiting to see that the manager left the shop, and he was content when the manager emerged immediately and entered the car that was waiting for him.

Dennison did not go straight home, though he knew his wife was eagerly waiting for him. His next move was proof of the extreme care with which he had built up the fabric of the crime that was to leave no clue. First he went to a shop and bought a cheap, small, metal attaché-case. He then went by bus to Richmond. At Richmond he hired a skiff and rowed a considerable distance up the river.

It was almost dark by this time. It was completely dark when he reached a spot he had previously selected for his cache. Along the river-bank was a row of wooden piles. Dennison went ashore and searched for a heavy stone. This he took into the boat with him and pushed off into mid-stream. He anchored there.

Wrapping his stolen goods in the newspaper, he put them into the case and bound it firmly with a roll of blind-cord which he had brought with him. On the top of the closed case he bound the stone, leaving plenty of cord free to take to the bank. He slipped the case over the side of his boat and paid out the cord until the case was at the bottom of the river. Then he rowed ashore, letting the slack cord run out as he rowed. Round one of the wooden piles

he cast a wide noose, and, having used another stone as a sinker, he dropped the noose into the water and watched it disappear.

After this was done he rowed back to Richmond, paid for the hire of the boat, and went home.

It was late when he reached the flat where he and his wife lived. She met him as he opened the door.

"Ted Hughes has been here all evening," she said. "Is everything all right?"

"Yes, it's all right. Glad to see you, Ted."

A young man about his own age had come from the sitting-room to greet him.

"We expected you at the usual time," he said.

"Kitty was getting anxious. I wanted to take her out to a show."

Dennison shrugged his shoulders, grinning.

"Sorry to upset your evening. You may go now, if it isn't too late."

"Won't you come with us, John?" asked his wife.

"Me? No. I'm not a gay bird like Hughes. I'm not keen on shows."

She pulled off her cloak and flung it in a chair.

"It's late. I'll not go to-night."

Dennison turned to Hughes with a smile.

"Come round again, Ted, and take her out."

Hughes nodded, and took his leave reluctantly. As soon as the door closed, Dennison slumped into a chair.

"There's nearly ten thousand pounds' worth in this haul, Kitty. When I say 'Go,' prepare to come out of England."

"John, have you got it?"

"Not here. Hidden."

"Of course; but where?"

He shook his head slowly.

"Keep to your department, Kitty."

"Why not tell me? You always keep me in the dark! It isn't fair!"

"Adam went wrong when he trusted too much to Eve. I'm not making the same mistake. You know our methods."

She glanced sulkily at him and turned away, but he caught her arm.

"Look here, Kitty. There may be inquiries. There may be searches. Maybe the cops will come here. They'll be sure to watch, anyway. They have ways of frightening women. I don't want you to blurt out anything under excitement. That's what the cops aim for. If you don't know anything, you can say so and stick to it."

"You will be careful when you sell the stuff?"

"Ted Hughes will do the carrying for me, as usual. I'll explain to him in time where to find the goods. If he's nabbed, it's up to him. The great thing is to keep suspicion away from us."

"You're sure of yourself—as usual?"

"Oh, I'm all right. I can trust myself. I gave notice to the manager to-day. I leave in a month."

"But if Hughes is caught and gives you away?"

"He daren't. I'd kill anyone who gave me away. Hughes knows that."

"Me too?" she asked, with a curled lip.

"I suppose so," he answered quietly. "Why not?"

They went to bed without another word.

There was this to be said for John Dennison—he was remorselessly cool. The theft at the shop was not his first lapse into crime by any means. He had never been caught in any of his previous escapades, so that the police did not have his finger-prints or his photograph. His career had been one of implacable accuracy. He had always covered himself by using other individuals, and he always saw to it that the other individuals were encompassed in the toils of the net he spread. For himself he always left a loophole.

In South Africa he had been an I.D.B.—which means that he had been an illicit diamond buyer. The workers in the mines had been his tools, taking the risks and accepting his percentage. It was there he had learned the value of stones.

He had come to London on the tracks of stones he wished to possess. He had used his wife to find them. It was she who had gone through every fashionable shop until she was able to direct him to the store in which he was now engaged as an assistant. It was she who had made friends with Ted Hughes, who was then a salesman in the shop. Bit by bit she had led Hughes on, fascinating him, alluring him, ultimately destroying him, so that he was discharged from his post.

All this time John Dennison had kept in the background. When Hughes was discharged, he had applied for the post, armed with credentials from diamond men in South Africa, had been willing to find the security the firm demanded, and had secured the position. It was worth while depositing a hundred or two pounds to be inside such premises.

While he worked at the shop his wife had played her part. She had not thrown Hughes over. She had retained him, according to plan. His infatuation was deepened by the loyalty she displayed in his misfortune. He became a hanger-on on the fringe of the trade, and a friend of John Dennison as well as an admirer of John Dennison's wife. He knew London. He went with Kitty Dennison to dance-clubs. Her husband did not object. It was all in the plan.

There was little to choose between this strange pair of criminals, this husband and wife who worked from different angles towards a common goal. Both played their parts independent of the other. Both retained a peculiar individuality of action. Both were equally deserving of punishment. The only bond between them was their marriage certificate.

The life in London attracted her. She found all that she, as a woman, desired, just as her husband found all that he, as a diamond thief, desired. The dance-clubs did not interest him, but they interested her. She liked gaiety, and Hughes was able to show her where it was to be had. He strove to please her. He succeeded, but at a cost he did not then realise. For her part, she was so used to being directed by the cold, intense implacability of

her husband that she found in the society of Hughes a bath of pleasure. She went about with him without restraint. John Dennison watched, and waited.

Gradually Hughes became financially overwhelmed. He had been led out of his depth. His discharge from his position constantly rankled as an injustice. Resentment breeds revenge. The time was ripe for a coup. Dennison sounded him. Hughes, desperate and in debt, was willing to do what Hughes, solvent, would never have dreamed of doing. He was prepared to be a seller of stolen property. He was introduced to "receivers."

Dennison tested him with small stuff at first. All that was asked of Hughes was that he went to a spot, found a parcel, and took it to an address. He did not even know the contents of the parcel. A day later he received his share of the proceeds from Dennison. He believed he was dealing with smuggled diamonds.

Thus it was that John Dennison was a criminal, but was safe even under police observation. It was Hughes who faced the accusing law. If Hughes was caught, Dennison was ready to prove that he was guilty of nothing more than a passing friendship with him. Not once had he discussed the shop with Hughes, though he was aware that Hughes knew the combination of the safe. Knowledge of the lock was nothing to Dennison. He was not a burglar.

In the present case he was content to wait long enough to allay suspicion. He held the winning card.

The robbery was discovered when the manager came to the shop the next morning and opened the safe. The shock sent a thrill through the establishment. The police were called. Detectives came. They examined the premises, the safe door, the locks and bars of the shop entrance. They could make nothing of it.

The manager was able to show that the goods had been put in the safe as usual. He had seen Dennison and the other assistant take them from the window. He had seen the safe closed. He had tested the lock before he left the premises. His finger-prints, and those of Dennison, were still on the safe door. Who knew the combination? Not an assistant save the head salesman, who had been gone before the trays were taken out of the window, and the manager himself, who was, of course, above suspicion.

The detectives hovered about the shop all day. Others came, examined, and went away. The manager spent most of his time being interviewed by them in his office. The end was that all agreed it was a mystery, a classic crime. John Dennison had done what every thief, every burglar, every criminal, dreams of doing—he had robbed, and obliterated his trail completely. This was a tribute to his daring as well as to his skill.

But John Dennison was not content with this. He went one better. He aided the detectives. It was he who supplied them with a clue. Under his counter he discovered a skeleton key and a small jemmy. He bore them in triumph to the manager.

The detectives surged round him as he explained how he had come across them when he was looking for a polishing-brush. He did not explain that he had slipped the articles from his sleeve as he stooped towards the floor!

Why had Dennison given the detectives this clue? Obviously because he knew the working of the official mind. If no clue was available, they would come to the conclusion that this was an "inside" job, that it had been carried out by someone within the shop. The key and the jemmy supplied them with something to investigate while he made his preparations for escape.

While the detectives were busy examining the jemmy and the key, other investigators came—the insurance people. Two experts came to represent their interests. One of these two, a tall, thin man with dreamy eyes, looked at the safe for a long time. The manager explained everything in detail. The tall, thin man listened attentively. He examined the jemmy and the key, fitted it into the lock of the side door, cast his eyes on the ceiling, the cellar trap-door, the cabinets ranged along the walls.

"A clever theft," he murmured.

He joined the other detectives, who were comparing notes. They took away the key and the jemmy, and the excitement died down in the routine of the shop duties.

That night when John Dennison went home he told his wife to advance the next step in his scheme.

"Book passages for Cape Town on the ship sailing the day after I finish with the firm. Give any name except our own."

"Everything all right, John?"

"Everything."

She did not go out that evening, but remained content beside him, listening to the wireless.

Dennison went about his business as usual. Every evening for a week he asked the same question as he hung up his hat in the hall.

"Anybody been here?"

"Nobody."

During the second week his question changed.

"Seen Hughes to-day?"

"No."

During the third week the query was:

"Going out to-night?"

The answer remained the same:

"No."

One morning a few days before he was due to leave the shop he looked up from his breakfast.

"Kitty, I'll want Hughes soon."

"Well?"

"You'd better tell him so."

"I haven't seen him for some time."

"You haven't quarrelled?"

There was a challenge and a menace in his swiftly raised voice.

"No."

"You've been keeping indoors a lot of late. Hasn't he been asking you out to shows?"

"No."

"You've got to bring him along. I need him—for the last time."

"I told him not to call again, John."

"What?"

"I told him not to come for me."

"Why?"

She looked at him strangely, biting her lip. There was a trace of nervousness in her tone as she answered:

"I didn't want him to come. He told me the last time I saw him that he loved me."

Dennison threw back his head and laughed.

"Well, what about that? I knew he was infatuated. I'm not blind, but it's all in the game, isn't it? You've got to keep it up with him, as you've done with others. We're leaving London soon. Better send a note asking him to come and take you out. He has to pick up a parcel for me——"

"The diamonds you took from the shop?"

"Sure."

"Is it safe now?"

"The insurance people have paid. That's good enough."

"Then why worry about Hughes? Tell me where it is, and I'll get the stuff ——"

"And deliver it to the fence? Not at all, Kitty. Cops sometimes hang round fences' homes. I won't expose you to risk. Your job is to bring Hughes here. The money will be sent to us on board the ship by special messenger, after Hughes delivers the loot."

She pouted, eyeing him in a way that showed she felt hurt.

"John, why don't you let me into the secret? I'm not a baby. You seem to be almost inhuman at times, keeping everything locked up inside you. You just use people like pawns. Why can't you be like Hughes—nice and sociable ——"

"It is because Hughes is nice and sociable that he is aiding us, Kitty. Hughes is part of my plan. He is necessary to side-track suspicion. I'll tell you where I hid the stuff when we are away, but not now. In the meantime it's your job to be nice to Hughes. I expect to meet him here this evening. We leave in about twenty-four hours."

"Why not write to him yourself?"

"He'll come quicker to see you, and letters may be used as evidence."

His eye travelled to the telephone on the hall table.

"He's not on the 'phone, and I'd hesitate to use it, anyway. You never know who's tapping the line. We'll keep that for emergency, Kitty. Hughes has got to deliver the loot at once; then you may have a last outing with him—but don't tell him it's the last!"

"You want me to go out with him to-night?"

"I do; after he has delivered the goods he can join you at the dance-club. He'll work swiftly to get there, and, as he'll be paid by the fence, he'll have money to burn. I'll pack up while you are away. Hughes will report progress to you, and you to me on your return."

He noticed an anxious look in her eyes as he went off to his work. This was his last day at the shop.

Ted Hughes was at the flat when Dennison returned in the evening. Kitty was dressing, and kept to her room while the two men talked, and, as soon as everything was arranged, she and Hughes departed. Dennison began to pack.

He reckoned that by the following midday he and Kitty would be aboard the liner. Hughes would not know they had gone from the furnished flat until he called one day to find it empty of tenants. Swift action was the keynote of Dennison's plans. Hit and run! Sell and vanish! No trail was ever left behind.

He finished packing, and sat down to wait for his wife's return. Reviewing the situation, he decided that he had managed it rather well. Kitty would be able to tell him when she came back how Hughes had succeeded. He had parted from the manager of the shop on very friendly terms. His excuse for leaving was that he was going to America. There had been no hint or

mention of the robbery, which had become history—unexplained, if not forgotten, history.

There was only one point on which he was not quite satisfied. He wondered why Kitty had mentioned to him that Hughes had fallen in love with her. He considered this carefully. The fact that Hughes was infatuated with her did not disturb him. Other men had been infatuated. But the fact that she had allowed him to fall seriously in love with her was unusual, for she had hitherto played her part with the joyous daring of irresponsibility. Was it possible that she had become attached to Hughes because he was "nice and sociable"? Thinking all this out in cold blood, John Dennison, for the first time in his life, experienced a pang of jealousy.

He became restless as the hours passed. Midnight came and went. One o'clock struck. Two. Three. Four. Daylight broke. The city began to awaken to life. John Dennison watched the clock steal hour after hour from him. He gnashed his teeth and beat his hands together. But still his wife did not come.

He was at his wits' end by breakfast-time. He was sleepless, haggard, red-eyed. Yet he was helpless until Kitty arrived. For want of something to do, he made himself a cup of coffee on the gas stove in the kitchen. He was drinking the coffee when the door knocker thudded.

He knew this was not his wife, for she had a latchkey. He went to the door, opening it cautiously. Facing him was the tall, thin detective who had represented the insurance company.

"Can I have a word with you, Mr. Dennison?"

Before Dennison could answer, the man strode into the hall.

"I saw your light on early in the morning. I suppose you are waiting for your wife?"

"What is that to you?"

"Well, I don't expect you'll see her again. I am a private detective, Mr. Dennison. I was engaged on the robbery at the shop, and in the course of my duties I had to keep an eye on you and your wife. Are you aware that she has been friendly with, and is now running off with, a man named

Hughes? I considered it my duty to tell you. I have discovered they are leaving the country as Mr. and Mrs. Hughes——"

John Dennison saw red in that moment.

"How do you know?" he demanded hoarsely.

"I have watched your wife's movements."

Dennison blazed.

"They've turned on me!" he cried in wrath. "She's gone off with him because he was nice and sociable! They've taken the swag!"

He threw his hands above his head savagely.

"I'll give you no trouble. I confess everything! But I'm confessing so that you may beat Hughes and her! They mustn't get away with it! It was I who took the diamonds. Hughes was the carrier. I'll tell the whole story if you catch them. We are all in it—the three of us——What are you staring at? You're losing time instead of getting after them!"

The telephone bell tinkled in the hall. He leaped for it, the detective at his heels, but he waved the man back. The receiver was already at his ear. Someone was calling him. It was his wife's voice.

"Hullo, John! It's me—Kitty! I didn't come home last night because a detective was on my heels. I've seen him hanging about before, but I gave him the slip and came to this hotel. I didn't dare telephone you, in case he was tapping the line, but this morning I slipped out the back way. Hughes found the loot and delivered it safely. We've just time to catch the boat-train. I'll meet you at the station. You'll find the passage tickets in my dressing-case. I had them made out in the name of Mr. and Mrs. Hughes——"

John Dennison dropped the receiver and sagged into a chair.

The detective, who represented the insurance company, was watching him; and the look on the man's face told John Dennison that he had beaten himself. His unfounded jealousy had made him say too much, and the passage tickets were not any use to him, nor to the wife who was above suspicion.

It had proved disastrous to him *not* to trust a woman.

THE STORY OF THE OCCUPANT OF THE THIRD CELL

"I admit," said the visitor, who seemed to have thoroughly enjoyed the stories he had just heard, "I admit that a generalisation does not always work in regard to women any more than in regard to anything else. In both the instances you have given, however, the flaw was that the people concerned (whom you would call the criminals) did not get away quick enough. They delayed their exit."

"Pardon me," said the Governor, "if I suggest that there have been cases where swift flight has been on the side of the culprit and yet, through some unknown, some subtle, misgiving, some unexplainable cause, it has availed him nothing in the end. And this has happened not because the pursuers have known where to find their man. It is one of the strange things of crime that always, somewhere, at the most unexpected moments, the flaw appears and the whole fabric of defence and escape falls to dust. I hold that in case after case the criminal defeats himself."

"Not if he knows his objective and goes straight for it," retorted the visitor. "Now, I know my objective——"

"So did Samuel Vining," interrupted the Governor. "And yet Samuel Vining is at the present moment the occupant of the third cell in the corridor beneath us. He is one of those who will pay with his life for his error. Since his is a very remarkable case, I propose to relate his experience in support of what I say."

The visitor settled himself in his chair and helped himself to another cigarette, while the Governor took a sip of whisky and soda and cleared his throat.

There was nothing subtle (began the Governor) about the murder committed by Samuel Vining. He struck down a man in the bar of a small public-house during a heated argument—buried a seaman's knife to the hilt in the man's side. There the victim lay, his glazing eyes turned towards the ceiling. It had been the deed of a moment. When the bystanders realised that the man was dead, Vining had disappeared.

He had not more than half an hour's start of the police, but half an hour is a long time when a man is speeding from justice. Vining had the world to roam, the whole earth in which to hide. His impulse was to flee. He boarded a bus going westward and took a ticket to the terminus, not knowing where the route would lead him. His main object was to get away, to get away, to get away! The desire to escape from humanity surged through his brain. Did he repent of his crime? Repentance was nothing. Punishment was the avenging force he had to escape from. Repentance was an inward thing. Punishment was not anything *he* could decide. *That* was in the hands of those who were pursuing him at that very moment.

When the bus reached its journey's end he continued along the country road. He had no idea where it would lead. He did not, for the moment, care. Sometimes he ran, but he found running consumed his energy too quickly, so he walked mainly. The night was dark, but the stars were out. The road was lonely except for an occasional motor-car going towards, or coming from, London. He drew into the hedge when the cars passed, hiding from them. The stars told him he was walking south. In the south was the sea. This thought gave him some comfort.

By dawn he was so weary that he was almost dropping from exhaustion; but he stumbled on, blindly getting away! He was passing through undulating country by this time. In the meadows he saw occasional houses. Workers were stirring. A labourer could be seen in the paths now and then. Dogs awoke and barked. The barks sent a shiver through Vining's frame. They were like warnings, challenges to him. They were the voices of civilisation telling him that he was observed. This made him hurry once more. He reflected that the police were on his trail, searching for him everywhere. Their net would be cast in the city, the telephones would be bearing messages, the telegraph would be issuing calls for his arrest. How could he defeat these means? Not by swiftness, but by cunning.

At a bend in the road he came upon a road-mender seated beside a heap of stones. Beside the roadman was a can of tea, and in a red handkerchief was his early morning meal. A newspaper was spread over his knees. He looked up as Vining approached.

They stared at each other for a moment. The road-mender spoke.

"Bin on the road for a bit, I reckon. Goin' to the coast, hey?"

"How do you know I've been on the road for a bit?" demanded Vining challengingly.

"Humph! By the dust on your clothes. Makin' for the coast?"

"Yes."

"It's a tidy way. Well over a score of miles. Hastings lies over the hill yonder."

"Does it?"

"Nearer a score and a half of miles. I've seen a few walkers to the coast in my time. They generally walk durin' the night. Cooler, I dassay. You're fagged out."

"Give me something to eat."

It was more a demand than a request, and the road-mender lifted his eyes from the newspaper suddenly, then dropped them again to the printed page.

"Take what you want," he said, his tone changing. "There's tea, an' bread, an' cheese, an' a scrap of meat."

Vining slumped down on the roadside and started to eat ravenously. He finished the man's allowance and drank the tea. The food gave him strength, and the tea washed the dust from his parched throat. The road-mender was watching him, his right hand holding his long, thin hammer close to his side. Suddenly he rose to his feet, moving off backward.

"Where are you going?" demanded Vining quickly.

"For help."

"Help? What for?"

"I know you. Think you can escape, do you? It's in the newspapers about you. At first I didn't think—but I bin watchin' you. The dust of you gave you away."

"The dust?" echoed Vining dully.

"It told me you'd bin walkin', an' then I looked at the paper. It says that a man named Sam Vining, a seaman, killed another man in a pub in the East End last night. You're him—Vining."

"How do you know?"

"The dust told me you'd bin walkin', then I read your description. It's there—in print. Medium-sized, broad, dressed in shabby navy suit, tattoo marks on the back of right hand, brown eyes, mole on left temple, black-and-white check cap. That's you. They have a photo, too—not very like you, but near enough; must have bin taken a while ago. You killed this man because of a woman. She gave the police a lot of information. Her name is there."

"Sarah," muttered Vining hoarsely.

"That's it—Sarah. Sarah something. It's you, isn't it?"

"It is me. What about it?"

"Your number's up."

The road-mender was moving farther off, still walking backwards.

"Where are you going?" asked Vining.

The roadman pointed to a hollow beyond the road, from which a thin trickle of smoke issued among the trees.

"Down there is a village. A policeman lives there. I'm going to tell him. Better come with me quietly. Give yourself up. Come on. I've got you."

He stood erect, swinging his long, thin hammer by his side. Vining made a movement as if he was about to rise.

"Don't try to escape," warned the road-mender. "I can throw this hammer straight as a die!"

Vining put his hand on the stones to raise himself. Next moment he fired one—a jagged rock that took the road-mender on the cheek. Vining was

used to slinging pins and tools aboard ship. The road-mender went down, blood spurting from his cheek. Vining was gone by the time he gathered himself up.

Down the road, then through a gap in the hedge into the meadows, went the fugitive, bending almost double as he dodged along ditches and under cover of hedges. From a nook he saw the policeman, some time later, go along the road on a bicycle at a great speed. He watched the officer's helmet disappear round a bend; then he struck deeper into the meadows.

The one thing that stuck in his mind was that he was within possible distance of the coast. He knew the general position of Hastings. It was south of Dungeness point; and Dungeness was almost opposite Cape Gris Nez. If only he could take a boat at Hastings he could row to Gris Nez. His tiredness seemed to lift as the plan came to him.

But before he stole a boat he had to get to the coast; and before he got to the coast he had to travel unseen during a long day. He decided to sleep for a few hours. He slept in a dry ditch in a small wood.

When he awoke, the sun's position told him it was late afternoon. He was hungry. He had a few shillings in his pocket; but what was money if he dared not show his face to human beings? He searched for a brook, found one, and bathed his hands and face in the muddy water. It was cooling at any rate. He even drank some of it. As he dried himself with his handkerchief he pondered the situation.

"They are all against me," he muttered, "but I'll win through. At Gris Nez I'll ship off—anywhere! They always want firemen—on coasters—anything!"

He recollected suddenly that to get a job he must show discharge papers from his previous ships. For an instant the thought staggered him; but only for an instant.

"I'll knock somebody down and take his papers. Then I'll pretend I'm dumb. I only want to get to Gris Nez."

This became his passion, the objective to which his mind clung. Gris Nez! Gris Nez! He rose and stumbled on.

Towards night he was near the hill which the road-mender had pointed out. But he was again exhausted. Not used to marching, the fatigue was telling on him; on mind as on body. He sat down by the edge of a cornfield and closed his eyes.

Suddenly he heard voices. He dived into the corn, flattening the grain as he floundered along. The voices grew louder. He lay down. A man was calling.

"Dick, where'd you put the rake?"

Another voice answered unintelligibly. The sound of someone thrusting his way along the edge of the field came nearer. An exclamation burst out, and the first voice called harshly:

"Someone's gone and trampled the corn down. If I only got hold of him _____"

Another step brought the man almost on top of Vining. The latter did not wait for the alarm to be raised. He jumped to his feet and attacked.

It was all done so suddenly that the farm worker had no chance to defend himself. He went down before the onslaught, kicking and struggling, but Vining was desperate. He pounded the man into unconsciousness and left him. Rising to his feet he ran—straight through the cornfield.

He heard voices as he ran, but he took no heed. He did not stop until he reached the opposite end of the field. As he forced his way through the hedge he looked back. Two men were pursuing, smashing their way through the corn in his wake. Vining gritted his teeth. He had laid a trail of flattened grain which was impossible to mistake. The harvest of the fields was aiding his enemies.

He broke through the hedge and ran. Fear gave fleetness to his feet, but he did not know the ground. There were rabbit-holes which hurt his ankles when he stepped into them. There were hidden hillocks, mounds, rushes, tufts of grass, that seemed to try to impede him. He crashed on, labouring like a wounded animal. He ran for nearly an hour. When he stopped there was no sign nor sound of his pursuers.

"They'll come after me," he muttered. "They know the country, and I don't. They'll come after me. I'll keep to the hill——What was that?"

From somewhere behind he heard the bark of a dog, the baying of a hound. His heart stood still. They were pursuing him by scent! Their dogs could come where a vehicle could not follow. What was to be done? His right ankle suddenly bent under him. He fell as a sharp pain shot up his leg. He had put his foot into a rabbit-hole.

The shooting pain made him, for the moment, forget his pursuers. He could hardly rise, but he got on his feet by strength of will and hobbled on. As he toiled along he cast his eyes about. What was he looking for? He found it soon enough in that natural backyard. A thick branch of a tree lay on the ground. He tore it up and sat down to wait.

The baying came nearer. It was almost dark now. If only he could get one good blow at the dog, that was all he asked. One blow would be enough. Samuel Vining knew how to strike.

He sat motionless, waiting. Suddenly something that seemed to be a part of the gloom swept past him. He caught a glimpse of a brown, furry animal which leaped aside as he stirred, and vanished suddenly.

"A hare," he thought. "The dog has disturbed it."

He had no time to think more, for just then there broke on his ears a deep bay, and a white dog plunged into view. Vining gripped his club and waited, tense for the stroke.

The dog was running to a scent. He had his nose to the ground. Vining drew back to make sure his arms had the swing he wanted. He held the branch aloft. The dog came straight towards him. Vining struck.

It was a terrible blow, with all the force of a pair of powerful shoulders behind it. The rough branch caught the dog on the head just above the eyes. Such a blow would have killed a man.

The club was shattered, the dog's breath came in a strange gasp, its body crumpled up and rolled over. Vining scrambled to his feet as he heard other dogs in the distance.

"They've sent a pack after me," he cried. "That one will stop them."

He staggered into the gathering gloom, making his direction towards a small wood that clung to the hill-side. He heard no more from his pursuers, but when he lay down he was surprised to see that his hands trembled. A

peculiar throbbing was in his breast, the blood was pounding in his ears, his teeth were chattering. He was not cold. He was perspiring. Through his body the trembling continued; he was shaking as if he had ague. It was his nerve that had deserted him.

Samuel Vining did not know the psychology of his case. He had never heard of psychology. All he knew was that he was feeling "done in." His vision was becoming blurred. His mind had become rusty, almost incapable of acting. He started at the least sigh of the wind, the slightest rustle of the trees.

"Gris Nez!" he muttered constantly. "Gris Nez! Hastings, then Gris Nez!"

When he tried to sleep he found it impossible. He could not even rest. The ground was hard, the surface uneven. His body was pained, his limbs ached. Hunger did not trouble him, but thirst did. He felt terribly thirsty. It is a peculiar fact that nervousness brings thirst; dry, cracked thirst which cannot be relieved.

"Hastings," he cried suddenly. "I must get to Hastings! Then Gris Nez! Before morning!"

But, though he cried aloud his necessity, he lay where he was, unable for the time being to rise and make the effort to march. Was this conscience? Conscience did not trouble Samuel Vining. It was merely exhaustion of mind and body that was lashing at him, wearing him down with a grinding pressure that was irresistible. He went over the events of the murder and his subsequent actions slowly and methodically, dwelling on every point with a mind that was strung up to high tension.

He could not stop thinking of the past twenty-four hours. He could not sleep. The fear of the dogs was upon him. He could not rest. A strange paradox was present within him, one part of him declaring for repose, the other clamouring for action. He was hardly able to keep still. At last he rose, bound his handkerchief about his injured ankle, and stumbled on. He broke off a stick from a tree to aid him as he marched.

Things were becoming vague, but his mind was clear, strange as the seeming contradiction may be. He was constantly remembering the incidents of his flight and his escapes. His brain was fumbling at the problem, searching for a way out. It ought to be comparatively easy for him

to make his escape. Why had he not done so? Why had these people come upon his trail? Like a flash he saw, and he uttered an exclamation as the reason struck him like a blow.

Man was his enemy. From man he need expect no aid. He had run from the face of man. In the wide fields he ought to have found the solitude he sought; but he had found the woods and meadows willing to give him up. The dust of the main road had betrayed him to the road-mender. The cornfield had betrayed him to the farm hands. The scent of his clothes had betrayed him to the hounds. Where could he escape from this accusing Nature? The answer came as swiftly as the question was uttered.

"Hastings! Then Gris Nez!"

The sea would hide him as she hid untold secrets. That was it. Let him get back to the sea, his natural element, and he would put his pursuers to confusion! He was at home where the sea was. This land, where roads were unsheltered and meadows were cultivated, was his enemy also. He toiled on, filled with a new hope and trembling resolve.

He did not know how many hours he walked, but he kept his position by the big hill. He understood that this hill was part of the white cliffs he had seen so often from the Channel. He reached the shoulder of the hill when the night was still dark. He stopped, raised his head, and sniffed. A new tang came to him. It was the tang of the sea.

He pushed his way round the shoulder and saw the Channel at his feet. The lights of a town twinkled away to his right, the long promenade showing up like an uneven line of burning matches.

"That is Hastings," he told himself. "There are caves among the cliffs."

He had heard, like many others, of the caves which were at one time used by the smugglers of the coast. He determined to find one of these caves and stay there for the next day. From the cave he could mark a boat, and go for it as soon as the following night covered his movements. He was jubilant, for in the darkness he felt that many boats were lying there.

He crawled down the hill facing the sea, moving slowly because his strained ankle pained him, and because he was on dangerous ground. The dawn broke grey and sullen while he searched for a cave. By its light he found what he wanted, a hole in the shoulder of the cliff into which he

could crawl. It was reached by a narrow, scarcely visible track, and was in a part of the cliff which visitors were not likely to roam. Vining drew himself into the hole and lay down his full length, gazing out to sea.

The wash of the waves on the shingle sounded eerily, but above the wash and rattle of the shingle came a cry that thrilled his bones and caused him to sit up in swift alarm.

"Get away! Get away!"

The command came unexpectedly, high pitched, with the muffled blur of a voice shouting in a strong wind. To Vining the words were a cataclysmic disturbance. He had been seen! He leaned far out of the cave, his hair on end, his nerves tingling.

A bird flew past the opening of the cave—a white gull with grey wings and open beak.

"You can't see me!" he called in wild derision, a swift defiance in his tone.

He waited in suspense for a reply, expecting to hear a challenge, an order to surrender. None came.

The bird that had flown past the cave swung back again, a beautiful thing sailing against the lightening sky. He saw its outline moving steadily, perfectly poised, with outstretched wings, beating up against the cold breeze that heralded dawn. It swung close to him, its little beak open, its feet dangling, ready to alight. He lost it in the gloom.

The waves breaking on the shingle surged far up the beach, then swept back, and the stones rattled down after the receding water with a noise like thick hail.

"Who are you, anyway?"

Vining shouted to make himself heard above the clatter of the shingle, but he was conscious that his voice was drowned in the noise. He shouted a third time. There was no reply. Only the swish of the spent waves and the rattle of the rolling pebbles came to him.

"There's someone down there," he muttered uneasily. "Someone was calling."

Fear came to him in renewed force. Had he been trailed? Had someone, some night prowler, seen him descend to the cave? Or was it his fancy? Was it possible that no one had called, no one at all? Were his ears deceiving him? Was his nerve gone?

He put his hands to his head, which was aching and throbbing, and held his temples. His hands trembled. He was shaking all over. As he crouched there, a wretched figure, afraid, scared, shivering with cold, and with the thrill of his breaking spirit racing within him, he heard it again.

"Get away! Get away!"

There was no mistaking it, though the call was much fainter. It came to him borne on the wind, a cry from far up the beach.

"Get away!"

He bounded to his feet, every shred of his former self abandoned, every sinew urging him to action.

"All right," he cried. "I'll get away! I'll get away!"

He had been seen. Someone had observed him. He had stumbled on to a forbidden piece of the cliff. Was it a watchman who had seen him and had warned him to go away? It could not be the police. They would not have warned him to go away! They would have come and taken him. He dared not wait there. The observer would give information of his presence. The police would come to investigate. He would be found, and then—the scaffold!

The land was his enemy. His soul clamoured for the sea and the things of the sea. He knew the sea. He had sailed on it for years—deep-water sailing, out of the sight of land and human beings. The sea would cover him, and his pursuers would be baffled.

The land was for landmen. The police worked on land. The land had betrayed him thrice already—first by the dust of the road, next by the corn in the meadow, then by the scent of his clothes. The land had tried to hinder his escape; it had tried to maim him. How he cursed the rabbit-hole that had sprained his ankle!

Dawn was coming up in the east. He must move at once, before his pursuers came after him. He would go down and take a boat at once and be

off before daylight—off to Gris Nez! He would outwit the unseen observer, and be halfway across the Channel before the boat was missed.

Crawling out of his cave, he toiled slowly and painfully up the cliff, stopping every now and then to listen. Once he heard the call, but it sounded far away, almost like an echo.

"Get away! Get away!"

He smiled grimly to himself. The observer was on the wrong tack, evidently moving towards the town, while he moved in the opposite direction. The dawn was present by this time—a grey dawn—but daylight was coming fast. Every minute brought more light. Now was his time to get to the beach and choose his boat from those he could see lying about the shingle.

He reached the crest of the hill, intending to descend on the other side; but, as he peered over the ridge, he heard cries and shouts and saw a strange sight. Coming along the top of the cliff was a pack of hounds—brown and white hounds, like the one he had slain in the meadow. They were coming straight for him; and behind them were men on horseback. He had no time to think, no time to do anything except rise to his feet and strike at the foremost dog as he had struck before. This time he did not kill, but he sent the animal howling to the rear; and, as he saw the pack breasting the hill, he took to his heels.

Oblivious of the pain in his ankle, he ran towards the sloping cliff. He had no time to select his place of descent, but he found one. He slid, rolled, bumped, towards the shore, landing in a heap on the shingle. He was up again, and ran towards the boats. They were after him. He saw some men on horseback shaking their whips at him and shouting. He did not care. His hands were on a boat, but he could not move it alone. He looked out to the sea. A small fishing-boat bobbed to the swell less than a hundred yards from the beach. He ran into the sea and struck out for it.

"Gris Nez! Gris Nez!" he called. He would show them some sailing! Was he not a seaman? He swam fast and reached the fishing-boat, hauling himself aboard by a fender. He did not trouble to look at his enemies. He had too much to do to escape. The anchor-rope refused to come; he cut the line in desperation and began to haul the sail up as he drifted.

"Get away! Get away!"

The command startled him, so clear was it, so sharp. His fingers let go the rope, the sail dropped, crumpling up in a tangled mass. He looked aloft, and saw a little white gull, with grey wings, perched on the masthead, and above it another gull wheeled and circled.

Vining was still staring at the gulls when a motor-boat ran alongside his drifting craft. Over the gun-wale men clambered and faced him. One was a policeman, but a man in the garb of a huntsman thrust his way forward and pointed to Vining.

"That is the man, constable. We had a dog killed yesterday, and that broke the chase, and we routed out a cub this morning, and chased it along the cliff, when this man——"

"I killed the dog in the meadow yesterday. I am Samuel Vining."

"The murderer!" cried the constable. "We have been watching for you."

Samuel Vining did not move, though the others shrank from him. He was staring insanely at the gulls overhead.

The wild things of the sea had joined forces with the wild things of the land to betray him. There had just penetrated his tossing brain the knowledge that it was no human voice that bade him run from the cave where he might have lain unobserved and safe.

What he had imagined, in his anxiety, to be a watcher's warning was merely the call of the little, grey-backed bird, the Jenny gull, the kittiwake, that gets its name because of its chatter, so imitative of a plaintive human call.

Kittiwake! Kittiwake!

Get away! Get away!

THE STORY OF THE OCCUPANT OF THE FOURTH CELL

Before his visitor had time to raise any plea of weakness in the story he had just been told, the Governor lifted his hand, coughed, and continued apologetically:

"You are about to say that the capture of Vining was inevitable from the start? That was true so long as he remained on land. But had he been a stronger man mentally he might have succeeded in calming his nerves. Alas, there is always the one 'if' that makes what seems the perfect, clueless crime a failure in the end! Now, it so happens that in the cell next to that occupied by Vining there is a man who has been found guilty of a similar crime, but he committed it in what is perhaps the nearest approach to perfection—if one can use the word in this connection—I have ever heard of."

"Just a moment," said the visitor, as he sipped from a glass of soda-water. "May I ask why you have other condemned men in cells next to crooks and thieves?"

"It is a delicate explanation I am forced to give," responded the Governor. "You see, when an execution takes place, all the prisoners are kept in their cells until it is over. Even this precaution, this consideration for their feelings, however, does not prevent them knowing that the ceremony has taken place. When the executioner pulls his lever the sides of the trap fall with a resounding bang against the sides of the pit. Every man in the prison hears that bang. Now, to-morrow morning I intend to place these fourteen prisoners in their respective and proper grades and cells——"

"And I am here to see that they will not be offended by hearing the bang," interrupted the visitor firmly, as his fingers toyed with his revolver.

"Just so," agreed the Governor. "That is why you have favoured me with your company, which I find very exhilarating, in spite of its menace to my self. But to proceed with my explanation to your question. Whether I am alive or dead the fourteen prisoners will, before their midday meal, be

transferred to the cells which will be theirs so long as they remain. Their present abode is merely, let us say, expedient."

"You excite my curiosity by the mention of the man who almost succeeded in making a clueless trail," commented the visitor. "I presume you will place him among the Intellectuals?"

"I am not prepared to say so. His crime was one of murder. That is a class by itself. But let us proceed to compare his methods with that of cruder persons."

With that the Governor leaned back in his chair and clasped his hands as he took up the story of the occupant of the fourth cell.

When a fox sets out to kill [said the Governor] he uses craft. Harvey Wilkins was a fox.

He had pondered long on his crime; so long that it had ceased to be hideous to him. It was merely a means to an end. He had made up his mind to kill Gilbert Hoey and he had got him into the best position for the purpose. He had balanced his chances so cleverly that he knew that, even if the result of his action was discovered, ordinary investigation could not lay the blame at his door. Third degree methods are not resorted to in England.

A few yards beneath where he and Hoey stood was the white-hot, moving surface of molten metal in one of the factory's cauldrons. They were standing on a narrow platform that ran a few yards above the edge of the huge fire-clay crucible from which the liquid metal would be poured by machinery. The furnaces were roaring. Wilkins had planned it well. They were alone. The workers of the factory had just gone for the night, the staff of night workers were coming in at the gates.

They had halted above the glowing pit, watching the tiny bubbles that shot up to the surface as the gases escaped and the scum arose. Harvey Wilkins glanced at Gilbert Hoey. He noted Hoey's eager features, his intent air. He hated Hoey with all the force of his jealous nature.

They were both engineers, both employed by the firm, both ambitious. They had worked side by side, both in charge of their own gangs of workers. But Hoey was beating Wilkins in the prizes of their calling. It was Hoey who had discovered a recipe for purifying steel, a swifter method for puddling pig-iron. It was Wilkins who kept to the old ways.

The two men were a contrast in almost everything. Hoey was brilliant and erratic; careless in many things, such as keeping his own set of books. He left details to others. Wilkins was deliberate and watchful of details; a plodder who lacked vision.

As he saw Hoey gazing down at the bubbling metal, Wilkins noted that he was resting his arms on the steel rail that guarded the platform. This rail was a sliding one, fitted in a similar manner to the deck rails of a ship. It could be slipped from its socket by the removal of a long steel pin, so that part of the machinery above the casting could be cleaned and oiled when the furnaces were not in blast. Wilkins glanced at the steel pin. His fingers fumbled with it. His eyes travelled to Hoey, who was leaning on the rail intent on the examination of the metal below. The heat came up to both men in waves. Wilkins closed his hand over the pin. Just one tiny pull and he would be free to carry out the schemes he had long contemplated but had been unable to achieve because of his rival Hoey. He pulled at the pin. It came away in his hand.

Down fell the rail, borne adrift by the weight of Hoey's elbows. Down went Hoey, his arms flung wide, his hands grabbing at space and failing to find a hold. His body plunged into the boiling metal. A flame shot up, a blue flame with a white fringe. And that was all.

There had been no cry, no shout of alarm. The whole thing had been so quick that even Wilkins was amazed. It had been so simple that it seemed impossible to believe.

The steel rail dangled idly from the stanchion. The metal bubbled and stirred in the cauldron. There was no more Gilbert Hoey. Not a vestige of him could ever be traced henceforth. He had been obliterated more efficiently than a man blown to atoms. He had been engulfed in a liquid that had made of him nothing more than a shooting flame.

Harvey Wilkins picked up the hanging rail and put it back into its socket. He pushed the steel pin home. He looked about the works. No one was there, the place was deserted. The last of the nightshift men were beginning to come through the timekeeper's wicket on the other side of the yard. Wilkins walked back to his office.

He sat down and drew his handkerchief over his perspiring forehead. He was pulling himself together. As he sat in his chair he heard the hooter sounding, telling him that another casting was about to be made, that another furnace had finished its job. In a few more minutes the molten metal would run like seething silver into the moulds and cool off in time in the shape of rails, ships' propeller-shafts, and other necessities for the world beyond.

Harvey Wilkins felt perfectly safe, if a little nervous. His love of detail had stood him in good stead for this, the greatest risk he had ever taken, the foulest act he had ever committed. There was no one to say that his hand had withdrawn the steel pin that dropped the guarding bar. There was no one to say that Gilbert Hoey had been examining the job. The entrance to the office was on the other side of the building from the men's entrance. Hoey did not come down at night usually. It had been at the suggestion of Wilkins that he had come down this evening. No one had seen Hoey fall to his death. The murder had been complete, clueless, without a trail leading to its author.

"He couldn't have felt it," Wilkins murmured. "The temperature is the highest a furnace can reach. He couldn't have felt a thing."

He kept repeating the last sentence to himself for some time; perhaps as a sort of a salve to his screaming conscience. But now and then he shuddered as he thought of the scene.

The thudding and crashing of the steam hammers, the dull roar of the moving machinery, came to him suddenly, though the noise had been going on since the sounding of the hooter. He stirred himself, took a glass of spirits from a bottle in a cupboard, and began to set about the minor part of his crime. He intended to prove that the man who had thus been blotted out of life had gone from the factory in quite another way and of his own accord. One thing was certain, he told himself, getting great comfort from the reflection: Hoey would never be able to disprove what Wilkins was going to say about him!

Wilkins rose from his chair and went into the small office which Hoey had used. They had separate rooms, but the girl who typed their letters and acted as their joint secretary was always gone for the night before her two

superiors. Wilkins sat down at the typewriter and typed a short note on a sheet of paper. He left the paper in the machine.

Next he took down a cash-book and a ledger and did some figuring on the last pages on which entries had been made. He left the books open. He opened Hoey's desk with his keys and searched among the contents. He found what he sought without much trouble. It was a small enamelled cash-box. Using a key on Hoey's key-ring, he opened the box. It contained a bundle of treasury notes and a handful of silver. Wilkins emptied the contents into his own pockets. He put the cash-box back in the drawer, left Hoey's keys dangling in a lock of the desk, switched out the light, and returned to his own room.

From his own desk he took a shipping company's brochure and put it in the pocket of Hoey's overcoat, which hung from a peg in the passage outside. The brochure was an illustrated one giving the fares and passenger services to and from South American ports. When he had finished these arrangements, Harvey Wilkins put on his own hat and coat and hurried from the office.

He went straight to the house of his employer, the head of the firm. He was admitted on his application to see his employer urgently. In a few minutes he was faced with the man he had come to see.

"Mr. Mynes," he began, acting the part well, "I have come up at once because I have reason to think that you ought to know what has been going on. I am afraid that the news I bring is rather terrible."

"What is it, Wilkins?" asked Mr. Mynes, settling himself in his chair. "Nothing gone wrong at the works, is it?"

"I'm afraid, sir, it has something to do with the works. Do you realise that you have been swindled by Gilbert Hoey, and that he has absconded with the money he drew to pay his men's wages?"

"God bless my soul!" exclaimed the factory owner, jumping to his feet. "It is impossible!"

"I could hardly believe it myself, sir, when I saw what was going on. But it is true. I came to you to-night because the crisis has been reached."

He stopped as the door of the study opened, and on the threshold stood a girl dressed in white. She had dark chestnut hair which, exquisitely shingled, made a fitting frame for her attractive features.

"I'm sorry," she began, seeing Wilkins, "I thought you were alone, father."

Wilkins knew that this was not strictly true. She had come to the study because she thought Gilbert Hoey had arrived. She and Hoey had been on very friendly terms for some time; more friendly than Wilkins liked, for he had hoped to marry his employer's daughter.

"Come in, Ada," cried her father. "Come in and hear what Mr. Wilkins has come to tell me. What do you think? Hoey, the man I trusted implicitly—the man who was carrying out one of the biggest jobs for me—the man—— Words fail me when I think how I trusted him."

"What has he done?" asked the girl.

"Listen to Mr. Wilkins. Go on, Wilkins, and let me have this in detail. I want proof, not suspicions. You say Hoey has run off with the wages money of his men."

"That is what I say, sir. You may remember that a few months ago I took over the books of Hoey at your suggestion, so that they might be brought up to date?"

"I told you to do so. Hoey said he couldn't do book-keeping. He hated book work unless it was connected with engineering specifications."

"That is what you told me, sir. I took over his books. I found finally that it was impossible to make them balance. He had used sums of money for which he could not account. You allowed him to pay the workers on his contracts himself. A week ago I spoke to him about it. He promised to make reparation."

"Why didn't you come to me at once?"

"Because I wanted to give him a chance. I thought he might have been negligent."

"Go on."

"To-day I knew that he had drawn a large sum for wages. The big contract for steel rails and forgings was in his hands to a great extent. He has been

managing the laying of the new railroad. I asked him to come down to the office to-day and talk things over. He came into his office late in the afternoon, but did not come near me. I waited, doing overtime on my own books. His typist stopped work and went home. I called out to him, saying I was ready to go over the books with him. He replied that he would come to me later. Some time passed. I heard him go out. I went into his office. A sheet of paper was in the typewriter. It contained a short message to you, sir. I have left it just as I found it."

"Well, what was the message?"

"It was to the effect that, as he saw no hope of getting a partnership with you, he was taking matters into his own hands, and was going away with the wages. He says that it is useless for you to seek him, as he will never be found."

"And the money?"

"I looked into the cash-box. It was empty. He must have been gone an hour before I went into his office."

"The fool!"

Mynes sat back in his chair and gritted his teeth. Suddenly he rose to his feet.

"He was a fool," he said bitterly. "I trusted him, and I intended to make him a partner. I had not told him so, because I wanted it to be a surprise after he had put the present contract through. Hoey a thief! Hoey a common swindler! Wilkins, you and he were my right-hand men! Well, I'll make an example of him!"

He strode towards the door, then turned and beckoned to Wilkins.

"Come down to the factory at once. I want to go into this matter. I can hardly believe it, but if it is as you say, I'll have a warrant out for his arrest to-night——"

"You will have to be swift, sir. I searched his overcoat which he left in the office. In the pocket I found a shipping list dealing with sailings for South America. I fancy he has laid his plans——"

"He won't get there. I'll have every ship watched; I'll bring him back and send him to prison. Ada, you and Hoey were fairly friendly. Don't let this upset you. I'll deal with him."

He rushed out to get his hat and coat. Wilkins raised his eyes to the face of the girl, who had stood still during his recital.

"I'm sorry to be the bearer of such news, Miss Ada, but it was my duty."

The girl sat down suddenly, clasping her hands in her lap. Her eyes were fixed on Harvey Wilkins's face.

"I don't believe a word of it," she said quietly.

Wilkins merely bowed. He knew that Hoey had been friendly with Ada Mynes, and her disbelief in his story let him see how deep that friendship had been; but he held the whip handle. Time would change her. Circumstances would make her alter her ideas. One thing at a time, he told himself. Hoey had disappeared. That was enough for a day.

He went down to the office with Mr. Mynes. He showed him the evidence he had arranged. He repeated his statements. He advised caution, suggesting that the news need not be published broadcast as it would damage the firm. He went with the factory owner to the police station and laid the information. On the sworn evidence of Wilkins and Mynes a warrant for the arrest of Gilbert Hoey was made out, and the network of police resources began to operate. By telephone and telegraph every port was notified of the disappearance of Hoey. Harvey Wilkins was congratulated by his employer and went home to bed.

That he was a murderer did not disturb him. Who was there to say it had been murder? Who could find the body of a man who had been consumed in a flash of fireworks? The crucibles would be emptied by the morning, the metal would be turned into moulds, into rails, ships' propellers, pig iron—a hundred different matters. Giant rollers would soon be pressing out this particular cauldron's contents into long sheets. These would be rolled up again and pounded by great steam-hammers into the form desired. Gilbert Hoey had disappeared like a puff of smoke. The boiling metal had not only killed him—it had also wiped out every trace of the incident.

The following morning Wilkins went down to the works as usual. On his way he called at the police station to see how far they had gone. The

inspector who had seen him the previous night was not at the desk, but his substitute told Wilkins all the news they had. Hoey's description would be telegraphed up and down the country. His rooms had been searched, and his belongings were intact. He had not been traced.

"I expect he fled when I challenged him," said Wilkins. "He didn't even take time to pack a suitcase. He must have been scared badly."

"I expect so," said the officer drily. "I can't give you any more information, as I'm not in charge of the case."

Wilkins went to his office feeling surer than ever. He had put dust into the eyes of the law. He smiled to think of the police watching ports, railway stations, roads, hotels—looking for a man who would never be found.

Mr. Mynes did not come to the office at his usual time, and Wilkins continued his work leisurely. He was at his desk just before lunch time, when the door of his office opened. Miss Ada Mynes walked in and took a seat. She left the door ajar. Wilkins rose to find a chair for her near his desk, but she waved him back to his seat. There was a strangeness about her he had never seen before. She was all strung up, but she was holding herself in check.

"I came to you because the police can't say what I want to say," she said. "I came to hear about the disappearance of Gilbert Hoey."

"If I can be of any help, Miss Mynes, I shall be glad; but the police have the matter in hand, and your father——"

"My father knows I am here. I told him I was coming."

"If he gave you permission that is all right, Miss Ada. What is it you want to know?"

"Everything."

"I can tell only what I myself know."

"That may be enough."

The tone struck him. It was antagonistic, but she was nervous and was trying to control herself. Her eyes were on his face—eyes that seemed to be gimlets. There was no escaping them. He sought to pacify her, beginning to tell once more the story he had told the previous night. She waved it aside.

"I have come to ask questions."

Again that tone—strange, incisive, charged with meaning. He suddenly felt the sharpness of it. It was the tone of a terrier; without snarl, without growl; the tone of a terrier when it is about to worry. Persistent and annoying.

"I told you yesterday I did not believe your story," she said in a level tone. "I repeat that now. Gilbert Hoey is no defaulter."

"You were friendly with him, Miss Ada; but that does not alter facts."

"Why do you say 'were'? Why speak in the past tense?"

He saw the grimness with which she thrust the question at him; but he smiled. He knew that she felt the situation keenly. She was fighting for Hoey's reputation. He would be easy with her, since she was a woman; a woman whom he wanted in his own time.

"I used the past tense because I hardly think you can remain friendly with him after this. Your father would object, I fear."

"Leave my father out of it. I was yesterday more than friendly with Mr. Hoey."

"Indeed. I did not know it had gone so far."

"That is why I am here."

Again the biting tone gave him the impression of a terrier. It was as if a household pet had become an enemy. He saw a strain of her father in her then; the strong, determined forcefulness of the parent was coming out in the child. He admired her for it.

"Ask your questions," he said, leaning back in his chair.

She drummed her fingers on the desk for a moment, looking at him from under her eyelashes.

"When Mr. Hoey came down to the office last evening, did he go into the works?"

"No."

"Sure?"

"Positive."

"He told me you had invited him to look at the cauldron."

"I cannot help what he told you, Miss Mynes."

"We have proof that he did not leave this town last night."

"Who has proof?"

"The police. I have been with them all night. Mr. Hoey did not go by train. We inquired at the booking office. He did not go by car. His own is still in the garage. No car was hired. We have been to every car owner, every hirer there is."

"If he did not leave the town he must be about somewhere. Let the police find him."

There was a sneer in the taunt he flung at her—a sneer that had been his natural retort.

"Was there any need for him to steal the money?"

"His bank balance was not large, I believe, Miss Mynes."

"You know that?"

"He made no secret of it."

She bit her lip. The terrier in her attitude had received a check; but she tried another grip. Just like a terrier.

"Mr. Hoey told me yesterday that he was coming down to see how a casting was going on. You say he did not look at any casting?"

"That is what I have told you."

"The furnaces were preparing a job of which he was in charge?"

"Yes."

"He was expecting to leave for the Continent in a few days to superintend this job's delivery?"

"Yes."

"The money in his care was for payment of his men who were going with him?"

"Yes."

"It was not a large amount?"

"It was over a thousand pounds. There were other expenses he was to clear off—quite large enough to be a temptation when I had challenged his books."

"You expected to get this job?"

"Your father preferred him."

"You were rivals in the factory?"

"Not rivals; co-workers."

"You told me once you were rivals."

"When?"

"The day you told me you were in love with me; the day I told you I did not desire your affection."

"Oh, I may have said that in a moment of disappointment at finding you liked Hoey."

"You asked my father for a partnership?"

"Yes, and he declined—for the present. What do you mean by raking up these things?"

"I want to prove that you were rivals."

"And then?"

"I am seeking a motive."

The terrier was there openly, defiantly, frankly, facing the fox that had covered his tracks. There was no use hiding the situation longer. It was a duel between them. Her eyes told him more than her words. Had she been a stranger, a detective, he would have shown her the door. But she was the daughter of his employer. He became frigid.

"A motive for what?" he demanded.

"A motive for Gilbert Hoey's disappearance."

The sudden suspicion that had flamed in his mind died down. She was floundering, he told himself; floundering in her use of words because of her

anxiety for Hoey. He felt that he could handle her. Was she not, after all, only a woman? She would forget Hoey in time.

"I see," he said gently. "You are seeking a motive for his running away."

"For his disappearance."

"It is the same thing."

"Perhaps."

"Do you mean to suggest any other explanation?"

Now was his time, he thought, to bully her into reason! They were alone. He would frighten her, as she had almost frightened him. He knew he was safe. The cauldron of molten metal would tell no tales. The fox is seldom afraid of one dog. But he runs from a pack. This girl was hysterical, he told himself; she needed to go home and rest.

"I am very busy this morning, Miss Mynes. If you don't mind I would suggest that you take things easy and do not worry. Hoey may not have been worthy of your thoughts. And really you ought not to come here and question me. It is most unusual——"

"Many things are unusual. But they are sometimes necessary."

"What do you mean?"

"You will learn in time. I have a few more questions to ask."

"Very well. Ask them. But I shall tell your father I have been interrupted——"

"Has the metal which was in the cauldron last night been poured off?"

"Yes, by the night gang."

"So that the machinery above would be oiled and cleaned to-day?"

"I gave orders for it to be done this morning. I expect it has been attended to. We are very busy."

"It has *not* been attended to."

"Why not?"

"The police decided that it was to be left as it was. No workmen have been near it."

"Indeed?" cried Wilkins; and there was, for the first time, a hint of alarm in his tone.

The girl leaned across the desk. Her mood was that of the terrier more than ever; a terrier that has got a hold at last.

"If any sand or grit were in that cauldron with the metal it would be skimmed off or the casting would be spoiled, would it not?"

"Yes, but what——"

The answer was a movement by the girl. She slammed a small package on the desk and separated the blackened, ruined fragments as she raised her finger. The terrier had the fox in a corner.

"See this? It is the remains of a meerschaum pipe in an asbestos case which I gave to Gilbert Hoey yesterday evening before he came down here. This was fished out of the cauldron."

Wilkins gave a stifled cry. He felt his feet slipping, but he was crafty.

"He may have thrown it into the cauldron!" he cried.

"But you said he did not go to the works! You said he never left this office!"

There was a silence. Wilkins knew then that he was faced by a girl who was fighting to avenge her lover with all the subtlety of a woman's nature. She was more than terrier then. But she had no proof. This was his trump card. She had no proof. It was merely intuition that had prompted her. He faced the terrier and steadied himself with an effort.

"He may have gone without my seeing him," he declared quickly.

For a moment the terrier lost her hold. But she came back to it.

"The police want your finger-prints!" she cried, jumping to her feet.

"What for?" he countered.

"Do you not see on this asbestos case are Gilbert Hoey's initials in platinum? I gave him the case. It takes a greater heat than that of molten iron to melt platinum! He would not throw it away. He came down to look

at the casting. He stood on the platform above the crucible. There is a sliding bar there, held by a pin. On that pin are finger-prints. They are his or yours. No one else has been there. The police have taken a print of these fingers, to compare with the prints on the typewritten message."

"You can prove nothing!" he cried. "He fell in! It was an accident! It was an accident!"

The fox was at his last ditch; a safe one, he was sure. But the terrier pursued him, knowing she was near victory.

She ran to the door and threw it open. There, in the next room, stood her father, the police inspector, and another man who was busy with a notebook.

"Our talk has been taken down in shorthand," she cried. "The defence you put up could not have been torn down by ordinary methods, so I came alone to you. I accuse you of murder!"

The fox had still his last defence.

"It was an accident!" he cried. "You cannot prove anything!"

"You were seen!"

Harvey Wilkins stared at his accuser, then at the inspector; at the man who was busy with his pencil, at his employer. He dropped into a chair.

"In that case," he muttered, "it is useless to deny it. I confess. I pulled the pin and let him fall into the cauldron."

A cry from the girl startled him. She had played her trump card. It had broken down his defence. The inspector stepped forward. Wilkins raised his head.

"Who saw me?" he asked hoarsely. "Bring your witness. Was it you?"

"No," she answered. "God!"

The fox had been tricked.

THE STORY OF THE OCCUPANT OF THE FIFTH CELL

"Women are certainly the deuce," commented the visitor as the Governor dramatically ended his story of the fourth prisoner. "So far you have proved that my contention is right. A man ought not to have anything to do with them."

"And yet," replied the Governor, "men can make errors even when they think they are most safe. My experience has shown me that very vividly. And, since you may be pained at the part women have played in the tales I have already related to you, I commend to your attention my next story, which deals with the occupant of the fifth cell."

"I shall be happy to hear it," said the visitor.

I intend to introduce to your notice (said the Governor) a remarkable young man in the person of Frederick Clausen. We will find him seated in a cheap coffee-house in one of the northern districts of London. His elbows were on the marble-topped table at the moment I have in mind, and he was looking up into the face of the not too immaculate proprietor of the cheap restaurant.

"Yes," he said loudly, "the money was taken from the bank to-day and is safe in a black japanned box in the boss's escritoire. I myself put it in his study. There are two thousand pounds in notes alone, and——"

"Not so loud, Mr. Clausen," hastily interrupted the restaurant-keeper in a whisper, as he glanced over his shoulder. "Not so loud."

But Frederick Clausen took no heed of the warning. He laughed and threw back his head, then took a sip of coffee as his eyes travelled round the small, dingy room.

"It would be an easy haul for any robbers," he continued, "but there's nothing to fear on that score. We start paying out to-morrow at nine o'clock. I thought I'd let you know, so that you could tell anybody who hasn't been notified. Two thousand pounds, mark you! Fancy all that money lying in a little japanned box in the study!"

His eyes looked over the rim of his cup. Two men sitting at a table within two yards of him were busy looking at the moving traffic in the street. They were typical of the residents in the district—at least, a certain proportion of the residents—drifters, nondescripts. The peaks of their caps were drawn over their brows, their clothes hung loosely on them; yet their hands were soft and white. At other tables sat other people of similar type. There were derelicts there, and workers too, some furtive-eyed, some weary, some crooked-mouthed.

Frederick Clausen put down his cup and rose to his feet.

"I'll be going back home," he said. "To-morrow means a hard day's work—paying out all that money."

As he moved towards the door the restaurant-keeper came with him and laid a hand on his arm as they stood on the front step.

"You're getting on well, Fred," he said in a low tone, "and I'm glad to see one of the boys of the district making good. It isn't often you look in here; but you oughtn't to speak so loud about that money. You're forgetting what you ought to remember—that there's always someone sitting about. You know what I mean!"

"Oh, was I speaking too openly? I'm sorry."

"I'm saying nothing, Fred, except this. If I was you I'd shift that box of money from the study when you get back. I can't stop people coming into my shop for a cup of coffee so long as they behave themselves; but I'm giving you a hint. See? So-long."

He turned and went back to his frowsy counter. Frederick Clausen shrugged his shoulders and walked smartly along the grim street, his lips set in an equally grim smile.

"The old fool!" he muttered. "As if I didn't speak loud on purpose! Does he think I didn't know those two crooks were drinking in every word? Well, I'll

bet it comes off all right."

He felt like laughing out loud, so pleased was he with himself. It was late in the evening, but he had spent the time to advantage. Was he not, in the eyes of his employer, above suspicion?

Turning into a quiet street, he mounted the steps of a tall, narrow house and let himself in with his latchkey. He shot the bolts of the front door with considerable force, spoke a cheery word to a maid who was finishing her dreary duties in the kitchen, saw that she had a candle to light her way to her bedroom, then put out the hall light and went to his own apartment. He undressed and jumped into bed at once.

But if Frederick Clausen went to bed he did not go to sleep. He did not want to sleep. In a few minutes he heard the scullery-maid mount to her room. A deep silence pervaded the house. Clausen lay still for nearly two hours, smoking an occasional cigarette to pass the time. It was long past midnight before he decided to move. He got up, put on a dressing-gown, took a small phial from his coat pocket and, with a handkerchief in his hand, opened the bedroom door. All was still.

He crept along the corridor to a door at the end of the passage and tried the handle. It turned easily. He shook some drops of the contents of the phial into his handkerchief and slipped into the room.

In a short time he came out again and went to another bedroom. This time he listened at the door some time before he entered. Then he slipped in, and came out again noiselessly.

He crept up a short flight of stairs and soaked his handkerchief from the phial before entering a third bedroom half way to the next floor. When he returned to the semi-darkness of the corridor he stood still, his face expressing satisfaction, his nerves jumping just the slightest.

He stood in the corridor and breathed deeply, but smiling to himself. In his hand he held the small phial and the handkerchief. In his head he held the scheme he had evolved and was now executing step by step.

What he had just done was the second stage of his plan, and both had been remarkably easy—easier than he had anticipated. He had entered the bedroom of his employer and had laid the handkerchief, soaked with chloroform, on his face. He had done the same with his employer's wife,

with their son—a young man about his own age—and with the housekeeper. The servant who slept at the top of the house was far enough removed from the scene of operations to be dispensed with as a danger.

Clausen had gone to this trouble because he wanted to eliminate risk in carrying out his intention of robbing his employer, an intention he had harboured for some time. Robbery as an idea was old, of course; but robbery by his method was sufficiently original, he calculated, to place its author beyond suspicion. He had used chloroform merely to intensify the sleep of those who might disturb his work.

There still remained the third and final stage of his plan. He put the phial, in which were only a few remaining drops of the drug, into the pocket of his dressing-gown beside his handkerchief, and went downstairs towards the study on the ground floor back. The curtains of the room were open, and the fading moon gave him all the illumination he needed. He knelt beside the *escritoire*, opened it with a key, and extracted a black japanned box. He opened the box and gazed on the money.

It did not take him long to extract the major portion of the notes, which were done up in handy bundles. Some silver was in paper bags. He took most of it also; but he did not touch several cheques and postal orders which lay in a drawer beside the notes. Cheques and postal orders are traceable. Treasury notes, unless the owner knows the numbers, are not; and Clausen was well aware that his employer did not know the number of a single note.

He was gathering up the money when something soft brushed against his hand. He started, but next instant smiled at his alarm.

"Hullo, puss," he whispered, as he stroked the large black cat that was rubbing its head against his leg. "A black cat for luck!"

He tickled the cat's ears, then pushed the family pet away and completed his theft. He closed the japanned box and put it back in the *escritoire*, then wiped the metal with his handkerchief. He removed his finger-prints from the *escritoire* in the same way, and went back to his room. The cat came with him, purring and pleased as it rubbed itself against his ankles.

It wanted to follow him into his bedroom, but he pushed it out into the corridor and closed the door. His next act was to conceal the money.

This part of his scheme was also well prepared. From the fireplace he removed a brick, which he had loosened by degrees during his leisure hours, and in a cavity behind the loose brick he placed the notes and silver. As he replaced the brick a small fall of soot dropped on his hands. He shook most of it off into the fireplace, but, as some grime remained, he went to the bathroom and washed the smuts off. He was not taking any chances. Everything had been flawless in his plan so far, and he intended to be sure that the high efficiency continued to the end. Frederick Clausen was very thorough.

When he had cleaned his hands he returned to his bedroom, closed the door, threw his dressing-gown on a chair beside his bed, and turned in. He had finished the work he had set himself. The phial of chloroform and the handkerchief he had used could not be got rid of until the morning. For the present they were safe in his gown pocket.

Clausen was quite at ease regarding his theft. He was not an habitual criminal by any means. He was private secretary to Mr. James Holson, and he therefore knew all about Mr. Holson's affairs. The latter was what was known as a welfare worker, who gave his spare time to help those who desired to help themselves.

James Holson was well known in the charitable world, or, rather, the world of charities. He was founder and treasurer of one of the largest welfare societies in England—a society of the club type, which accepted contributions from its members and disbursed the funds on certain days of the year to the investors. Mr. Holson made no profit for himself out of his club-society. He was content to preach the duty and virtue of thrift. He handed out the savings from his office on the ground floor of his house in Euston district with the same smiling cheerfulness as he accepted the contributions.

Frederick Clausen was one of his "finds"—a young man of the lower working-class community who had aspirations, and ambition. He too was a member of the society, and he had become Holson's secretary because he was a young man who had shown a desire to "get on." Through his hands passed most of the details of the organisation. He lived in his employer's house, capable and trusted.

It was Clausen's desire to succeed in life, and this very ambition led to his present crime, strange though that may seem. His salary was small—too small, he believed, for his abilities. He had often asked for an increase, but had as often been told that an increase was not possible for the time being. To Clausen this was a grievance. He did not care that charitable societies such as his were incapable of paying large salaries to their staffs. He did not argue that the organisation was limited in funds by its very objects. But he did care that money in a lump sum was a very valuable possession, and he argued that to possess money enough to fill his dreams was worth a small risk. In him his ancestry warred with his lately acquired respectability. He felt his opportunities limited. He was not perhaps morally strong enough to step outside the limitations and go farther afield. His quarrel was that his limitations were limitations. Thus his alleged grievance gradually became a vague sense of injustice. There are many similar cases. Temptation fed on mistaken ideas grows strong. Thus the sapling became an oak.

So long as there is temptation there will be crime. So long as there is crime there will be law. So long as there is law there will be law-breakers. Rectitude and guiltiness are not separated by a straight line, as is commonly supposed. They are segments of a circle. Frederick Clausen had passed the first two segments, and now, having taken the money from the jannned box, had completed the last arc of the circuit.

He had approached his act as do practically all who, for the first time, set out to beat the law. That is to say, he approached it with acumen and knowledge born of considerable study. The average burglar who has adopted theft as a trade goes straight to his objective, and retreats swiftly from it after accomplishment. The amateur criminal is much more elaborate. He believes that he has the wit to do what others have failed to do.

Clausen was not content to steal and wipe out all traces of his trail. That, to his acute mind, was but to leave the structure of his plan half finished. He had gone much farther than that. He had seen to it that a burglary would be provided to send the authorities on a false scent.

His knowledge of the district guided him towards the keystone of his crime and supplied him with an alibi that seemed proof against suspicion. He had called at the dingy coffee-house deliberately to give information to ears that

were always open to receive and act on stray news. To this mean eating-house came characters he had known in his unregenerate days—men who trod the shady paths of life, youths who lived by lawlessness. Clausen himself was of the locality. He knew the suspects who frequented the side-streets and roamed the dim by-ways, seeking like wolves, the opportunity to plunder.

He had timed his visit to the restaurant with care, and had sat at a table reading his newspaper and exchanging a spasmodic conversation with the proprietor, knowing that the visitors would come who could make use of his words. He was perfectly aware that the two men who sat at the next table were thieves, convicted and hardened in roguery. He had spoken for their benefit. The chances were a thousand to one that they had inwardly smiled at his seeming innocence as they listened to his information. Simple people are the carriers of news. What burglar could turn his back on a proposition where the details were handed to him so guilelessly?

So Frederick Clausen argued, knowing the district and the men. Their minds were less subtle than his. They would act true to type. He had left something in the japanned box for them, a reward for their trouble. They would take the postal orders, even if they did not take the cheques, and thus they would be convicted.

As he lay in bed, Clausen went over every point. He had made things easy for the burglars. He had undone the catch of the study window, he had left the japanned box unlocked. Even if they did not come, he was still safe. The chloroform he had used on the occupants of the house would work off before morning. They would have heard nothing, and the released window-catch would tell that a burglary had been committed from the outside.

He estimated that the burglars would come within three hours after he had taken the money, if they came at all. The time passed slowly, and he was conscious of a tinge of anxiety. He heard the public clocks strike the hours. Dawn was not far off when his slumbering senses were jerked into action. Somewhere in the house a bell was ringing.

He sat up in bed. What was the bell? With an exclamation of irritation he lay down again.

"It's the scullery-maid's alarm clock," he muttered. "I'd forgotten she uses one to awaken her. I wonder what is the time."

His hand was under the pillow, searching for his watch, when he suddenly became tense. The bell had ceased to ring, but another noise came to his ears. It was from the ground floor. At first the sound was a confused jumble, then what seemed to be the smashing of glass and the rumbling of men's voices. Clausen's heart beat quickly. The burglars had arrived. His theories had worked out after all. Was this not proof of his ability to gauge men and their actions accurately? A glow of triumph swept over him.

And then, out of the stillness that followed the noise, there came other sounds. He heard feet on the corridor pass his door. He lay down and drew the bedclothes up to his chin. Voices were talking. Someone was knocking at a door. More voices added to the confused sounds. He heard the sound of feet on the corridor again—more feet, heavy feet. Someone knocked at his door. He lay still and did not answer.

The knock was repeated. A voice called his name. He did not answer. The handle of the door turned. A light flashed. He lay still, breathing regularly, feigning sleep.

Fingers touched his shoulders and shook him. He opened his eyes, pretending to be startled, and called out in well-acted alarm:

"What's that? Who are you?"

"It's all right, sir," said a policeman who was standing at his bedside. "You've had a visit from burglars. We came in through the study window after them, and the maid told me this was your room. You're Mr. Holson's secretary, aren't you?"

"Yes! Burglars! In here! Where are they? What's to be done?"

He was sitting up now, rubbing his eyes, running his fingers through his hair, apparently dazed.

"It's all right, sir, don't be alarmed. The burglars didn't come this length _____"

"Burglars! The scoundrels! It's the money they're after—the money in the box—two thousand pounds—the society's money to be paid out this morning. This is terrible."

"Better get dressed quickly, sir. I've awakened young Mr. Holson and told him to waken his father. You must all sleep soundly in this house not to have heard us. Will you please come downstairs quickly? We want your information."

"I'll come now."

Clausen leaped out of bed, intending to snatch up his gown; but as he put his hand out he hesitated. Snuggled on the top of the gown as it lay on the chair was the lazy black cat, the household pet, curled up on the soft cloth which formed for it an ideal resting-place.

The black cat for luck! Clausen's mind was quick to take advantage of the cat's choice of a bed. The dawn was beginning to struggle through the curtains, giving a strange coldness to the room. He shivered and turned to the policeman.

"I might as well dress. A secretary's work is never done, and I may as well get up for the day. Will you give me a few minutes?"

"Oh, I'll wait, sir. My mate is downstairs on guard. We'll want Mr. Holson and you to go over the study with us. Come down when you are ready."

The constable moved into the corridor, leaving the door ajar. Clausen heard his employer's son calling to his father, who answered drowsily. The house was awaking jerkily. Clausen began to dress, smiling towards the black cat asleep on his gown. What could have been better? The animal must have slipped into his room when he was washing the soot from his hands. He stroked its neck as he passed. His gown was safe under that cat.

As Clausen dressed hurriedly, he heard Mr. Holson and his son stumble along the corridor on their way downstairs. The policeman was with them. Mr. Holson was talking in half-awake, grumbling accents, coughing and groaning as he moved. Clausen did not wash himself, nor shave. He hurried down at their heels, pulling his jacket on as he went.

All the lights in the house were lit by this time. The servants were in the hall. Clausen joined the investigators. He found his employer at the foot of the stairs, on the brink of a collapse, supported by his son and the policeman.

"Mr. Holson," cried Clausen, "this is terribly unfortunate, sir! How can we face the club members? Don't you worry, sir. We may be able to arrange a loan from the bank——"

Mr. Holson waved his hand feebly and groaned.

"Mr. Holson is a bit seedy," explained the constable. "I think he had better get back to bed—or, wait, there he goes—better lay him down here and fetch some water. He's going to faint."

Clausen ran to get water, and when he returned they were carrying his employer back to bed. They did not take him into his own bedroom, however, but into Clausen's, which was the nearest at the top of the stairs. They laid him on Clausen's bed, and Clausen bathed his brow and hands.

Holson's son sank into a chair and stared vacantly around. Clausen was the only person besides the policeman who kept his head.

"It is not surprising that Mr. Holson, poor man, takes it like this," he said sympathetically. "Two thousand pounds gone! I hope you have got the burglars, constable. Have you found a clue? How many burglars were there? It is a wonder they did not kill us in our sleep. It must have been men who knew we took the money from the bank yesterday——"

"Oh, that's all right, Mr. Clausen," said the policeman. "We've got the best of clues. We've got the burglars—two of them."

"Is that so? Ah, that is smart! Caught in the act, I hope. And the money—did they have time to dispose of it, or have you recovered it too?"

The policeman was paying attention to Mr. Holson, so that he did not answer then. The philanthropist was showing signs of recovery and had opened his eyes, then tried to sit up.

"Be careful, sir," cautioned Clausen. "Take it easy. Everything is all right. The constable says the burglars have been caught. Did you say you had recovered the money, constable?"

"That's a bit that puzzles my mate and me," replied the policeman thoughtfully as he wiped the inside of his helmet with his handkerchief. "We've got the burglars all right. The money wasn't taken by them, sir, because me and my mate got them before they opened the escritoire. And

yet, when Mr. Holson took the box out just now, most of the money was gone——"

"They must have hid it before you came on the scene," cried Clausen.

"We were on the scene practically all night," said the constable. "You didn't know, Mr. Clausen, that Mr. Holson informed our station yesterday about the money being here. He asked us to keep watch during the night. There are bad characters around the district, and me and my mate were on special duty. With Mr. Holson's consent we fixed a trap last night. You didn't know about it, because you were out until late in the evening——"

"A trap!" cried Clausen. "What was the trap?"

"We laid down an alarm bell that rang in Mr. Holson's bedroom the moment the burglars stepped over the window-sill of the study. In this way he was to know if, and when, any burglars came. In the meantime we were to keep watch from outside—you know, patrolling about in our rubbered boots. The idea was that the bell would bring Mr. Holson down with his son, and we would have the thief, or thieves, back and front. Well, the bell rang, but nobody came down. Did you hear the bell, Mr. Clausen?"

"No," replied Clausen, lying coolly. "I did not hear any bell."

"That's funny, for Mr. Holson and his son say the same thing, yet me and my mate heard it from the lane at the back of the house. And the housekeeper says she did not hear it either. We had a lot of trouble to get Mr. Holson and his son awake, and the housekeeper too. They've all got headaches and—it's funny."

He put his helmet on carefully, looking from one to the other. Frederick Clausen stood motionless, the dripping sponge in his ice-cold hand.

The policeman's eye wandered round the room, resting finally on the fat, black cat sleeping on the dressing-gown on the chair.

"Everybody seems to sleep well in this house," he grinned. "Even the cat. And a cat is generally scared of us when we enter a house. This one is unconcerned——"

He stepped to the chair and laid his hand on the animal, stroking it gently.

"Look here," he said. "This cat has its nose stuck into the pocket of the gown——"

His laugh ceased suddenly. With a jerk he lifted the cat from its soft bed. It hung dangling in his grip, limp and unconscious. A faint, not unpleasant odour drifted through the room.

Next moment the policeman dropped the cat and plunged his hand into the pocket of the gown, bringing forth the handkerchief and the small phial, the cork of which stuck awry from the neck.

He turned his eyes on Frederick Clausen; and Frederick Clausen knew that, in spite of all his precautions, in spite of legends to the contrary, the black cat had brought, not luck, but evidence against him which was at once undeniable and convicting.

It was a matter of detail from the suspicion to the search of the room, the finding of the stolen money, and then the charge. After that, the cell.

THE STORY OF THE OCCUPANT OF THE SIXTH CELL

"And *now*," said the Governor as he took a sip of the whisky and soda that was near his elbow, "we will continue our examination of criminals, and their personal strengths and weaknesses, by going on to the next story, if you will permit."

"Go on," said the visitor.

"Before I do so," said the Governor, "might I invite you to make yourself more at ease? You have your overcoat on, and these gloves you are wearing ____"

"The overcoat may be discarded, but not the gloves," smiled the visitor, who pulled off his coat with a quick movement that surprised the Governor by its rapidity. "I can shoot quite as well with my gloves as with bare hands. And I notice that your desk is of highly polished mahogany."

"I was thinking of your personal comfort, I assure you," returned the Governor. "As for any finger-prints, a man of your courage would not allow a small matter like that to stop him——"

"Your diagnosis is right in that instance. If I thought it worth while to take off my gloves I would do so. I don't. Come, the night is passing and you seem to want to talk for some time. Why mention my gloves?"

"The sight of kid gloves reminds me of the case of Daniel Callow, whose story I am about to give you."

The Governor slipped a throat tablet into his mouth.

The case of Daniel Callow (he said) leaves me in a quandary. Ought he to go into the Intellectual section or into the Intelligent grade? Perhaps you will aid me to determine.

Consider Daniel Callow just in the act of closing the heavy door of the bank safe and switching out his electric torch. He put the torch into his pocket. After listening for a moment, he lifted the handbag in which he had packed the loot he had just stolen and stepped towards the door. He was wearing kid gloves. On his feet were goloshes drawn over his shoes. He opened the door and looked out. There was no one about. He closed the door behind him softly. Next moment he was walking away with his loot.

It had been easy. It had been simple. It had been without a hitch. He boarded a bus and went home.

As he entered the semi-detached, bijou, suburban residence of which he was tenant, the dining-room clock struck eight. Daniel Callow smiled to himself. He was home on the stroke of the hour, as he had been for a week. He heard the maid setting his supper in the dining-room. She came out as he closed the hall wardrobe in which he had put his bag and overcoat.

"Did you clean the aerial, Annie?" he asked.

"Yes, sir. I've got it as bright as a new wire, but I didn't have time to wind it up."

"I'll do that after supper. Have the rose-trees come?"

"Yes, sir. I laid 'em out on the plot where you dug the holes for 'em."

"That was right. I think you can go now, Annie. I won't require you any more to-night."

He heard her go out by the back door while he was at supper. When he had finished eating his meal he rose and pulled on a pair of heavy boots. He went out to the garden and wound up his aerial. He took out the bag of notes and silver, extracted a handful or so of the latter currency, and deposited the bag in one of the holes in the rose-plot. On the top of the bag he planted a rose, stamping the bush well down. He planted others also. This work had to be done before darkness, but it did not occupy him more than ten minutes. After this he returned to the house, took off his garden boots, pulled on a pair of slippers, and lifted his head-phones. The time signal was just being broadcast.

Now, of the three types of criminals, we may take it that the lowest are those who become law-breakers because it is their instinct. The next above

them are those who, while not making a habit of crime, side-step once or so. Then there are those who are among the Intellectuals, the professionals. In this class are those who have never been caught. Daniel Callow was trying to graduate from the second to the top class in one step.

When a man belongs to a fast set, and spends his money as if his annual income was a month's salary, he is heading for one of two places—the Bankruptcy Court or the debtors' prison. A bank clerk cannot live like a landed proprietor with immense wealth; but it was "the thing" in the set to which Daniel Callow and his wife belonged that responsibility should come after pleasure.

Callow had married his wife, Irene, because she belonged to the set. She never knew what salary he received at the bank. She never asked. The night-club life was what brought them together. It held them together. During the day Daniel was at his counter at the bank. During the night he and Irene were generally at banker with a count. In their club, counts were common and honourables were not even remarked on. Debts were usual; but there was this difference. The debts of the counts and the honourables were paid when pressure was applied. They had means. Daniel Callow had none.

It was because he saw the Bankruptcy Court or the debtors' prison in front of him that Daniel Callow had thought out his scheme. For him it was simple. To an ordinary burglar it would have been daring.

There was no man in the bank whose efficiency was greater. He had also earned a reputation for punctuality that was a criterion of the establishment. Every morning he was at his place before the other clerks, even before the manager. The keys of the safe were deposited every evening by the manager at the local police station. Daniel called for them every morning, and had the books and ledgers out on the desks by the stroke of the hour. What was easier than to take a wax impression of the keys as he handled them? There was only one that mattered, and it Daniel had left in the safe door. This was part of his plan.

Sitting with his head-phones on, by his fire, Daniel Callow smiled as he thought of the reputation he had earned. How was the manager to know that he had earned it with a purpose in view? He had been early every morning so that his great idea might come to fruition.

The main part of the plan, however, was that which dealt with covering his trail. He had advised Irene to pay a visit to some friends of their circle who had rented a house at the coast. Irene never asked anything about money so long as Daniel provided it. She did not bother about finance. You can find her type easily enough. The midnight set don't trouble about the next morning. They have no next mornings. So, from the whirl of the West End dance-club, Irene went off to another kind of whirl at the seaside. Daniel stayed at home and went to the bank as usual.

During Irene's absence he came home every night just in time for supper. He dined at the club about six. He reached home about eight. The maid then went off duty—the plan on which he and Irene had agreed. Every morning Daniel went to the bank at his usual hour, or, if anything, slightly earlier. He had that wax impression of the key to get. He got it. After that the remainder of his idea was simple.

He was under no disillusionment as to what would happen when the burglary was discovered. He knew that detectives would be called in. He knew that there would be an inquiry. There might even be a search. Callow was no professional thief. He did not attempt to run off with the swag. He had nowhere to run to, for that matter. He knew no "fence" who would hide it. He wanted no accomplice. Alone in the house, he had thought of the rose-bed in the garden. Even if detectives came to his house? He would sit tight and watch his roses grow. Ah, there was a brain for you!

Theoretically he was right. The first desire of the ordinary criminal is to escape, to flee from the scene of his crime, and to hide his proceeds in a place some distance from where he himself lurks.

Daniel Callow reversed both these ordinary rules, which are so well known to the police. He not only kept his loot in his garden, he went a step farther. He discovered the burglary for the benefit of the staff next morning.

When the manager arrived, he was told how the keys of the safe were found in the door, how the safe had been rifled, how several thousands of pounds had been taken, how Daniel Callow had sent for the police at once. The manager complimented Daniel, whose story was backed by the cleaners.

The police took down statements, examined the safe door, the keys, the door knobs, the floor, the windows. They did not find a clue. The deficiency

in cash was made up by hurried loans from other branches of the bank, so that the public might never guess a theft had taken place. The staff was sworn to secrecy.

In the afternoon, every member of the staff was called in turn into the manager's room. When Daniel Callow was sent for, he entered without fear.

Next to the manager sat an elderly man, who was introduced as Detective Morat. Daniel told himself that he had never seen anyone more unlike a detective. Here was no rat-faced, keen sleuth. Morat had a big reputation, but he confessed, after hearing Daniel's story, that the whole thing was a mystery. Daniel had expected to be put through a cross-examination. Morat did not bother with any cross-examination. He merely sat smiling, his big face beaming with kindness.

When he left the bank that night, Daniel Callow did not go straight home, but called at the night-club. He had a hand or two at cards, listened to the latest stories of the set, indulged in a few dances, and then went his way. The maid was waiting for him, though it was long past his usual time of arrival.

"A gentleman has been here for you twice," she announced.

"What was his name?"

"He wouldn't give any."

"What was he like?"

"Looked like a policeman to me. He asked when you came home last night, and when you usually came."

"You told him, didn't you?"

"Yes, sir."

"That's right. Sorry I'm late, Annie. You may go."

When the maid was gone, Daniel Callow sat down and began to think. Was this part of a game the police were playing? Did they suspect him? This was the beginning of the period he had anticipated, the period of suspicion and investigation. Probably every other member of the staff was undergoing the same thing. He went over his acts, and came to the confident conclusion that he had nothing to fear. If the police suspected him, why did they not

come and search his house? Even if they did——? He could wait his time. The money was safe enough under his rose-tree.

The following morning, as he stood behind the counter of the bank, he saw the thick form of Detective Morat enter and go through to the manager's office. In a little while Daniel was summoned to the inner office. He went without a tremor.

"Mr. Callow," said the manager, "we want you to tell us again just how you came to discover that a burglary had been committed. Detective Morat is not quite sure of one or two points. He is correcting the statements of the staff which were made yesterday."

Daniel told them once more, word for word. He had his evidence all ready for them. The cleaners could back him up. Detective Morat sat smiling as he listened.

"What time did you get home that night?" he asked.

"Eight o'clock exactly."

"Did you stay in all evening? Didn't you go up to your club?"

"I stayed in. I was listening to the broadcast."

Morat smiled again and rose to his feet.

"I've an idea the cleaners must know the man who did the job," he said. "By the way, Mr. Callow, that was a fine programme we had on the wireless that night. I've got a one-valve set at home, and I heard Lord Halford's speech from the London studio as clear as a bell. Scientific stuff. Good, wasn't it?"

"You must be mistaken," replied Daniel Callow coldly. "There was no such speech the evening you refer to."

Detective Morat looked disappointed.

"Maybe it was the previous night," he murmured. "All right, Mr. Callow. We won't trouble you again."

Daniel went back to his counter, and his eyes glimmered as he took his stand.

"The fool!" he muttered. "Calls himself a detective, and tries such a clumsy one! He wanted to see if I was really listening-in. Oh, and that's what they

call a first-class detective!"

He went home later than usual that evening, for it was the maid's night off and he would have found no meal ready for him. He dined and supped in the West End.

When he arrived home, a strange sense of uneasiness swept over him. This sense struck him as soon as he switched on the hall light. He was suddenly seized with the suspicion that the house had been entered.

He went into the dining-room. All was in order. He went through every room in the house. Nothing appeared to have been disturbed, yet he knew someone had been there. He could have sworn this, though he could not have proved it. He examined every cupboard, looked at the carpets, watched for the slightest disarrangement of the beds. He saw no sign of strange hands, yet every cupboard, every carpet, every bed shrieked a warning at him.

Was this needless fear? Was it super-nervousness? Daniel Callow was too blasé to be afraid, too confident to be nervous. He experienced no pricks of conscience. He had planned the theft too carefully to leave a clue, but his home had been searched. Who had done this? There was only one answer. Morat!

He hurried out to the garden. The rose-plot was undisturbed, the tall rose-bush which he had planted over the loot was there as he had placed it in the centre of the flower-bed. It was surrounded by the other roses.

The light from his small drawing-room flooded this limited area and threw his shadow across the tiny dark lawn. He was in the act of stretching out his hand towards the rose-bush when he drew back quickly. Did he hear a sound from the fence at the bottom of the garden?

He stood still, watching. The sound was not repeated. He lit a cigarette, and walked slowly up towards the pole he had erected for his aerial, pretending to tinker with the pulley by which he could lower the wire. In reality he was watching the fence. All was quiet. He went indoors.

He lit the gas fire of the drawing-room, and sat down with his head-phones on his knee. He did not draw the curtains. If anyone was watching him from the garden fence, that person would have a full view. Daniel did not wish to hinder the spy. He would give him plenty of rope, but nothing to report.

All the same, as he put the head-phones on he was not listening to the musical programme. He was thinking hard. Were the police after him? Morat had shown his suspicions when he made the clumsy remark about the speech. Morat was behind the search that had been made of the house: for that they had waited until the maid was out. Well, he was proof against their lumbering methods. The maid could prove that the rose-trees were on order several days before they arrived. The maid could prove that she had been instructed to clean the aerial. He himself had proved that he spent the evening listening-in. There was not a clue left at the bank pointing in his direction. The manager had placed entire reliance on him in every way.

It had become a game of patience. Daniel knew that the police often adopted a wearing-down method of tactics when they were suspicious and longed for evidence. He was proof against that also. He would attend to his roses and wear down all suspicion. It was a game at which two could play. All he had to do was to be more upright in his actions than ever, more diligent in business than he had ever been. There was plenty of time. His roses would grow.

The wireless programme had just concluded when a knock sounded on the front door, and the bell rang sharply. Daniel Callow did not hesitate, though his instinct told him who was on the other side of the door. He opened it without a fear. A man stood facing him.

"I think you know me, Mr. Daniel Callow?"

"Oh, you are Detective Morat, aren't you?"

"Yes."

The two eyed each other steadily. Morat smiled and stroked his smooth, plump jaw.

"May I have a word with you, Mr. Callow—about the burglary?"

"Certainly. Come inside."

Question and answer had come without hesitation, one after the other; both men appeared to be on the best of terms. They went into the drawing-room. Daniel Callow was perfectly cool. Not a flutter showed as he offered a chair to his visitor.

"Sorry my wife is not at home just now, Mr. Morat. You find me handicapped somewhat."

"It doesn't matter. I came to see *you*."

Morat sat down, smiling still as he looked kindly towards Callow. His fat fingers fiddled with his hat, which he held on his knees. He looked into the fire thoughtfully.

"Well?" asked Daniel quietly.

Morat asked him one or two questions—trivial questions about the routine of work at the bank—and pondered the answers so long that his silence became an irritant. The ticking of the clock on the mantel-piece sounded very loud. The hissing of the gas fire became like the noise of escaping steam from a locomotive. It took Daniel Callow all the restraint of which he was capable to endure the menacing silence between the slow questions. He felt like shouting at Morat to get on with it; but he held himself in check. This was the wearing-down process in action, he thought. All right, let Morat try it. And then, suddenly, before he was aware, the detective's tactics changed. He leaned forward and pointed a stubby forefinger straight at Callow.

"We are on the track of a suspect!"

"Who?" asked Daniel, without blinking.

"You!"

It was like the report of a pistol. But Daniel Callow met the accusation with the coolness of a dueller.

"I know that. You searched my house to-night."

Detective Morat withdrew his finger and sank back in his chair.

"I had two men on that job," he said.

"I knew it the moment I entered."

"You've planted that money somewhere!"

"If you think so, find it."

"I'll find it."

They looked at each other curiously. The smile had gone off Morat's face, but a smile had come on that of Daniel Callow. He knew where he was now. The gage had been thrown down.

"You are a smart young man, Callow. You have worked well at the bank. The manager upholds you. He wouldn't listen to my suggestions. Yes, you're smart. But you'll make a mistake. I've met your kind before. And I've beaten them."

"Is it part of a detective's job to insult people in their own homes?" asked Callow quietly.

"It is a detective's job to get evidence."

"By these methods?"

"By the methods he thinks fit the occasion. Are you personally opposed to my methods?"

"Intensely so."

"Then you know your remedy."

"What is it?"

"Start a law case against me, claiming damages for what I have said."

"I'll think about that."

"But you won't do it."

"How do you know?"

"You daren't."

"You think so?"

"Positively."

"Why?"

Detective Morat leaned forward again and looked into Daniel Callow's face.

"I'll tell you. Because you are in a bad hole, Callow. You have been spending money too freely at your midnight clubs—you and your wife. You are in the hands of moneylenders. You are living above your income. You are in debt all round."

"Has that anything to do with you?"

"It has."

"In what way?"

"In this way. You are in a hole for want of money. Your wife doesn't even know your salary——"

"You leave her out of it! How do you know she doesn't know my income?"

"My men have asked her."

"What?"

"One of my men has seen her within the last twenty-four hours. He presented a bill on behalf of a firm, and asked for payment. She told him to give it to you. He asked her if she was sure it would be paid. She said you always paid. She does not know that you have unpaid bills in your pocket now, bills you cannot hope to pay on your income. I have not told your employers this—yet."

Daniel Callow shrugged his shoulders, but he was uncomfortable. He knew what would happen if his manager found out that he was so overwhelmingly in debt.

"Will you pay this bill if I present it to you?" asked Morat remorselessly, laying an envelope in Callow's lap.

"I can't."

"I knew that. And before you could start an action against me I could have you declared bankrupt. You know what that means."

"It means I would lose my job, but your bills would not be paid. I don't see that would be any gain to you."

"It might. It would give me a chance to complete the evidence I seek."

"If you are so sure I stole the money, why don't you arrest me, or detain me?"

"Because I want to produce the money as evidence, and I want you to tell me where you have deposited it. If I had you arrested or detained you would close your mouth. I haven't anything solid enough to go to a jury."

"It will take you a hundred years to prove I am the burglar."

"Not so long, I think."

"Well, I have had enough of your insults. I do not care to endure it any longer. If you have finished, you can go. And don't forget, I'll report this to the bank to-morrow morning and ask for protection from your uncouth methods."

Morat rose and left.

When he had gone, Daniel Callow smiled grimly to himself. He had met the famous detective, and he had beaten him in the battle of wits. Instead of Morat wearing him down, he had worn Morat down. Had the detective had anything like a clue, he would have arrested him, or detained him. His admissions proved that he was acting on nothing more than suspicion. Suspicion didn't get men arrested; and, if it did, it didn't get them convicted.

What had brought Morat to the house at all? It was clear. He had come to make Callow commit himself by a stray word. He had come to test him by a deliberate accusation. This was the thing to guard against. Detectives often got their victims by a swift surprise. An unexpected slip, an unguarded remark, had sent many a man to prison. To refuse to be surprised into admission was the cue. So long as he remained cool, never being flurried or agitated, Daniel Callow believed he was safe.

He saw his way, too, to cut the feet from Morat in the matter of the bill. He would go to a money-lender and borrow. The day would come, after the burglary had passed into the limbo of unsolved thefts, when he could pay back the money. If he was able to show that the bill had been paid, he need not fear Morat.

He got the money and paid the bill next day, and he interviewed the manager, asking protection from Morat. In this he was successful. The manager promised that Morat's crude methods would be stopped. He was indignant that his smartest man should be so insulted. Daniel Callow came out of the manager's office feeling that he had scored again.

There was only one item of the burglary that Callow had retained in his possession that would have given him away. He got rid of it that evening as he went home. This was the new key he had had made for the front door of the bank. He flung it into the Thames.

Detective Morat came no longer to the bank. A week passed. Nobody was arrested. Nothing happened. The staff grew easier in their minds. Daniel Callow's wife returned from her holiday. They went to the night-club together, as of yore. They had their fun. They mixed with the members, old and new, all belonging to the set. Life resumed its care-free jollity.

Daniel was proud of Irene. She was the life of the club. She was gay, irresponsible, beautiful. She went the pace more than ever. Men envied Daniel his wife. They did not know what she cost him.

The one drawback to his new plunge into life was the number of bills and the call for money it occasioned. Daniel found that the moneylenders declined to let him have another advance. He had not mentioned to Irene that there had been a robbery at the bank. If she found this out he was always able to defend his lack of confidence by the fact that the staff had been sworn to keep the matter from the public. Nor did he tell her that the loot was buried under the rose-bush. He was waiting a favourable opportunity to lift the bag. He intended to circulate the notes in a way whereby they would not be traced to him. He could do this over on the Continent. A week-end trip was enough for this.

He chose an evening for the job of lifting the bag—an evening when he would be alone. The maid was to be out. Irene, unable to be absent from the club, was going there alone, and he was to call for her later. He did not need to find excuses for not accompanying her. She asked for no reason so long as she was allowed to go the pace with the set.

Darkness had just fallen when Daniel pulled on his garden boots. He was on his way to the back door when the bell of the front rang. He opened it, and faced Detective Morat.

With Morat were two other men. Morat was smiling kindly, as usual, his hand smoothing his stout jaw.

"I want a word with you, Mr. Callow."

"Come inside. What do you want now?"

Morat closed the door behind him and faced Daniel.

"You are a good bluffer, Daniel Callow, but I see no reason to change my suspicions."

"You mean about the bank robbery?"

"That is what I mean."

"Well? Have you come to insult me again? The manager promised——"

"It's out of the manager's hands now, Callow. I have made a lot of inquiries, and I have gone over every yard of the case. I have come to the conclusion that the stolen money is here."

"Find it!" scoffed Daniel Callow.

They were bluffing each other. At least, that is what Daniel Callow thought; and his regard for this famous detective was very small. Had he not beaten him once?

"I have a warrant authorising me to search the house. You raise no objection?"

Daniel Callow's self-command was excellent.

"I'm going out to attend to my rose-trees," he said with a smile. "Call me when you've finished. I'm getting tired of this inquisition, and the daylight is fading fast."

He turned and went out to the garden, leaving Morat stroking his smooth jaw thoughtfully.

Ten minutes later, when Daniel was loosening the earth round his bushes, Morat appeared. He looked at the rose-trees and at Callow. The latter was laughing to himself. He stepped off the rose-bed and struck the mud from his boots.

"Found that money yet?" he asked sarcastically.

Morat stroked his smooth jaw softly.

"Daniel Callow, what would you give to keep your wife out of this?"

The question struck Daniel in the weakest link of his armour.

"You keep her name out of this!" he cried. "You've mentioned her before _____"

Morat plunged his hand into his pocket and thrust a five-pound note into Daniel Callow's face.

"And I'll mention her again," he retorted. "What if your wife tendered this at the club you frequent? Don't you know that all the numbers of the missing notes are known? Do you want her charged with being in possession of stolen money?"

Daniel Callow's jaw dropped. He staggered back, his legs weakened under him, and his face went white as paper.

"Where did your wife get this note?" thundered Morat.

"It's impossible!" cried Daniel. "She didn't know where I hid the money!"

As soon as the words were out, torn from him unexpectedly, he realised what he had said. But it was too late. Detective Morat turned to the two men who came out of the doorway at his signal.

"He'll confess now," he said quietly. "Take him indoors."

And Daniel Callow did confess; but it was not until afterwards that he discovered that Morat had bluffed him to the end. The five-pound note had never been in Irene's hands. Morat had brought it with him to aid his test.

THE STORY OF THE OCCUPANT OF THE SEVENTH CELL

The visitor had taken a great interest in the story of Daniel Callow, and when the Governor finished he spoke quietly.

"I would not advise you to put Daniel Callow among your Intellectuals."

"Thank you. I think you are right in your judgment. He shall stay among the Intelligents. I have given you proof that certain men give themselves away under certain circumstances. I will now give you a case where Nature intervened and sent Robert Lyons to the seventh cell."

But for a caprice of Nature (continued the Governor), Robert Lyons would now be facing the scaffold. As it is, he has been for some time in hospital, and it is extremely unlikely that he will ever go outside these walls, or, rather, the confines of the prison, so long as he lives. Such is the sentence for his evildoing that a judge and jury have passed on him.

Lyons was a gamekeeper and odd-job man, and one day, when he was out in the woods, he rested his rifle in the fork of a tree and took careful aim at a piece of granite formed in the shape of a chair that stood out of the scrub five hundred yards across the valley. There was murder in his heart, but it was not the wild, irresponsible desire to slay, which is often associated with the taking of human life, that swayed him. The murder he contemplated was deliberate, cold, implacable.

In studying Lyons we are studying a man who is in many ways different from most men. His design to kill was clever, original, worthy of an Intellectual. As a matter of fact, I have thought that if Lyons had been in another sphere of life he would have made his mark, for he possessed many of the traits of almost genius. After all, brains are no monopoly of wealth or high birth.

Lyons pressed the trigger of his rifle, eased the weapon from his shoulder as soon as he had fired, took a pair of binoculars from his pocket, and focused them.

Above the irregular top of the granite block that took the form of a natural chair—in the locality it was known as the "Wishing Chair," owing to some legend—he had fastened a target of wood shaped to represent a man's head. With the aid of his binoculars he observed that his .303 bullet had passed through this head. The observation convinced him that the way to final accomplishment of his intention was clear. His intention was to put a bullet from his gun through the head of his employer, Professor Roche; and he was going to do it without his hand or finger being nearer the trigger than the width of the valley.

You will perhaps agree (said the Governor, in parenthesis) that within recent years a change has taken place in the methods of criminals quite as much as in their motives. A generation ago murder was usually committed because of some grudge, some grievance, some desire for revenge, or hope of gain. The murdered persons were almost always aware of their enemy, or enemies, and of the cause of the antagonism. In these days the victim is less often aware of having an enemy. Within the last few years the victims have been the friends, the benefactors sometimes, of their slayers in more than fifty per cent. of the murders committed. Does this indicate that humanity is retrograding instead of progressing? No one can answer definitely. Some have said that war revives in man the savage impulse to slay. The question is more complicated than appears on the surface. Why did Robert Lyons wish to slay his employer?

It has become an axiom that to find the culprit of any breakage of the law it is necessary to find the motive. The old Frenchman was not infallible when he said, "Find the woman." The police first seek for a motive, and then trace the person involved. It is all a matter of team-work, all a business of routine. It is a process of elimination. So much for the police and their methods. Let us get back to Lyons and his intention. Motive played a part, as usual, fear another, greed another, and at base these were, singly, small enough, but when combined they were everything.

Professor Roche was one of the savants who are to be found in the backwaters of English life. London is the home of active men. The

provinces are as often the home of thinking men. Professor Roche was one of the most retiring, yet one of the most learned, men in this country. He had travelled widely in pursuit of his science. He was an archæologist, naturalist, conchologist. It was he who presented to our best museums the collections that are most prized. He had been all over Europe and America at the invitation of private and public organisations, aiding them in appraising and displaying their treasures. And yet this man, who could have had many honours given him, desired none. He was content to live away from the hub of things, and his pleasure was in his work. His collections were envied by curators of museums, who often begged them on loan. These collections had been gathered from the four corners of the world. Time after time he had been approached, indeed tempted, to sell some of his collections, but he had always refused. It was because Robert Lyons had overheard such a conversation between the professor and the representative of a museum that he became aware of the chance of making something for himself without much effort.

Lyons acted as gamekeeper and handyman on the small estate. His duty was, among other things, to keep poachers away, and allow the wild life of the land to live to its natural fullness, so that the professor might study the habits of the creatures living above, on, deep in the earth. He accompanied Professor Roche on many tours, for he knew the ways of hares, squirrels, field animals, as well as he knew the ways of birds. He knew them from the woodsman's point of view, while the professor knew them from the scientific angle. Squirrels came to feed out of his hand, rabbits did not budge when he passed, rooks looked down on him from their nests unafraid. It was to be expected that such a sanctuary for wild life would attract poachers bent on killing where killing was profitable as well as easy.

One step leads to another. Lyons was the man who made the cases in which the professor's specimens were kept. It was he who, under the professor's directions, arranged the preserved butterflies of many countries, the humming-birds of the Amazon, the rare shells of the tropics, the eggs of a thousand wonderful species.

At first the value of the exhibits loomed only faintly behind their beauty. The conversation he had overheard turned his thoughts from the beauty to the value. He lacked the scientific enthusiasm which is above the consideration of money, and gradually he began to compare himself, a

humble gamekeeper, with the wealth which he handled. He ended by coveting.

He took another step. The professor did not miss the humming-bird Lyons put into his pocket and sold in London on one of his occasional trips to town. He found it comparatively easy to sell when he had satisfied the dealer that Professor Roche had commissioned him to dispose of the rare curio. He named a price and stuck to it. The dealer saw this man knew values, and paid the price.

Other specimens went the same way, to other dealers. It was easy to say that the professor was getting rid of a few specimens quietly in order to obtain ready money, but this could not go on indefinitely. Lyons was perfectly aware of this, but he was already involved and could not turn back.

There was one shell in the professor's collection which had attracted the attention of Lyons more than anything else. It nestled in a bed of plush, and was about six inches long, pale ivory in colour, overlaid with wonderful mosaic markings, and had a slender, tapering spire. Its label gave its name as "Glory of Coram—very rare." Lyons took the trouble, when in London, to find out that there were not half a dozen such shells in the world's museums. It was valued at many hundreds of pounds. Might he not take this as a final toll? He took it.

Crime is like a steep incline. The criminal starts slowly, gathering speed and daring as he descends. This speed and daring are largely generated by the momentum of descent. At a given distance down the slope, stoppage is impossible without danger of a crash. Robert Lyons had reached this distance.

The dealer in London to whom he took the shell examined it for a long time. He asked questions. Had Lyons been more business-like he would have known that rare shells are not sold over counters without the buyer's protecting himself by negotiation and written statements. He listened to the dealer telling him that he must have a note from the professor authorising the sale.

"Give me a note and I'll get his signature," he said. The dealer gave him a typewritten note—such a one as is generally kept for reference when curios

change hands. Robert Lyons left the shop, and returned to his home that evening realising that he had thrown a net about his own feet.

His position was now one of peril. He had stepped beyond the bounds of petty theft. He spent a considerable part of that night in his little cottage trying to forge the professor's signature. His hand was clumsy, and could not form the letters well. He knew his forgery would be detected at once. As he sat pondering the situation the great idea came to him. He would get the signature, and make it impossible for the professor ever to say that he had been forced to sign.

Curiously enough, he never thought of returning the Glory of Coram to its case. In this he was like the majority of criminals, whose brains do not harbour a thought of retreat. They must go on, driven by some force of their own making against which they cannot strive. If he retreated, there would be inquiries, and his other thefts would come to light. The dealer would probably write to Professor Roche, for the Glory of Coram was a treasure not often put into the market. All this meant prison, humiliation, the brand of the broad arrow. By the unusually cunning plan that had come to him Robert Lyons saw that the only other way was to blot out the life of Professor Roche.

This alternative may seem to rational people to be an enormity. Is it any more so than the decision of the murderer to kill the girl who expected to marry him, so that he might marry another? Or more heinous than the poisoning of an old woman to gain the few hundreds of pounds for which her life was insured? Lyons, like other criminals, did not balance his proposed crime by the material gain it would bring him. He balanced it by his own safety.

After he had satisfied himself that his rifle was capable of carrying out his plan he threw it over his shoulder, crossed the valley, and took down the target, all bullet-marked, and trudged back to his cottage. He put his rifle in a cupboard and took out an older weapon, which he stacked in the porch. This was part of his plan also. He had bought the newer rifle in London some days previously, and had brought it home after dark. It was of different bore from his old piece, which everybody in the neighbourhood knew he possessed.

He brought out some pieces of wood, and a saw and hammer and nails. He measured the pieces carefully, and was busy at the work of carpentry when he heard a footfall approaching. He looked up. Professor Roche was coming up the gravel path to his cottage.

"I heard your gun go off over by the valley, Lyons," said the professor. "Shooting at anything?"

"It's them poachers, sir," replied Lyons, with an upward glance from under his shaggy brows. "It wasn't my gun that went off. Here it is here, loaded up, but I never see the poachers or I'd fire."

"Not at them, I hope, Lyons."

"No, sir, above their heads, just to give 'em a fright. They've been poaching over by the Wishing Chair."

"What are they after this time, birds or hares?"

"Anything they can get, sir."

"I'd have got the police to help you, Lyons, if you weren't against it——"

"Never mind the police, sir. I can manage. When are we goin' over to continue the excavations?"

"I was hoping to go to-day."

"Make it to-morrow, sir. I'll spend the day clearin' out the poachers, and we won't be disturbed to-morrow."

"All right, Lyons."

The professor was looking dreamily at the pieces of wood which Lyons was fitting together carefully into a curious shape.

"What's that you are making, Lyons?"

"A cradle, sir."

"A cradle?"

"Yes, for my gun. The fore-end has warped through being laid on the damp ground, and that affects the barrel. I'm making a cradle so I can keep it off the ground when I'm resting, while I watch for poachers."

The professor nodded and walked away slowly, his head bent and his hands behind his back. Lyons was well aware that his explanation had not been followed, for the professor was always thinking of his specimens and had little interest in anything else.

When he had gone, Lyons bent over his task and worked fast. The cradle was finished by midday, and he went indoors to prepare his dinner. When dinner was ready he laid it on the table and piled a handful of nuts on a plate beside it. Then he stepped into his inner room and brought out a box two feet long by one foot high. He laid the box on the floor and shut his front door. When he sat down at the table he flicked open the lid of the box. A squirrel jumped out.

"Hullo, Brownie," said Lyons. "I reckon I've starved you about enough for the job. Keep away from that plate of nuts."

The squirrel had leaped to the table, but a blow from the hand of the gamekeeper sent it flying to the floor. It ran about the place, poking into corners, mounting the chairs, and always turning its little, sparkling eyes towards the table where the nuts were piled temptingly.

Robert Lyons ate his dinner slowly, watching the squirrel all the time. Every time it came on the table he threw it off. When it jumped on his knee and poked its head upward towards his plate he allowed it to sniff the dinner; but when it tried to steal a morsel he threw it to the floor. This went on for quite a long time.

After dinner, Lyons rose and put the remains of his dinner and the plate of nuts into a cupboard, taking one or two loose nuts in his hand. With these he tempted the squirrel repeatedly, making it believe that he was giving it one, and drawing away the prize when the animal ventured to seize it.

There was something pathetic in the small eyes of the squirrel when this was repeated several times. At last Lyons changed his method of teasing the hungry thing. He tied a nut to a piece of string and let it hang from the table. Every time the squirrel dashed for it he drew it away. Finally he took the squirrel and put it into his capacious coat pocket, lifted his new gun and cradle, and went out, locking the door behind him.

He walked straight down the valley until he came to a spot opposite the Wishing Chair. Near it was a large mound of earth which had been newly

dug up. The professor had been making excavations in search of fossils, Lyons doing the digging while the savant searched.

Robert Lyons went straight to the tree from which he had fired the shot in the morning. He fitted the cradle he had made into the fork, hammered it down with a few nails, laid his rifle in the cradle, and sighted it for the Wishing Chair.

Next he took a nut from his pocket, and tied it with a piece of twine to the trigger of the gun so that it dangled in the desired position. He then brought the squirrel out, and let it see the nut and play with it; but when the little animal made any attempt to bite it, Lyons drew it out of reach. He held the squirrel in his hands all this time.

After some time he descended the slope into the valley and climbed to the Wishing Chair. He sat down in the stone seat. Once more he brought the squirrel out of his pocket. But this time he did not tease it. He set it on the ground and let it go. As soon as it bounded off he ran after it. He knew where it was going.

The squirrel led him back to the spot where he had left his rifle. When he arrived, the animal was seated on its haunches nibbling at a nut, and the loop which dangled from the trigger of the gun was empty. Lyons examined the rifle. The spring had been released. He tested the sights without touching the weapon. The aim was truly laid for the Wishing Chair.

He took another nut from his pocket, offering it to the brown squirrel. It came timidly, but the gamekeeper did not tease any more. He let the squirrel take the nut and eat it, as he held it in the crook of his arm. When it was finished with the nut, he returned it to his pocket and went back home. He left the rifle in the cradle fastened to the tree-fork.

It had taken Robert Lyons a week to train the squirrel to run across the valley from the Wishing Chair to the spot where the rifle was now placed; and he had accomplished the training by the method which is the first to break-in any animal—starvation. Who would ever suspect such a death-trap?

Robert Lyons was up early next morning to meet his employer. The latter came down to the cottage soon after breakfast, and was pleased to see that

the gamekeeper had every tool in readiness for their excavations. They proceeded to the site at once.

Lyons did not talk as they marched ahead. The morning was dull, the sky was heaped with cumulus clouds, the wind was rising.

"I'm afraid it isn't too promising for work, Lyons," said the professor as they descended into the valley. "If it rains, we can return and arrange some specimens indoors."

"We'll see," replied Lyons, grimly smiling to himself. "This is the very weather for poachers."

"Do you think they'll be about?"

"Maybe. We'll see."

They reached the Wishing Chair on the top of the hill, and Lyons threw down his tools. The professor sat down on the stone seat, as was his habit, and drew out a handkerchief to wipe the perspiration from his face. It had been a stiff climb up the slope.

Lyons stepped behind the Wishing Chair, pretending to look at the landscape beyond; but his hands fumbled about his waist. In a moment he had uncoiled a length of thin rope, at the end of which was a running noose. Before the innocent professor was aware, the noose was thrown over his shoulders and the gamekeeper circled him twice, tying him to the stone seat. Professor Roche was a prisoner.

He tried to rise, shouting to Lyons to loosen the rope, shouting indignant orders, but Lyons did not heed his employer's words. His face had become grim and dark, and his jaws were set as if clamped by iron braces.

"If you howl, I'll gag you," he said viciously. "It's time we had a talk. You're going to sign this first."

He shoved under the bewildered professor's nose the typewritten declaration which the dealer had given him.

"What's all this? What's the meaning of this treatment, Lyons? I cannot see what is written on the paper——"

"I'll read it to you."

Robert Lyons read it, slowly and distinctly. It was to the effect that the Glory of Coram, being the property of Professor Roche, was being offered for sale by that person, who was willing to take a certain sum for it.

In vain the professor protested that this was robbery with violence; the look in the grey eyes of the gamekeeper proved that both men were in a new situation just then. Their past knowledge of each other was gone for ever, and in its place was something terrible and menacing. The professor sat very still, staring across the valley, trying to convince himself that he was not dreaming. He found out soon enough. Lyons hit him savagely in the face.

"Sign!" he cried.

"I haven't a pen."

"But I have. It is your own fountain one. I brought it on purpose."

"I missed it a week ago," murmured the professor thoughtfully. "Is it only the Glory of Coram you wish, Lyons?"

"Is there anything more you'd like to give me?" sneered Lyons. "I've had a few things out of the cases lately, but you haven't missed 'em."

"You have been stealing my goods?"

"And selling 'em, professor. When I sell the shell I'll have as much money as I need."

"But if I sign this it is still possible that you will repent it. The money will be paid into my bank——"

"It won't. It will be paid into my hand. I've made all that secure. It will be paid by to-night."

"But you will be caught as soon as I give the alarm!"

"You will not give an alarm."

"No?"

"You will be dead. They'll find you to-morrow, maybe. Who is to prove that poachers haven't been here to-day?"

A shiver passed through the professor's frame. He raised his head and looked about for aid. All was bare, wild country, the nearest house being his own home, over two miles off. Up the valley the rising wind came steadily, increasing in volume every minute. The huge clouds above were driving from the southwest. That meant rain.

"Do you intend to kill me?" he asked, after a pause. There was a hint of the scholar's curiosity in his question.

"I do."

"Might I ask how?"

"Since it won't help you, I'll explain," said Lyons, "but you got to sign that slip first."

The professor gravely took the pen and signed. His hand shook a little, and the paper fluttered on his knee, but his face was serene as he handed the sheet back to Lyons. The latter held the signature to the wind until it was dry, then pushed it into his inside pocket. With his eyes on Professor Roche, he brought the squirrel from his coat pocket and held it aloft.

"This little fellow is going to kill you," he said. "He's the one who is going to clear away every clue. Ain't you, Brownie?"

"This is very curious," said Professor Roche. "How is he going to do it?"

"This way. Over the valley, in that clump of trees, is a rifle, loaded and laid straight for your head. It is five hundred yards away. The bullet in that rifle is a .303, which will kill at a much greater distance. Hanging from the trigger is a nut. This squirrel is going to snatch that nut. You won't have any pain, I assure you. I've had a target often enough where your head is."

"Then you will hang," said the professor.

"I won't. The rifle will be buried in the valley within an hour of it being fired. My own gun isn't a .303. Everybody in the house knows that you and I are working at these excavations. Our trail shows we came here. I have worked it all out."

The wind was coming in gusts, so that Lyons, who was standing to leeward, had to bend forward to hear the professor's reply to his boast. To his surprise, the professor merely wrinkled his brows and bent his head. Lyons

placed the squirrel on the ground ready to let him free. Professor Roche's voice spoke.

"Have you laid the rifle true for me, Lyons?" he asked. "Are you sure?"

"True and straight, as I have laid it every day for a week. You can't escape the bullet."

He threw the squirrel from him with a savage laugh.

"Say your prayers!" he cried. "Nothing can save you now!"

The professor's eyes were on the disappearing squirrel, now bounding towards the clump of trees in which the gun-trap was hidden.

"Lyons," he said, "I have no prayers to say, but since you bound me in this natural Wishing Chair I have been wishing—and thinking. I believe my wish will come true. Come nearer to me. The wind makes it difficult to talk."

Lyons moved from the windward to the leeward side of the chair. He admired the gameness of the old professor.

"What is it you want to say?" he asked. "Hurry! The rifle will go off any moment."

"One of the things I have studied, Lyons, is the question of velocity. We have been having good weather of late——"

"What are you talking about?" roared Lyons. "Gone mad, eh?"

"Not quite, Lyons. Stand a little nearer and listen closely. I have had my wish. The wind is very strong. Hark!"

From the clump of trees across the valley the crack of a rifle broke out, and a tiny puff of smoke arose swiftly. Robert Lyons jumped back from the Wishing Chair, but as he leapt something smote him in the chest and stretched him unconscious on the ground.

Professor Roche was able to undo the fastenings that bound him, and he went for the police, who took Lyons to hospital. He has just been tried, and sentenced to imprisonment for life. It was indeed a wonder he was not killed by the bullet he intended for the professor.

You see, the wind always takes a bullet off the target at five hundred yards' range. Three feet at that distance is an average wind allowance.

Robert Lyons had forgotten the rising wind.

THE STORY OF THE OCCUPANT OF THE EIGHTH CELL

As the Governor finished his seventh story, the visitor shrugged his shoulders and glanced at the window, where the fog was swirling up against the glass.

"I hope you do not find it too cold," said the Governor politely. "Shall I turn up the gas stove to its full capacity? It is rather a large stove, but we can regulate it——"

"I find it warm enough, thank you," interrupted the visitor. "I was merely taking note that the fog is becoming denser than ever."

"Naturally," agreed the Governor, "you are interested in the fog, for reasons we shall not discuss; and mention of fog reminds me that in my eighth cell is one who relied on just a similar density of atmosphere to escape from this very prison. He has just been sentenced to an additional term for that escapade."

"Then you admit that it is possible to escape from your prison?" inquired the visitor quickly, eager to make a point.

"It is possible to do almost anything, but every action has its consequences. We seldom escape the consequences after we have committed the act. If a prisoner behaves himself and gives the impression that he is willing to accept the punishment which the law has given him, we do not make his punishment more of a torture than we can help. In other words, we give prisoners some slight benefits, some privileges. These help to mould their characters. But Harry Sarlon, I am afraid, took advantage of the privileges given him. As there is an element of a certain kind of humour in his case I am sure you will be interested to hear of his case. The fog makes it definitely apposite."

The Governor then proceeded:

Harry Sarlon had broken out of prison quite easily. He stood bracing himself against the rough wall of the archway, knowing that he was being sought, knowing that the warders were on his trail.

At his feet were a paint-pot and two brushes, the materials with which he had been working when he escaped. His convict dress was hidden by a loose smock which, though prison property, was a disguise for his prison clothes. In his right hand he held a heavy stone which he had picked up from the ground.

The fog swirled past him, thick and heavy; so thick that he could not see objects a few yards away. It was because of the fog that he had escaped.

The scrape of a foot on the ground sounded near his hiding-place. A man's form appeared in the strange gloom, woolly and indistinct. A lantern, blurred and ruddy-yellow, swung slowly to and fro.

"Sarlon, you had better surrender if you are there! You can't get away!"

The voice was a challenge, besides being an order. It was the voice of Warder Tully, the man of all his guards whom Sarlon hated and feared most.

For just one moment Sarlon hesitated. He felt that the warder was in the act of sounding his whistle. He heard the barking of a dog some distance off. The lantern moved towards him. Then Sarlon leaped.

The warder had no chance, for Sarlon was upon him like a panther. He bore Tully to the ground, hitting him with the stone. Tully was knocked unconscious and lay still.

It is possible, with imagination, to appreciate the wild, passionate desire for freedom that urged the convict to attack. The discipline and strict regulations of a place of detention arouse, in some natures, a ferocity against restraint which at times becomes ungovernable. There are men in prisons who can never be trusted beyond the ordinary routine. But Sarlon had seen to it that he was not regarded as of that type. He had deliberately suppressed his rebellion in order to make his escape. Therefore it was all the harder for him to admit defeat when challenged at that moment. He was in the full flush of belief in his ability to escape from Mincester gaol.

From the beginning of his term he had stifled his resentment, his hatred of prison and gaolers. He had done this to outwit them. This shows that he was

a man of great self-control, yet he could not control his criminal leanings; a strange paradox. He could control himself in order to retaliate in time; there was something in him of the nature of the cat tribe. A tiger can lie still, waiting to catch its prey. Caged, it cannot keep passive.

Burglar, crook, law-breaker, he had run the whole gamut of crime with the exception of the capital charge. And now that he had visited his vengeance on Warder Tully he was aware that he must run.

By trade Sarlon was a house painter. He had attained to the position of a first-class convict because of his good behaviour. He had given no trouble at all, and had seemed to accept his punishment as the inevitable result of his lawless acts. As a result of this good behaviour and in an endeavour to reclaim him as a useful member of the community, he had been allowed to use his trade abilities. He had, in short, with another man, been put to the job of painting the windows of some outbuildings. This suited him very well. From the top of his ladder he had a view of the world beyond the prison. There is an old parish church, as you may have noticed, not very far off, on the steeple of which workmen were then engaged in repairs. The steeple was shored up by beams that slanted from the ground almost to the top; and, at stages, scaffolding framed the square tower in regular platforms. Sarlon knew that these workmen were engaged in tearing out the inside of the tower preparatory to re-buttressing it. This work was but one of the instances where local authorities were attempting to preserve the relics of England for future generations.

Sarlon had seen this work, and the sight helped him to make his plans. Only one thing was needed to obscure his escape. That one thing was night—or fog. He could not escape during the night, so he hoped for fog. There is a saying that the Devil looks after his own. The fog came.

The fog had swept down from the north suddenly, and, from the top of his ladder, Sarlon had watched it coming. This district is liable to get fogs at certain times of the year, as is well known. When the foremost fringe of the mist touched the prison wall and floated into the yard, the warders sounded the signal to stop work. Sarlon at first pretended not to hear; then, when he could keep up the pretence no longer without arousing suspicion, he acted as slowly as possible.

He came down the ladder, leaving his paint-pot on a window-ledge. He had to go back for it. This time he left a brush on the window-sill. He had to climb again for the brush. He was playing for time. The warders urged him to hurry, all unsuspecting his motive.

By this time all was indistinct and shadowy in the yard, and the fog was getting thicker every minute. When he descended the second time everything was in his favour. The yard was dense with mist. The fog had come quickly, as fogs generally come in marshy districts. Sarlon heard the other convicts being marshalled, though he could no longer see them. He saw a warder waiting for him at the foot of the ladder. With a quick movement he kicked the warder in the chest, sending him sprawling; then he took the ladder in his muscular hands, rushed across the yard with it, flung it against the wall and swarmed to the top.

He was astride the wall when the warder he had knocked down appeared below him. Sarlon kicked the ladder away and heard the warder's cry of alarm as he fell. Sarlon jumped to the other side of the wall. He was outside the prison.

His paint-pot, which was fastened to the top rung of the ladder by a hook, had fallen beside him. He picked it up as he started his flight. His paint-brushes were in his pocket. Why did Harry Sarlon take the paint-pot and his paint-brushes with him? All part of his scheme. If he met any civilians he could easily pretend that he was merely a painter on his way home. He threw away his prison cap. Who was to know that a convict had been using paints? By the time the circumstances of his flight were known to the public he reckoned he would be safe.

He ran through the fog until he reached the canal, which was to be his guide-rope. It would lead him towards the centre of the city and the place where he wanted to hide. He waded into the cold, muddy water which reached to his waist, and as he waded he held his smock high so that it would not be soaked, for it was his disguise. Climbing back to the bank, he ran on until he reached the rear of the parish church. He scaled the wall of the cemetery and was crawling among the tombstones when he heard a sound and saw a lantern moving towards him. Someone was on his trail.

Sarlon crouched behind a tombstone and waited. He saw the lantern pass in the fog and disappear. He wondered, in a moment of terrific concentration,

if all his efforts were to be frustrated. The minutes passed. From somewhere to the right he heard another sound that set his teeth on edge. This was the baying of a hound.

Sarlon knew where the dog was at that moment, and he knew the dog was on his track. Two dogs are kept in this prison, in a yard shut off from the sight of every inmate; but every prisoner knows that these dogs are kept should an escape be made. I ought to say the idea of the dogs was mine.

Every day the dogs are exercised by the warders; and it was to throw the dogs off the scent that Sarlon had entered the canal. He argued that if he threw them off until he was deep in the city he would be safe. But, on the other hand, there was the fact that the very scent the dogs were following was his disguise. The dogs were following the smell of the paint which clung to his boots, his smock, his clothes. He dared not remain behind the tombstone, so he crept out and found the shelter of the archway. It was when he was here that the lantern came out of the mist again and the voice of Tully challenged him. There was nothing left for Sarlon except to surrender or attack. He clamoured for liberty; so he attacked. The dogs were not with Tully.

Sarlon found some satisfaction in attacking Tully. The latter was the one warder on the staff who could not be bluffed or deceived. He was the warder who had tried to prevent Sarlon from escaping by the ladder. He had rushed out, before the dogs had been loosed, to search on his own. Finding that the dogs took the road to the canal, Tully had struck away from it.

It was like Tully to argue that Sarlon had not crossed the canal and made for the open country, because Tully was the clearest-headed warder of the staff, the most relentless in pursuit as he was the most suspicious in his daily dealings with prisoners. No convict ever asked a favour, or made a request, which Tully did not suspect; he had acquired the habit of disbelieving every plea, every complaint! he was always on the alert to suspect excuses to evade rules. His duty became a sort of perpetual query mark. He was the most feared, as well as the most hated, warder.

He was as remorseless as iron and as merciless as logic. If a prisoner went sick he treated it as a feigned ruse until he saw the man collapse. He even regarded the doctor's examinations of prisoners as too gentle and as erring on the side of leniency. He grudged the hospital diet which patients were

given. To his mind a convict was no longer a man but a number—a number which still constantly strove to evade punishment. There was no pity in Tully. He was incapable of compassion. But he believed he was just. His duties were, to him, part of a large organisation for the protection of organised society. "Prisoners," he once said to a Commission which sat to gather evidence on crime and criminals, "are the weeds in God's garden. Prison is the refuse heap of that garden." He took his work seriously, as became a grave and unimaginative nature.

Harry Sarlon in many ways justified Tully's words. His idea of freedom was to do as he liked—selfish to the core—without any sense of shame. His idea of law was that which restricted his raids on civilisation. But prison had shown him that to do as he liked he had to blind the law and hoodwink it when he could. To escape from prison was, to him, a duty to himself, any means justifying the end. To trick the authorities, to lie to them, to deceive them, was merely his way of "getting his own back." Rules and restrictions were a challenge to him. He had no sense of honour. He would have killed Tully with as little compunction as he would have told a lie or trod on a worm.

A mutual mistrust and antagonism had always existed between the two when they came into contact. It was the clash of opposites.

As he stood in the archway looking at the fallen man, Harry Sarlon, thinking he had killed Tully, was glad Tully was out of his way; but the baying of a dog came to his ears, and he knew that he must act quickly. It was only a matter of time before the dog, or dogs, found his trail again. Tully, he was aware, had taken a short cut ahead, and the dogs would come too. Quick as thought, Sarlon stripped off his smock and threw it beside his paint-pot and brushes. He had no use for these things now.

He took off his prison clothes also and left them in a heap beside his smock. He stripped the uniform off the warder, who had been so battered by the stone that he had every appearance of being dead, and found to his delight that there was some money in the warder's pockets.

He extinguished the lantern, clapped the warder's cap on his head, and, seizing the warder by the heels, dragged him into the cemetery over the heaps of earth. He knew where he was going and what he intended to do.

From his ladder in the prison yard he had observed the deep excavations that had been made around the tower of the old church; deep holes had been dug for the shoring timbers, and much of the foundations of the building had been exposed. Into one of these excavations Sarlon threw the warder. He intended to bury the man, and he had already started with hands and feet to push earth into the trench when once more he heard the baying of the hound. He dared not finish his ghoulish work. The other warders were on his trail and were coming fast. Sarlon leaped to his feet, and ran towards the church tower.

He had to go right round the tower before he found an entrance, and he gave a queer little laugh as he looked above the Gothic stone that frowned over the porch. It reminded him of the entrance to the prison he had just left; the stone was the same grey colour, the heavy doorway was the same design, the builders having evidently erected both from similar plans. It seemed funny to Sarlon that a church and a prison should be of the same construction—the one a sanctuary, the other a tomb to his hopes.

He found himself in a wide, open space beyond the doorway, and knew that he was at the base of the tower. It took him some time to find the ladder leading aloft, and when he climbed up to the top he was aware that he was on the first scaffold. He walked carefully round the narrow platform on the outside of the square tower and came upon another ladder. It was the way to the second scaffold higher up. He climbed slowly and carefully, found the third scaffolding and mounted it also, to find a fourth. This brought him to the opening into the belfry. He crawled through the window and lay on the beams that were laid under the huge bell. Keeping his head out of the window he looked below, watching and listening.

The indistinct, muffled voices of men came up to him. The fog was too thick for him to see anything. He lay still, listening, wondering if his pursuers would mount the scaffolding. Half an hour passed. The voices were no longer heard. His enemies had gone.

Lying up there, Harry Sarlon began to take stock of his position and prospects. He guessed that it was now late in the evening. The workmen who were engaged on the tower had ceased work with the coming of the fog, so that he would be safe from their interference until the morning. But he did not intend to wait until the morning, for the fog might then be

cleared off and that would make his escape all the more difficult. He must get away as soon as possible. The money he had taken from Tully's pockets supplied the means if only he could get to the railway station.

"It's got to be done soon," he muttered. "If I stay here the town will be raised against me. They may have offered a reward by now for my capture, but I'll beat 'em with a little bluff."

He descended slowly to the ground and walked out into the roadway. The fog was still very thick, so that it was almost impossible to see more than a yard or two, but while this was a benefit to Sarlon it was also a drawback. He did not know the town very well, and he realised the danger of losing his way. Adjusting his cap and dusting down his clothes he marched forward.

People passed him like ghosts, silent and mysterious. He walked on until he observed the glimmering lights of shops. The smell of a cookshop's wares made him pause. He was hungry. He opened the door and stepped into the shop.

It was a small place, such a one as is used by workmen; a few customers were seated at tables beyond the counter, and a stout man, in soiled apron and shirt-sleeves, was frying potatoes on a coke fire.

Sarlon would have enjoyed nothing so much as to sit at a table and order a meal, but he dared not risk this, even if he was dressed in warder's uniform. He contented himself with buying several sandwiches, and the stout man leaned over the counter confidentially as he wrapped the food up.

"Say, mate, is it true one of your fellows has got away in the fog? A policeman tipped me off not long ago, but no sane convict would ever come in here, now, would he, not if he was starvin', poor devil?"

Sarlon was counting out the money for the sandwiches, and paid no attention to the man's talk; but the latter went on.

"Of course, I know it's against the rules to talk, but the escape ain't official yet, or the town would know it. They haven't sent out the signal, because some of you warders are still looking for him. He ain't a desperate character, him that's got away, is he?"

"How much for the sandwiches?" asked Sarlon quietly.

"One and six, boss. Rotten night, ain't it? Rather you were doin' a search than me in this fog. Of course, I know it ain't official about that escaped convict, or they'd hev sent out the signal——"

Sarlon picked up the parcel of food and swung out of the shop, glad to escape into the gloom of the street. He had felt the eyes of every customer on him while he stood at the counter. He trudged on, eating the sandwiches ravenously.

He heard the tramcars moving slowly along the street. Flares were lit at the corners. At a crossing he stood to think matters out. He wanted to get to a railway station. The plan he had formed was a bold one. Originally he had hoped to make his way to one of his pals, but now that he had money he decided on a better plan. He knew the police would search his usual haunts for him. He saw that he would be safer at his home, where his relatives would hide him. He was not a Londoner by birth. If only he could get on board an express he would be safe. His warder's dress would carry him past the ticket-collector at the barrier; especially since the news of his escape was not yet officially broadcast he would be free from suspicion.

He stopped a pedestrian and asked the way to the station. He was directed to follow the trams, then take certain turnings. The station was within an hour's walk at ordinary times.

Sarlon strode along exultantly. His disguise had carried him through so far, and he had little fear for the next steps. He experienced a strange uplift as he walked. People shuffled past him, coughing and peering about them. Buses and traffic moved very slowly in the middle of the road, crawling furtively, with glaring headlights that came and went in ghostly procession. The lighted windows of the shops glimmered in the yellow fog.

He had walked for well over an hour when he heard the shriek of a railway locomotive, followed by the bang of a fog signal. He knew he was near the railway station at last.

He approached it cautiously and found the entrance, a dully lit tunnel in which people were moving about like gnomes of the night. He made his way towards the booking office and was almost at it when someone touched his arm. He turned to find a policeman at his elbow. The sight almost unnerved him.

"What's the news, mate?"

"The news?" stammered Sarlon; then, getting a grip on himself, he answered steadily enough: "There ain't any news."

The policeman shrugged his shoulders.

"I expect you had an idea that your man would come this way, but I give you my word he hasn't showed up, nor anybody like him. I've been on duty here for over an hour, keeping an eye on everybody. Some of our plain-clothes men are on the platform too, and we're watching the siding so that he won't get aboard a train."

"Is that so?" said Sarlon.

"You bet. The prison people telephoned to our station and we were sent out at once. By the way, do you know that you men are being called in?"

"No, is that so?"

"We have been told to notify any of you we meet to return to the prison. The Governor wants to interrogate every warder before he sends out an official call."

The policeman rubbed his hands together and stamped his feet.

"That runaway will get it in the neck when he is nabbed," he went on. "After what he did to one of your men."

"What did he do?"

"Haven't you heard? He nearly killed a warder named Tully—expect you know him——"

"I know him."

"I heard at the station just before I left. They found this warder in a trench over by the church. He had been battered badly. The dogs found him, led by the smell of paint. Tully must have found the escaped convict and been attacked. I don't know the particulars, but they say that the convict has crossed the canal. We've notified every barge owner and expect he'll come this way before the fog lifts."

"Oh, I see."

"So that's why the job is out of your hands now, mate. It's a police job, beyond your jurisdiction. The dogs have been called off and it's up to us."

Sarlon passed his hand over his face thoughtfully. He was very cool, yet he was very alert.

"What's you people's idea of his likely way of escape?"

"Well, they've put us to watch the railway and sidings. He won't stay about this district if he can get away, and he can't get away by walking the streets. The inspector believes he'll get out of town, maybe make for a port. He could change his clothes somewhere——"

"Well, I suppose it isn't any use me hanging about if we are called in," said Sarlon. "They'll think I'm lost if I don't report. So long."

He turned on his heel and walked out into the fog once more. Once outside, he strode swiftly along the street, his brain active and searching for a way out. His disguise as a warder had saved him, or perhaps it was his nerve, but he had had a narrow shave. Had the policeman not spoken to him he would have bought a ticket and then he would have had to explain. He ground his teeth at the thought of having been balked; but he was thankful for the policeman's talk all the same.

What was his position now? He dared not go back to the railway station. He dared not risk walking about, lest he meet other policemen. But he had to get away. He considered anxiously.

"There is a workmen's train in the early hours that will take me to some station beyond the city," he muttered. "I'll go back to the church steeple and wait until it's about time to catch the workmen's train. There won't be any police at the station then. Anyway, I'll have a rest in the church steeple and think it out."

With the thought of returning to this excellent hiding-place came another. How was he to get back? He had been walking in the fog so much that he had lost sense of direction. He stood still wondering which way to turn.

Just then, as he pondered, there came a sound that sent a reassuring thrill through him. His luck was holding after all. A bell was booming out above and through the fog.

"Evensong!" he exclaimed. "The church bell!"

He could find his way to the church by the clanging of the parish bell. It was the only bell that rang during every day of the week, and he blessed the fog and the bell and the church as he plodded towards the sound, a voice calling to him to come and be hidden, ringing its message, its invitation to sanctuary indeed.

As he walked, he thought out his plan. He would not go into the church while the people were there. He would slip round to the back and climb to the tower as soon as the congregation had settled to worship. Once there he could think out his next step without the harassing need to avoid people at every step.

Gradually the sound of the bell drew nearer. He was walking down the side street towards the church now. He pictured the scene as it was on fogless days; but his reckoning sometimes was out, because he was not too well acquainted with the streets; but he was happy—grimly triumphant.

The bell's notes began to dwindle. Its clang softened, its call faded. Harry Sarlon saw the dim outline of the stone porch silhouetted in the fog by a light beyond the Gothic structure.

He waited some distance from the door until the bell was stilled. Then he walked forward, pushed the iron gate open, and passed into the porch and so through—as he thought—the square tower.

But at that moment a lantern was swung behind him, its light flashed into his face.

A man's voice, gruff and menacing, challenged him.

"Hullo, there! We were told all you men had returned. I was just locking up the gate. What's this? Oh, I say——!"

A hand pulled off Sarlon's cap and a pair of strong arms pinned his arms to his sides while the man shouted an alarm.

"Help! Quick! I've got Sarlon!"

Harry Sarlon did not struggle in the grasp that held him, nor did he make any attempt to escape. He felt suddenly sick at the trick the bell had played him.

He was not in the porch of a parish church. What he had heard was the prison bell signalling officially to the wide world that a convict had escaped; and he had walked back to prison, guided there by the alarm.

THE STORY OF THE OCCUPANT OF THE NINTH CELL

"I think," said the visitor, when the Governor had completed the eighth story, "that this man Sarlon made his mistake because he was unacquainted with the district near his prison."

"Precisely—up to a point," admitted the Governor, who was about to add something else, when he was interrupted.

"It is not a mistake *I* shall make," remarked the visitor grimly. "And I frankly tell you that I am aware one of the Big Five of Scotland Yard has been interesting himself in my movements of late."

"It is no secret that your capture has been much desired," returned the Governor. "It may not be fog that will lead to your undoing at last. It may not be a mistake on your part; but something, somewhere, will happen, I assure you, and you will be caught."

"If it pleases you to think so, please continue in your error," responded the visitor. "In the meantime, now that I have listened to your stories, may I press the question that I came here to put to you? Are you willing to act in either of the two ways I have suggested regarding the condemned man?"

The Governor seemed lost in thought for a moment; but presently he lifted his head and smiled at the man who sat opposite.

"We have still plenty of time to come to a decision on that matter, and your mention of the Big Five has interested me. Most people—that is, most people in the general public—are under the impression that the final details relating to the capture of criminals are in the hands of a Big Four whose headquarters are at Scotland Yard. Now, since you mention a Big Five, I take it that you are including that able officer, Detective Seed?"

"I am. But——"

"Ah, how curious! You know, our thoughts evidently run parallel on quite a number of lines. The fact is that Detective Seed was responsible for the

occupant of my ninth cell being in my prison to-night. I do not know if you ever met, or heard of, a most notorious burglar named Sockem?"

"You are not going to tell me that Sockem is in your prison!" sneered the visitor suddenly. "He is dead. I have seen his grave. He was drowned up the Thames."

"That is where you are wrong, I assure you. He was not drowned at all. But he is dead all the same, and it is of the manner of his death that I would like to tell you. The man who occupies the ninth cell was a mere cipher in the story of Sockem's end, but he was an agent for a receiver of stolen property named Eckhardt, of whom I shall have a word or two to say very soon. Mackintosh is the name of this man in the ninth cell—a cautious man who came from Aberdeen, an elder of a Scottish church, an ex-soldier. Ah, well, he is insignificant, but he is in the ninth cell to-night, and to tell you how he came to be there I must tell you the truth of Sockem's final flutter in crime. There are points that will interest you, believe me."

"It interests me to hear that Sockem was not drowned," remarked the visitor. "He was no ordinary man. Pray proceed, but don't make it too long."

"I shall be as short as possible in my recital, but one must do justice to facts as well as to dead men, and I am a stickler for etiquette. Besides, I happen to know more about Sockem than most people, even his friends. To begin with, Sockem was not his name at all. But I am anticipating. Let us first set the stage for the drama."

The Governor leaned back in his chair and closed his eyes, as if to recall the story he was about to relate. Only the ticking of the clock sounded in the room.

One must admit [so the Governor began, after a short space] that Jimmy Sockem had pluck. But a burglar cannot always work alone, and when Ben Foss, who had for a long time acted as his "scout," turned to honest ways, Jimmy had either to find another scout or work by himself. He tried to find a helper, and did not succeed. None that he employed on his raids on

society was so pliable as Ben Foss. Then he tried working alone. That did not do either, for a second man is useful. You will admit the truth of this.

So, then, one night Jimmy Sockem might have been seen (or, rather, might not have been seen) climbing a water-spout in the West End of London. There were two objects in his mind as he climbed. The first was to get certain jewellery in a flat. The second was to compel Ben Foss to give up honesty and return to lawlessness.

So far as Ben Foss was concerned, there is no doubt that he wanted to be free of Sockem; but, not having the strength of will to defy Jimmy, he shrank from heroic measures. In a word, he was afraid of Sockem.

With his finger-tips on the edge of the window-sill and his left hand grasping the drain-pipe, Jimmy paused for the final effort. He had climbed more than forty feet from the back garden of the block of flats. Someone was down below him. He could hear feet crunching the gravel path with hesitating steps; but the thin fog that rose from the earth was his protection, as ground mist has so often been the protection of London burglars ever since there was London, or fogs.

From the street beyond the building he heard the rumble of the traffic, the roar of the buses, the hooting of motor-horns. He listened attentively, hanging, spread-eagled, against the wall like a gigantic beetle. The movements beneath him became blurred and indistinct, then gradually faded away. He was safe.

From his pocket Jimmy Sockem took his favourite and only tool, and dug it into the mortar between the bricks. It was an extra-long horseshoe nail, made of steel, bright and polished, pointed and sharpened like a rapier. On this nail he rested his knee, then his right foot, and finally raised himself and swung over to the sill, on which he knelt.

He withdrew the nail from the mortar and slid it up between the frame of the window and the catch. A sudden twist was all that was required. The window opened. Jimmy put his leg over the sill and stepped into the dark room, drawing the heavy curtains behind him.

He crouched low as his quick ear detected a footstep outside the door. He heard the door open, a light was snapped on, and he saw a silver-haired,

elderly man standing on the threshold. He faced Jimmy before the latter had time to hide behind the furniture.

"The cat burglar! Put your hands up!"

Jimmy did not answer the accusation. His eyes were glancing about the room. The elderly man was pointing a revolver towards him.

"You disturbed an alarm when you opened the window," he said quietly. "Put your hands above your head. My man will tie you until——"

It was then that Jimmy attacked. His gloved hands rose as if in obedience to the order, but as his right came up it caught, in its swing, a heavy bronze statuette from a small table and launched the missile with the accuracy of a practised thrower. The crack of the revolver and the crash of the bronze on the elderly man's head were simultaneous.

Both men dropped to the floor; the attacker, because it was his usual stratagem, the other for quite a different reason.

Then, swiftly, one leaped upright. It was Sockem. The man who had fired the revolver was down and out. A great, bleeding wound on his head showed where he had been struck.

Jimmy crept over to where his victim lay and peered at him grimly.

"Serve him right!" he muttered. He was under the impression that he had killed his man, but it did not trouble him—much.

A sound behind him caused him to wheel. He found himself face to face with another man, but this individual did not, to him, constitute an enemy. It was Ben Foss.

"That you, Ben? I done your boss in."

"You've killed him, Jimmy! Why did you come?"

"Anybody else around?"

"No, there was just him and me. An' he was a decent sort."

"I wrote you that I was comin', didn't I? You didn't have the window open. I had to bust the catch."

"I didn't want you to come, Jimmy! I wrote back askin' you not to. I'm on the level now. He fixed the alarm a while ago——"

"And I fixed him, see? Serve him right! You thought your letter would keep me away? What are you standing there shakin' like a jelly for? Let's take the jewellery and get off quick."

"We? You said *us*?"

"Of course. You're comin' with me. We were pals before we went to Parkhurst, weren't we? We'll be partners again."

"Jimmy, I was tryin' to run straight. I was his servant."

"Huh! Birds like us can't turn over a new leaf. An' don't you try to double-cross me either. You know my name, see?"

Unthinkingly Ben stooped and picked up the bronze, but a shout of derision from Jimmy made him drop it.

"You've done it now, Ben! You've got to come!"

"What do you mean?"

He shrank back with a shudder as the other flung out a gloved hand and pointed to the bronze figure.

"You've put your finger-prints on it! If you stay, the cops will arrest you!"

Ben started at the words, and stretched out his hand for support. His fingers gripped the edge of a table, and a laugh burst from the mocking lips of the burglar.

"An' now you've planted your whole hand on a polished surface! With bloodstains! Oh, Ben, ain't you giving them evidence to hang you?"

"Stop that, Jimmy! I didn't do it!"

"There's the evidence, Ben!"

The two men presented a striking contrast in every particular. Jimmy Sockem was thin, small, dark-skinned, black-haired. The other was above medium height, stoutish, ruddy, bald. Jimmy was cool, alert, waspish. Ben was flurried, confused, lumbering.

"They couldn't say it was me," he rumbled, staring from his hands to the table. "It wasn't me. I've run on the level since I came out of Parkhurst."

"You've been there, and that's against you, Ben!"

"It was you as did it."

"I'm wearin' gloves. Them finger-prints say it was you!"

"He was a decent boss. I wouldn't 'ave harmed him."

"He's dead, Ben, and can't talk!"

"It was Detective Seed as got me the job."

"I've got a better one for you!"

"I don't want to be your partner again."

"But I came for you! I need a scout!"

"I told Seed I'd run on the level. He said honesty was the best policy."

"It don't pay! As my partner you'd be rich now!"

"Seed knows I'm tryin' to run straight."

"Seed couldn't stop your arrest!"

"I could tell 'em it wasn't me as did this."

"They wouldn't believe you! Your record's bad!"

"But it's the truth that I didn't do it!"

"You daren't say it was me!"

"Why?"

"Because I'd kill you if you did! See?"

Ben groaned. He knew that this little, dark-skinned man would carry out his threat. He was in a cleft stick, but he fought feebly at his last ditch, his heavy mind clinging to the central fact that was his only hope.

"I didn't do it! I didn't do it! Supposin' you went away, I'd not mention your name!"

"Then they'd hang you! Come on, get the swag and we'll be off."

"No, no. They wouldn't hang me! I don't want to be your partner again!"

"I need you. I'll make you come!"

"You can't."

"All right. Listen!"

Footsteps were coming along the corridor outside the front door of the flat. The bell tinkled. Someone was seeking admittance.

"That's settled it, Ben," whispered Jimmy in a hoarse voice. "That's a cop. I heard one down in the garden. He's come up here to get me. They know I usually go out by the front door."

"Well?"

"He's tryin' this door first. Then he'll go up to the flat above, maybe. All I have got to do is open that door and invite him in. I can say you killed your boss to collar the swag for yourself. My word's as good as yours. Your finger-prints! You'd swing, sure! They couldn't hang me, see?"

"Jimmy!"

"Get the stuff together quick and we can hop off. I'll wipe out the prints while you collect. Hurry! Or else——"

"I'm beat!" groaned Ben. "I'll come, you fox!"

Thus this smaller man of the two, the greater criminal, constituted himself the leader, the counsel, the judge of both. He triumphed in that he was able to make his very crimes of use to him. In other men their misdeeds would have been an anchor, a drag on their brains, clogging their thoughts and chaining them with unseen manacles. In him these considerations were absent. He was most dangerous when he was cornered.

Who was this man? His real name was not English, though he was a native of Limehouse. He was the son of a Japanese waif who, after having been a housebreaker in Tokio, took to the sea because his own country sought to punish him for lawlessness. Before he had been a housebreaker this father had been a fireman. The change from the one profession to the other is not so strange as it might appear. The Japanese fire brigades are famed for their acrobatic skill. They can climb to dizzy heights, bearing ladders on their shoulders; they can leap from one point to another with a daring that can

only be acquired after long practice. This man had become a burglar owing to the temptation offered after the Tokio earthquake some years ago.

He joined the *Gorotsuki*, the thieves' brotherhood. This organisation gave endless trouble to the authorities of Tokio and Yokohama and other cities. These men disdained to use gloves, jemmies, or flashlamps. They depended on their swift action and their daring. Their movements were like lightning. Many of these men ultimately came to England. Jimmy Sockem's father was among them.

When this individual came to England he mated with a woman of the East End. When they presented the world with a son they added another criminal to the population. This son, who inherited peculiarities from both parents, in fact owed them nothing socially valuable save life. He seemed to duplicate his father in everything—certainly in wickedness. He lived about the docks, he climbed rigging, he stole from seamen as well as from his own companions. None could compete with him in ability. His inventiveness was as great as his sense of honesty was deficient. He could swarm up water-pipes like a monkey, and he challenged the seamen of sailing-ships to go to the top of the masts before he was in his teens. Fortunately—or unfortunately—he was never caught, or he might have been sent to Borstal.

In this youth a psychologist would have observed the meeting of the Orient and the Occident. He had never been to Japan, yet he was more Japanese than English in habit. Once or twice he went voyages in sailing-ships to the European countries, but he objected to the sea because he was confined to shipboard. He ultimately declined any offer to leave London. He became the first "cat" burglar.

His mind was a moral chaos. In this he resembled his father, who died in a brawl; and he revered his father's memory with Japanese tenacity. His father had found no refuge in his own land, and had never adapted himself to the point of view of the West, being incapable of such adjustment. He had objected to all law because it was a restraint. The only law he bowed to was the law of the jungle. The result was that his son, Jimmy, was not so much his son as he was a cub.

Strangely enough, the West that was in Jimmy Sockem aided him to outrage its ideas of conduct. The English strain in him struggled vaguely in his youth to assert itself above the abnormalities of the old *inkyō* tradition, but

it was smothered because the latter were the stronger. The mind-substances of his parents could not blend in him. They warred.

Because of his mixed blood he became the object of indiscriminate charity administered by emotional people who visited Limehouse. He was invited to the West End houses, and there exhibited as an example of race blending. As a boy he did not object to this; he was rather proud of it. But as he grew he saw the gulf between the East End and the West End. He could not reason things which, to him, were unreasonable. He flung a bridge across the gulf with Eastern fixity of purpose. As a burglar he might take what he could never otherwise handle. He left the shipyards and became a night marauder. The boy had become a man.

The name which his father handed down to him was lost in the tempest of his activities. That name was Sok-Emm; but, with that remarkable facility which the East End possesses for making a nick-name proclaim a man's character, his companions had extracted its foreign meaning and had endowed it with a grim, local significance. Sok-Emm to them was nothing. Sockem was everything. The word preserved his pitiless savagery. His career was marked with episodes of jungle ferocity. Physically he was an engine of destruction. Mentally he was cunning as a leopard. He had been guilty of maiming, and was suspected of murder. But he had brought into human life that quality of elusiveness, that protective resemblance to surroundings, which makes it difficult to tell where the forest ends and the tiger begins. Both physically and mentally he had the characteristics of a chameleon. In a word, he was a monster.

With all his cleverness, however, he had been caught. Ben Foss had been his partner, the man who acted as scout on big jobs. It was Foss who hung about mansions, hotels, shops, when a burglary was planned. It was Foss who collected the information necessary before the blow was struck. When all was ready, Sockem struck the blow. But on their previous expedition he had struck too quickly. Both he and Foss had made a mistake. They had been captured and sent to prison.

Foss, because he was not so dangerous as Sockem, had been given a shorter term, but the grind of prison life had wrought changes in both. Foss had been shaken to the roots of his pliable nature. He had emerged from his confinement with his nerve broken, a scared man. His mentality could take

punishment up to a certain limit before it collapsed. The sentence exceeded this limit. Repentance had come through fear.

On Jimmy Sockem the prison life had had another effect. He had gone to his cell snarling. He came out silent. His spell, which would have broken ordinary men, hardened him. While still enduring the punishment society had inflicted on him, he planned future crimes against society. He did this out of a twisted idea that clamoured for revenge.

Foss was clay when he went to prison. Like some clay subjected to pressure, he at first rebelled. The clay became brick. The limit of resistance to the pressure was reached and passed. The brick broke into fragments of rubble.

Sockem endured the pressure without breaking. He was like the one-celled animals called protozoa. He became flint.

Having fixed his purpose, he sought the old partnership when he re-entered the world. He wanted to lose no time in carrying out his war against organised order. But Ben Foss had shrunk from his old habits; he had obtained a post as manservant to a wealthy connoisseur of *objets d'art*, a bachelor and a philanthropist. To steal from this man became doubly attractive to Sockem.

It is not every burglar who can be a "cat." It is not every "cat" who can be a burglar. Sockem could be both—and more. He could be a murderer with the same lack of compunction as he could be a thief. The one idea which dominated his acts supplied at once the excuse and the reason for his cold ruthlessness.

At first he had suspected Foss of taking the position in the flat so that he could steal its treasures easily, but the truth was now clear. Foss was no longer his partner; he was a danger unless he was involved. Fear of prison had to be overcome by fear of something else. To save himself, he had to make Foss a criminal once more.

He stood watching Ben as the latter moved about the room, collecting what valuables were worth taking and handing them to Sockem. The latter was as cool as ice. The door-bell tinkled once more. Sockem smiled, and stepped over to a gramophone, selected a record, and set the instrument going.

"Hurry!" he whispered. "That will blind him for a minute."

He wiped the bloodstained bronze with his handkerchief and took the marks off the polished table.

To Foss the whole affair seemed a kind of dream. He moved as he was ordered, doing as he was bid without protest. He had once more surrendered what remained of his personality into the hands of his master in crime; he had again become the jackal to the lion. Fear had driven him towards crime as it had driven him away from it.

They left the light burning and the gramophone playing. The door bell was ringing as they slid over the window-sill. Everything had been done swiftly, deftly, as experts work. Sockem had provided for emergencies. Half way down the drain-pipe they swung across a branch pipe that brought them to the roof of a smaller building. From this they landed into a side-lane.

They were gone some way along the main road, through the thick fog, when Foss found his tongue.

"Where are we going? The cops will come to the old place."

"I've found a new one."

They walked out of the fog into Waterloo Station. Something of the old thrill of bravado stirred in Foss's blood as they passed close to the platform policeman. He experienced the old elation, or a hint of it, as they mingled with the theatre crowds on their way home. Who could trace them in the surge of hurrying figures? Who would pick up the trail which the fog had covered?

At the booking office, Sockem bought a ticket for Foss and handed it to him. Foss saw the name of a riverside station on the slip of cardboard.

"Jimmy, why are we goin' there?" he asked in surprise. He had expected a ticket for Southampton.

"You'll see," replied Jimmy grimly.

They journeyed with other passengers, and emerged at their destination in a heavy drizzle. The fog had given way to rain. The drizzle gave way to heavy torrents as they trudged along a country road. In an hour they had struck off the road into a lane. A few minutes brought them to the bank of the river.

In spite of the questions that Foss constantly asked, Sockem did not answer. His mind was filled with one object. He began to search among the bushes by the bank. At last he found what he wanted. It was a rope hitched to a sapling. He unhitched the rope and began to haul it in. A dinghy came out of the misty rain and bumped against the bank.

"Get in, Ben."

Drenched and sodden, Foss obeyed and sat down in the stern. Sockem took the oars and pulled out into the stream. Practised rower as he was, he made no noise with the oars as he pulled against the tide. The rain was coming down in torrents when he ceased rowing and turned to peer through the thick atmosphere.

"Here we are!" he announced triumphantly. "Our place!"

"What is it?"

"A house-boat. Hold on to the stage. Bill Hemsey ought to be here."

In another moment they were alongside the dark river dwelling. They landed on the floating stage, and Sockem tied the boat to a rail, then led the way inside, opening the door with confidence. He knew his way.

"Bill Hemsey hasn't got back yet," he said. "He is coming—ought to have been here now. He was getting stuff on his own. I put him up to a job."

Hemsey was one of a small gang who kept more or less close company with Sockem—a snatch-thief who posed as a sportsman.

"Ain't this safe?" Sockem cried, as he lit a lamp in the centre of the apartment. "It's one of them boat-houses used in summer, but left to itself during the winter. Wasn't it a good idea?"

"It was, if it's safe."

"Nobody comes, I tell you. I've watched this place for weeks. It's derelict. I boarded up the windows so's the light won't show. Hemsey is coming to-night, too. And Mackintosh, who gathers the stuff for Eckhardt, the fence, is due to-morrow. We're safe as houses. You can't tell me how to cover our tracks. Look!"

He pointed to a ring in the floor at their feet.

"My safe! The river hides our loot."

He bent and pulled at the ring. One of the floorboards came away. On its under side a large screw hook had been fixed, and from this hook a thin rope hung down into the black depths. Sockem hauled at the rope. A sack, dripping with water, came into view.

"Put the stuff in the sack," he said, grinning.

They deposited the goods they had brought into the canvas sack, where other valuables were already placed, and Sockem lowered it again and slammed the floorboard. There was a flush of pride on his face as he stood up.

"And supposin' the cops come here, what would they find?" he demanded. "All they could give us is a week or two for breaking into the boat. We could say we came for shelter. Who'd think that thousands of pounds' worth of stuff was swinging in the bilge below our feet? Most of these craft collect water in winter."

He laughed and slapped Foss on the shoulder.

"And Bill Hemsey is coming with more to-night. He ought to have been here now. You know Bill, don't you?"

"I remember him," said Foss. "What's he after?"

"Money. Ready money. He's getting the rents of a certain party. The money and what we've got will make the biggest haul we've made yet. The money will take us abroad. What are you looking so dismal about?"

"Seed told me honesty was the best policy," mumbled Foss hesitatingly. "I gave him my word——"

"That don't matter, Ben. You've joined me now. And I want you to start work to-morrow. Bill will bring us news."

"What do you want me for?"

"Same as you did before. Scouting. There's a village less than a mile off. You'll fetch us grub until the coast is clear."

"But if I'm caught?"

"Then Bill or I will go. If you're caught we'll know the cops are about."

The truth was out, and the shock of it drilled through Foss. Alternately he had been swayed between fears of capture and the possibility of escape. Now he saw that he was being made use of. He was the shield, the protection, the bait, the foil. A sick smile passed over his face.

"You needn't get caught unless you're careless," said Sockem, as he wrung the water from his coat. "And we'll be rich now. I'll tell you why I came to the flat. They said you had reformed."

"Who said it? I promised Seed——"

"Oh, Hemsey told me. And I needed you as a scout. You know my ways, and I know yours. See? And Mackintosh, the agent for the fence, is due tomorrow to make a deal. He's a Scot, is Mackintosh. Works for Eckhardt, the big fence. We'll get away maybe to-morrow night. You'll get your share."

"How much?"

"We'll see what Mackintosh gives us for the stuff."

"And after that?"

"He is arranging a passage to Cherbourg for me. You, too, can come. We'll get a ship for America there. There's enough in that sack to keep us for years. You couldn't make that amount in a lifetime by honesty, see?"

There was a scanty store of provisions, which had been brought by Sockem, in the house-boat, and they ate a cold, frugal supper in silence. Then they retired for the night. The only bedding available was a couple of old mattresses which had been left by the owner of the house-boat. There were no blankets or coverings, but to men who had been in prison this was not a great hardship.

Sockem occupied a small room on one side of the alleyway; Foss had one opposite. The lamp was extinguished. Only the beating of the rain on the roof above their heads and the swish of the river broke the stillness of the night.

But, if Sockem slept well, the reverse was true of Foss. He lay tossing on his mattress, tormented and restless. The silence and the darkness brought fears that grew big and fantastic. He wanted to go back. He remembered the vow he had made to the detective who had obtained the job for him. He remembered the kindnesses of his late employer. He remembered the

security with which he had gone to bed in the flat—security because he was not being hunted, because he was not opposing the law, but was protected by it.

The hours passed slowly. The rain increased. It fell with relentless monotony, lashing on the house-boat and streaming down the windows. The structure swayed with the fury of the rising wind. The tide cradled it violently. Dawn broke grey and dull. And there was no sign of Mackintosh, or of Bill Hemsey.

Sockem was in the kitchen when Foss rose and joined him.

"Can't think what's keeping Bill Hemsey," growled Sockem. "He promised to be here. Anyway, Mackintosh will come. Bill, too, after the rain."

They broke up some chairs for firewood and started a fire in the stove. The atmosphere was cold and clammy. The roof leaked.

"We ain't got any grub, Ben. Our supper was the last I had. You'll have to go out and get something. Bill was to bring some eats. He's got a girl. That's where he was going after his stunt. Girls are the devil. Well, you've got to go."

Foss moved to the landing-stage sullenly, with the intention of looking for the boat they had moored the previous night. It was not there. He looked across the tumbling river. Over by the opposite bank, fifty yards down, the boat was caught by a fallen tree. It had been swept away by the rising river, which during the night had reached flood point. The water was overflowing the banks, and swirling down in a heavy, brown billowy mass. The house-boat was tugging at the chains that moored it. They were marooned.

"We can't get any grub, Jimmy. We're too far from the banks."

Something like dismay came into Jimmy Sockem's eyes.

"I broke down the shore gangway," he muttered. "It spanned a dozen yards from the bank."

"We're twice that distance now, Jimmy."

"Can you swim?"

"No. Can you?"

"No."

A silence fell on them, broken at last by Sockem.

"It means we'll wait here until the fence comes. He'll find the boat and bring it along."

They went back to the sitting-room, where two aged cane chairs remained. These Sockem broke up and burned in the stove. They picked the last crumbs off the supper-plates. Sockem took his horseshoe nail from his pocket and began to sharpen it on a small hone. He hummed a tune as he worked. The rain became heavier than ever.

By midday the river had risen still more. Not a sign of anything living appeared along the streaming banks. Drip, drip, drip; slash, slash, slash; rumble, rumble, rumble—the first from the leaking roof, the second from the whipping rain, the third from the rising river—these were the only sounds that came to the two men in the house-boat; these, and the constant honing of his large steel nail, which Jimmy Sockem kept up until the weapon shone like a knife-blade.

No receiver of stolen property came that day. They went to their mattresses hungry, cold, miserable. They no longer spoke to each other. The rain increased. The wind rose to the strength of a gale. When they woke the next morning the waters were crested with small breakers. The rain was worse than ever. The roof leaked everywhere.

The second day passed as the first, the third came as the second. They looked out and saw, not a river, but a real flood. The water had spread into the adjoining meadows, and had formed a huge lake, which was ever increasing. Their boat had been driven away in the spate. In the midst of this desolation the house-boat floated, dragging at its foundations, its stage under water. The two men were helpless.

That day Sockem fished up the sack of loot and went over the valuables like a miser counting his hoard. Foss, who watched him in silence, saw the water ooze in under the floorboards. The truth struck him like a blow. The rising river was driving them from their shelter.

The afternoon made this definite; both of them saw it. Foss had reached the limit of his endurance. Sockem was now tigerish and unapproachable. Cowed and afraid though he was, Foss spoke his thoughts.

"Seed said honesty was the best policy. It is true."

"It is a lie," thundered Sockem. "Is not this sack proof I am right? I can break any law I wish to. We are rich."

"We are poor. We are starving."

"That is your fault. I have supplied the loot that makes us rich. You must supply the food to keep us till the floods go down. I have been thinking. You have to be driven. I shall drive you."

"How?"

"You are the scout. Why don't you scout? You must be forced. Listen. I am going to make a raft from the timber of this house. On that raft you will pole your way to the village and bring back food."

"I daren't. I should be drowned."

"If you don't go I shall kill you."

His face assumed the horrible cunning peculiar to his nature, and he stretched out his hand for the shining, dagger-like nail which lay on the table.

"Why don't you go yourself?" cried Foss in desperation.

"Because I must not. Seed knows I climbed to the flat that night I killed your boss. It was he who came to the door. I heard him in the garden as I climbed. He has been on my heels for days. You can go for food. You must. Or else——"

He shrugged his shoulders and turned to the work he had indicated. He worked with savage ferocity while Foss watched him, shivering and biting his lip. He was scared. He saw Sockem, by prodigious efforts, and with the aid of a hammer taken from the kitchen, beat down a large section of the wall. It fell across the flooded staging, and lay ready to be launched.

"That's my job finished," announced Sockem. "It is up to you. Go—or say your prayers."

He laughed wolfishly and went to his room, banging the door and bolting it.

Foss was alone with his thoughts. His thoughts chilled and roasted him alternately. It was death to go and death to remain. Dusk had fallen. Away in

the distance he saw the twinkling lights of the village. The rain had slackened, but the river rushed wildly on its course.

An hour passed. The darkness deepened. Foss stirred. An idea had come to him. He crept towards the room in which Sockem had locked himself and listened at the keyhole. From the room came regular breathing. Sockem was sleeping, tired out with his labour.

Foss went back to the raft. His idea was to take his chance with the floods. He repented having given in to Sockem. Why should he not try to save himself and leave this savage to his fate?

He had laid hold of the raft when a glimmer of light pierced the darkness far down the river. He looked, and saw it become bigger. It was a light from a boat. Already he heard the "chug-chug" of a motor. Someone was coming up in face of the racing tide—evidently rescuers out to aid river-dwellers caught in the storm.

Here was a chance indeed! He could escape from the terror that was Sockem. He would go to Seed and explain all. He would ask for protection against Sockem's vengeance. Seed knew he had tried to run straight. Honesty was the best policy. If a man was honest he need never have these fears and despairs that had gripped him and terrorised him since Sockem had come back for him.

The boat was now almost level with the house-boat. It would pass without seeing him. With a cry he thought of a way out.

He ran to the kitchen and took the lantern, lighting it hurriedly. Then he came back to the stage, waving it to and fro. But the waters drove him in again, lashing against his legs. He dared not shout lest he wakened Sockem. A voice came over the floods.

"Keep steady! Give us a chance to get you!"

Ah, the light must be steady! Foss dashed back to the kitchen. On the table was the long, steel nail, Sockem's one tool. He picked up the hammer and ran out to the staging again. Muffling the head of the nail in his handkerchief, he drove it into the wooden wall. It sank through, met an obstruction half way, but a blow fixed it securely. He hung the flickering lantern on the nail and waited.

The boat came towards him. Its motor chugged so loudly he was afraid Sockem would hear. Out of the darkness the boat glided, and a man sprang on to the submerged staging.

"Hullo! Floods held you prisoner—Foss!"

The man who had spoken was Detective Seed.

He took hold of Foss's shaking frame and looked into his scared eyes.

"Steady up, Foss! You're all right with us! Have you found Sockem?"

Ben gulped hard, but his tongue could not utter words. His hand jerked towards the room behind him.

"All right, Foss, you've had a hard time, but we're the river police," said Seed quickly. "Lucky Sockem didn't kill you. I suppose he's barricaded himself in. By the way, your boss told me you had gone after the burglar _____"

"Ain't he dead?"

"No, but he got a bad rap on the head. He's recovering all right. He knows you're straight. Well, we've caught Sockem's receiver of goods, Mackintosh. We got him as we were coming up. He's confessed that Sockem was here, but we'd have passed you but for your lantern. I knew Sockem had a nest on the river. Don't worry. We've got him now."

He drew a revolver and approached the door of the room, and at his heels went two men from the motor-boat. They burst the lock open. One man switched on a flashlamp.

"Get up, Jimmy Sockem! I'm arresting you for burglary——*Ah!*"

Seed moved forward suddenly, and looked at the prone figure in the narrow bunk.

"Look!" he cried, pointing to the wall against which Sockem's head rested.

The long, shining horseshoe nail which had been driven through the wooden partition had caught Jimmy Sockem as he slept, and had penetrated to his brain.

The Governor bent forward as he finished his story and tapped the edge of his desk with his forefinger.

"So you see that Jimmy Sockem was not drowned. He was buried in the East End, and I don't doubt that you have seen his grave. As he had no relatives, the police paid for his funeral, after an inquest had been held very quietly. The verdict was 'accidental death.' And Ben Foss went back to his job. He has never again been tempted, or bullied, back to lawless ways. As for Mackintosh, the agent for Eckhardt, the receiver of stolen goods, I think I have already informed you that he is just now occupying the ninth cell below us."

The visitor remained silent for some time, thinking over what he had heard.

"I suppose I ought to be thankful to you," he remarked, "for telling me the real nature of the famous 'cat's' end. The story current in certain circles is that he was drowned in his bunk during the flood. But there is one point which your narrative leaves undetermined."

"What is it?"

"Why was it that Bill Hemsey did not come to the house-boat when he was expected?"

"Ah," smiled the Governor, "that is still to be explained, and in order to elucidate that matter I now propose to give you the story of the occupant of the tenth cell, who is none other than Bill Hemsey himself."

THE STORY OF THE OCCUPANT OF THE TENTH CELL

I am living in hopes (said the Governor) that one day—though I may not see it (at this the visitor slightly inclined his head and laid his hand on his revolver)—criminals will realise that crime does not pay. For the time being, however, the difficulty is that whenever one man is taken and sent to prison another seems to step into his place. Thus crime appears to be continuous, though it could be proved by analytical discussion that it is not so. However that may be, it was evident to those whose duty it is to observe such things that Eckhardt, the receiver of stolen property, must find a crook to take the place of Mackintosh.

Up to this point, mark you, Eckhardt was merely under suspicion. The law could not lay its hands on him for lack of evidence—that is, evidence that would produce a conviction in a court of law. There was plenty of suspicion against Eckhardt, all the same, but suspicion is not evidence. But it was noticed that Eckhardt did find somebody else to do odd jobs for him, jobs that never brought him into conflict with the police, but were again suspicious.

This man was a young member of an East End company of loafers and hangers-on. His name was Tommy Conn. He openly boasted of being a burglar, but he took care that boasting was all that could be said about it. After he became friendly with Eckhardt he ceased to boast—itsself a circumstance worth noting.

Conn will interest us after we have dealt with Bill Hemsey, for Conn occupied, in some ways, the same position in relation to Eckhardt as Bill Hemsey did in regard to Jimmy Sockem. That is to say, both were minor crooks who worked under the directions and suggestions of their leaders.

It was Jimmy Sockem who had put Hemsey up to the idea of taking the rent money of old Luke Kohl, the Jew who owned property in the lower reaches of the Thames. And so, on the evening that he was expected to reach the house-boat, we find Bill Hemsey on his business of annexing these rents.

Bill was not high up in the scale of criminal cunning, but he was high enough to know that he could lift the money belonging to Kohl if he worked properly. As a matter of fact, he found the actual theft easier than he had imagined it would be. He went to Kohl's house prepared for some sort of opposition, and he found none.

I think you will remember that Jimmy Sockem, during his talk with Ben Foss on the house-boat, grumbled because Bill Hemsey had said he was going to see his girl that same evening. The truth was that Bill needed his girl's help to get away with the swag, but she did not know it; or, rather, one ought to say that Bill needed the help of his girl's father, but neither did the father know it. They were not the sort of people who would have aided him had they known.

All these things come out at trials, and the trial of Hemsey resulted in him losing more than his liberty, much as he prized that.

Here, then, we have Bill in possession of the bag of money, and standing in the small back shop of Kohl, listening intently for sounds from above. No sounds came. Bill had entered the shop by the back door when Kohl was upstairs at tea. He had found the bag on the top of the safe. He opened it to make sure that the money was there. It was all there in notes and silver. Bill sighed with delight.

He snapped the catch and was on the point of leaving the shop when he thought he heard a step on the stairs. He braced himself, prepared for a struggle. But it was a false alarm. Nobody came downstairs. Hemsey did not wait. He took a firm grip on the handle and walked out by the door which he had forced in order to enter.

He went over the yard wall, and turned towards the main thoroughfare feeling that he wanted to laugh. It had been so simple that he could hardly believe it. Yet there was the money in the black handbag, the small canister of pepper which he had intended to shoot towards Kohl's eyes was in his pocket, unused, and not a soul had observed his way of entry. He had left no finger-prints on the door or anywhere about. He still wore the leather gloves he had drawn on his hands before he committed the crime. And he was nearly two hundred pounds richer than he had been a few minutes previously.

It all proved, he told himself, how easy things could be done if one took the trouble to lay the scheme beforehand. In this case he had certainly been very careful. With care comes success, in crime as in respectability. Honesty and lawlessness both require consideration.

Bill Hemsey had known about how old Kohl collected his rents for some time, though Bill did not belong to the district. There had been more than one attempt by the roughs of the riverside streets to waylay old Kohl and grab his money-bag, but these attempts had always been frustrated because old Kohl, if he was feeble and rich, was also decidedly suspicious. He knew that the bad men of the Thames wharves were anxious to purloin his money in the dark corners through which he had to pass when he collected the rents; but those who had tried to snatch his bag found it was fastened by a light, strong, steel chain to his waist. Thus a thief who wanted the bag and its contents must take Luke Kohl also; and no thief wanted his screaming accuser to accompany the loot.

Besides the chain, Luke Kohl had another means of protection. This was a police whistle, and on the occasions when he had been molested he had sounded his whistle while the would-be robbers tugged at the bag. They had been captured before they had run the length of a street, for the police were generally in the vicinity, thanks to Kohl's anxious requests for their services.

These were difficulties which Bill Hemsey had to overcome before he could possess the rent money of Luke Kohl, but Bill had found a way to beat the opposition. If Kohl was crafty, Bill was more crafty. He found the weak link in Kohl's armour. That link was Rachel, the old man's daughter.

Rachel lived with her parents in rooms above their small bric-à-brac shop. She was neither beautiful nor the reverse. She was "homely," getting on in years for a maiden. She met Bill Hemsey at a local dance-hall. It was not an accidental meeting so far as Bill was concerned, for he had come to the hall with the distinct intention of becoming acquainted with Rachel. He met her several times afterwards, he spent money taking her to the cinemas, to local music-halls, to various places where cheap amusement was to be found up West. He walked out with her two evenings a week for a month, and by that time he had wormed his way into her affections and knew the whole routine of her father's business, even down to where he placed his bag with the rent money when he brought it home. The bag was placed on the top of the safe

in the back shop while Kohl locked the front door and went upstairs to tea; after tea the bag was put, with the till, into the safe.

The taking of the bag was Bill's supreme crime. It was to be his final one. Working with Sockem, his business was to lift the ready money, take it up the river, and in return he was to get a share of Sockem's loot. This trading of stolen goods is done quite often, helping to baffle the police and making the real source of a robbery difficult to trace.

As for Rachel, she was not the girl to whom Sockem referred. Rachel was merely a pawn in Bill's game. Indeed, her friendship with Bill had been a little troublesome to him. She presumed more than he intended, and she had asked him on more than one occasion to come home and meet her parents. These invitations had always been side-tracked by Bill, who had no desire to step into what might be a trap for himself; he did not want to meet Luke Kohl, who might then be able to identify him at a crucial moment—for instance, when the pepper was being thrown into his eyes. So that Rachel might be well out of the way, Bill had written to her asking her to meet him at a point up West, and he had seen her start for the rendezvous. Exit Rachel from Bill's life.

As he walked along, Bill felt confident, and had not any anxiety. Nobody had seen him take the bag, nobody could accuse him of entering by the back door, not a soul knew that he was a petty thief and had been one for years. Between his "jobs" in crime he conducted a perfunctory street-corner business of bookmaking, a cloak for his other activities and a means of getting the information to enable him to carry them out. It was as a book-maker that his friends knew him; even Rene Toler, his real girl, whom he intended to marry almost immediately, regarded him as a sporting person. It was to her rooms that Bill Hemsey was now making his way.

He left the main thoroughfare and took to side streets, past one of the blocks of flats which Luke Kohl owned, the flats the rents of which were in the bag he carried. Tall dismal buildings, these were situated near the riverside, and let out in mean dwellings of single, double, and triple rooms. They were peopled by the casual workers of the docks, labourers of the river, the families who hung on to life by short spells of work sandwiched between periods of unemployment. It was because of this unreliability of income that Kohl collected his rents regularly, never allowing arrears to accumulate.

From the streets behind the river were many dark, narrow passages, sombre and badly lit by scattered street lamps. In front of the houses was the river front, a narrow flagged pathway. No railing or fence was erected by the river's edge, and here and there lonely barges from Gravesend and Tilbury squatted on the sticky mud that was squelchy as a quagmire when the tide was out. This ooze, three feet deep, was covered at full tide with sufficient water to float the barges and the boats of the water-men up to the wall of the river front.

During the daytime the "esplanade," as it was called by courtesy, was the rendezvous of loiterers and bargemen. By night the place was deserted save for an occasional boat that crossed the river as an unofficial ferry, since the nearest bridge was a considerable distance away. It was Rene's father who worked this spasmodic ferry.

Rene did not stay with her father. She worked in a laundry on the same side of the river as Bill had rooms, and she had given Bill proof of being able to look after his wants in the future by doing his washing and pressing his suits in her spare time. Pretty, hard-working, and capable, she was as straight as a fiddle-string, and Bill knew that she would make an ideal wife. She had no silly ideas of romance about her. Her one strong point was her profound common sense. It was because he was fond of her that Bill had made the raid on Luke Kohl's money; this, he told himself, was to be his last excursion into crime.

As she opened the door in answer to his knock, he was met by a rush of hot atmosphere from the apartment.

"Hullo," said Rene. "You're early."

"Better early than late," replied Bill, grinning. "What you busy at? Same old stuff, hey?"

He sat down on a chair and looked at the heap of washed clothes on the table at which she had been ironing. His reception had not been as cordial as he had hoped, but Rene was never demonstrative. Bill chuckled to think that he had now enough money to set the two of them up comfortably.

"Give us a kiss, Rene," he said.

He rose and advanced towards her, but she waved him aside and returned to her ironing table.

"What's the matter, Rene?"

She turned on him quickly.

"There isn't anything the matter with *me*," she flashed.

Her tone startled him for a moment, but he quickly dismissed his fears. She could not possibly know that he had money in the bag and that he had stolen it.

"Well, don't be funny," he grumbled, watching her all the time. "I told you I was coming over home with you to-night. I want to talk things over with your dad. Ain't you glad to see me? I've got an appointment, but I'll be back late."

"What things are you going to talk over?"

"About you and me. I was thinking we might get married soon."

"You said that a while ago."

"I know I did. But I hadn't the money."

"Have you got it now?"

He smiled. This was his great secret, the winning card he held up his sleeve.

"More'n you think, Rene. I'll show you what I've got all in good time. And your dad too. Did you ask him to bring his boat over for us, same as I said to you?"

"I told him."

"Well, stop working and let's go."

"There's plenty of time yet. Besides, I've got these things to iron, and the suit you left me has to be pressed. I promised I'd do it by to-night."

He gazed at her cunningly.

"How long will it take you?"

"I'll be finished in an hour."

"Mind if I stay here to watch you?"

"Please yourself."

"What's the matter with you, Rene? I come here to give you a pleasant surprise and you're hardly civil."

"If you found that I'd been flirting with other men you'd be mad too."

"Oh!"

He began to see the reason for her coldness. But before he could say anything she glanced at him from the hot iron her eye was following.

"You needn't deny it. You were seen."

"Who saw me?"

"I did."

"You're jealous, Rene, and there's nothing to worry about; honest, there ain't. I give you my word."

She was ironing determinedly, her lips straight and tight.

"It was only a business affair," he began.

"Business?" she scoffed.

"I'm telling you, Rene. It was business. A man has to be friendly with them that bring money to him."

"Has he to take them to the theatres?"

"It's good for business——"

"Or to dances?"

"It's good for——"

"Or buy them chocolates?"

"Aw, you needn't be jealous. There was nothing in it."

"Funny way of doing a betting business," she answered bitinglly.

"Rene," he began, but stopped; for to make her understand he was bound to tell everything, and he dared not tell everything. The crime was his one secret which he must keep to himself, even if it was to be his last.

"It ain't the first time," she added. "You've been with her lots of times."

"I won't again, Rene."

"How do I know you're speaking the truth?"

"I give my oath on it. It was only business."

"What would you say if I started gadding about with men?"

He had not seen it this way, and the idea struck him forcibly, for he was fond of Rene in his way.

"What would you do?" she demanded.

"You wouldn't do that, Rene?"

"What if I did? Ain't I got the right to go to the cinema with a boy, if you go with a girl?"

He did not answer, but the look in his face was dour and ominous. She suddenly became afraid of him.

"It was only business," he muttered. "Just business."

He was standing at her elbow as she laid out his suit for the ironing process. There was something menacing in his attitude. Man-like, he did not understand her mental injury nor appreciate her point of view; his environment had never taught him that women had any right to question, yet he longed in a dull way to probe the suspicion her words had raised. She seemed to sense this, for she spoke quietly without looking at him.

"I didn't do it," she said simply. He breathed deeply, as if relieved.

"How long will you be at this job?"

"A bit yet."

"What about a drink of something?"

"I can't leave this. There's time enough before dad comes. You can go out for a drink. Come back in half an hour."

She glanced at the clock as she spoke.

"All right," he said, as he picked up his cap and kicked the leather bag under his chair. "I'll bring a bottle back for your dad. He can take it home with him."

"Didn't you say he was to meet us by the esplanade? He won't come up here _____"

"Well, I'll give it him in the boat."

He clumped downstairs with something of his usual complacency gone from him. He had never been suspicious of Rene before. He was angry that she should want to know the reason he had been friendly with Rachel Kohl; and he dared not tell that. Even if he was forced to tell something of the truth, he had to hide his crime, for then Rene would tell her father, and her father would deny him the use of the boat. Bill Hemsey needed the boat that night. He could not chance taking a bus, or be seen walking in the streets with the bag. Kohl would have discovered the theft by this time and would have told the police. The police would be on the watch, and the only way to evade them was to get down to the dark esplanade and cross the river by boat. He would destroy the bag when he got to his rooms.

In fifteen minutes he returned to Rene's room, hugging three bottles of stout. He pushed the door open with his foot and entered. He heard voices. A young man about his own age was in the room.

"All right," he was saying, "I don't need to see you home if that's the case."

Bill Hemsey blundered in and placed the bottles on the tables. The stranger said he would be going. He went out, and Rene lifted from the table the coat she had been pressing. Bill wheeled as the door closed.

"Who was that?" he demanded.

"Jim Harlek. He lives next door to dad——"

"So that's why you asked me to go out and fetch a drink? You expected him here and thought I was better out of the way. He slunk off when he saw me. He came here to see you home——"

He shouted his accusations at her, giving her no chance to answer him. For the moment he was seeing red. All his suspicions were returned, flaming high. He saw it all. He had been duped, misled, deceived. He seized her shoulder in a fierce grip.

"So it's Jim Harlek! He came to see you home. Don't deny it. Up here in your room. That's why you said I was early. You expected him. You sent me out so's you could warn him I was here. Tit for tat, hey? That's because you were jealous. Thought you'd pay me out——"

"Bill, you're hurting me!"

"Hurting you! I'll hurt you more. Mine was business. You can't say that about Jim Harlek. And you said you hadn't done anything like that——"

"Let go!" she cried, wriggling from him; but he pursued her, anger raging and flushing his face.

"I'll teach you," he cried. "Playing that trick on me."

"What about the trick you played on me? What about Rachel Kohl? What about the theatres and the dances and the letters you wrote her?"

"That was business, I tell you."

"I don't believe it."

"Maybe you'll say that Jim Harlek came here on business? I'll find out about you and him. I'll teach you——"

"Let go! Let go!"

She struggled to free herself from his grasp, and the more she struggled the more he raged at her. The very resistance she made seemed to his inflamed brain to be proof that she was guilty of deception. And because he was then incapable of reason he kept up a torrent of accusation, a cataract of threats and insinuations, the words pouring from him as he shook her. He beat down the opposition she had at first shown. He silenced her by the ferocity of his wrath; and then he flung her into a chair.

"From now on," he cried, wagging a finger at her, "you ain't going out of my sight. You get your things on and come home. We'll see what your dad has to say when I tell him. You women all need to be broken in. I'll break you in. Come on, get on your hat."

She sat white and trembling, but there was a gleam in her eyes that he had never seen before.

"Get on your hat," he thundered.

She obeyed him, biting her lip. A change had come over her. She no longer tried to answer him. She put on her hat and coat while he packed the suit she had pressed. They went downstairs, he carrying his bag and his suit in a parcel. He was still muttering to himself.

At the street corner she was about to walk towards the main thoroughfare, but he growled at her:

"Not that way. You're going down to the river."

"But——"

"Shut up and don't answer. I know your game. You'll do as I say, or I'll make you. Think I don't know what I'm doing? I don't want any talk. It's me that's seeing you home, not Jim."

"If you let me explain——"

"I don't want explanations. Not yet, I don't. That's enough. Not another word."

He saw what she was after, did Bill. Once out on the main street, where the traffic was, he would not be able to handle her. He knew that he must keep the mastery.

"If you cross me again I'll give you worse than I gave you up in your room," he growled grimly. "I ain't finished with you yet, Rene. You've got to know that I'm boss. See?"

She gave a queer little laugh at that; a laugh that stung Bill more than any accusations or defiance. It spoke to him of contempt, it was a sneer, a ridicule that cut him to the quick. He dropped his parcel and struck her, sending her staggering against the wall.

"That'll learn you," he said, glowering at her. "I'll break you in, I will. Come on, or I'll give you more."

She stood leaning against the wall, panting and holding her cheek. In her eyes there was a swift gleam that died as he looked at her. She was at his mercy, and she knew it as well as he.

"Come on," he ordered.

She obeyed without a word of protest.

He kept beside her as they turned down a side street, glancing at her now and then from under his brows, knowing by her silence that he had conquered.

Down through dark, narrow passages he marched towards the river bank. There were few lamps now and the mist from the river thickened the gloom. Bill welcomed the mist and the darkness. It hid them from prying eyes and thus made his escape with the stolen loot easier. Rain came—heavy rain.

Once the shadowy form of a policeman appeared across the street, and Bill feared that Rene would seek his protection; but she marched on without taking notice of the policeman if she saw him.

Soon they were in the black regions of the river. The cold damp from the water came to them in a murky breath. All was silent and black, and wet. The rain was steaming now.

Bill's eyes tried to pierce the thick atmosphere. He was looking for the boat and the light that would be fixed at her stern. He moved across the flagged front of the esplanade, peering intently. And just then he felt a pair of hands on his back. He was pushed forward. He could not help himself. He uttered a loud shout—and then stepped into space.

His bag and parcel flew from his hands as he fell, crashing against the stones and following him downward. He dropped straight into the three feet deep ooze that held him as he floundered. He felt himself sinking as he struggled. The more he struggled the more he sank. The sticky mud hindered his movements; and as he at last found bottom there came to his ears the voice of Rene Toler tauntingly:

"If you'd let me explain, Bill Hemsey, you'd have known that Jim Harlek came with a message from dad to say he couldn't come in the boat because the tide ain't full yet. I've had enough of you and your lies! You and your business meetings with Rachel Kohl! You forgot to take her love-letter out of your pocket when you gave me your suit to press, so you can go back to your Rachel Kohl, and don't ever come near me or I'll give you in charge."

And then, as she moved away, a little compassion perhaps stirred her. She called again.

"But I'll send a cop down to get you out of your mess in the mud. And if you want to know, I was out with somebody. It was Tommy Conn."

That was the last Bill Hemsey heard of Rene that night; but she kept her word. Five minutes later a policeman strolled down to see if it was really true a man had fallen over the "esplanade" into the mud.

He flashed his lantern on Bill Hemsey, still fighting his way ashore; and the blaze of the lantern showed a burst bag and numerous notes lying about the quagmire.

Of course this led to inquiry; and inquiry led to a charge; and a charge led to the Old Bailey.

The Governor paused.

His visitor smiled and shrugged his shoulders.

"And the Old Bailey led to the tenth cell?" he said.

The Governor nodded, stroking his chin.

"Bill Hemsey didn't have much of a chance with the jury," he said dreamily.

"Not so much as even the police expected he would have. Eckhardt, apparently, promised that he would pay for a defence. But he didn't. Neither he nor Tommy Conn took much interest in Bill Hemsey."

"How was that?"

"In order to understand the full circumstances," replied the Governor, "you ought to know the story of the next cell's occupant."

THE STORY OF THE OCCUPANT OF THE ELEVENTH CELL

"At any rate," said the visitor to the Governor, "there can be no doubt as to the category in which you will place Bill Hemsey. He does not appear to have much hope of getting higher than the Illiterates."

"I agree with you. Hemsey belongs to the grade you have mentioned. His place is fixed for the remainder of his term. His case—so far as his trial is concerned—reminds me of the biblical injunction not to put our trust in princes. Eckhardt was certainly one of the chiefs of the profession he had chosen. He was known among the criminal fraternity as the Prince of Receivers, though how he came to the title I have never been able to find out exactly. It may have been because he was rich, and appeared to be above the law."

The Governor cleared his throat and folded his arms on his chest as he bent a thoughtful gaze on the carpet.

Among the acquaintances of Tommy Conn (he began) was one who was, to some degree, a man who was his rival in crime. This man's name was Billiter. The two were rivals, although they worked by different methods. Conn was a burglar who lifted goods without opening safes; Billiter was an expert at safe-opening. These different methods originated in the early training of the men. Conn had never learned a trade. Billiter had been an engineer and mechanic before he became a burglar. Each believed his method the safest.

Let us take the case of Conn first, and see where it led him, and how he came to forget, not only Bill Hemsey, but even Rene Toler, within a week of Hemsey's arrest.

Tommy Conn was a burglar who possessed resource and was capable of quick decision. He often said that the last lap on a job was the only one that counted. Eckhardt, the receiver, had the knowledge of a connoisseur. Combine these qualities, and you have the most dangerous union at war with the law.

Conn entered a large house one night—a house in Park Lane—on what was perhaps the biggest job in his career. He stood in the large gallery listening for a sound that might betray his presence to the owners of the valuables he had come to steal. All was quiet save for the distant and indistinct movement that told him he had timed his visit well.

All was dark in the gallery, but a yellow line showed at the bottom of the door. Conn stepped over on tiptoe and turned the key in the lock. Thus he put a barricade between himself and anyone who might try to enter.

He was not afraid. He was careful. In the cases lined under the massive pictures on the walls were the valuables he had come to steal. He set to work at once. The family who possessed the goods were at dinner.

Only once or twice did he use his flashlight, and then he used it to make sure that he was taking what he had been instructed to take. From under his coat he produced a small cotton sack half filled with down. Into this sack he deposited the loot, one article at a time, gently and with care.

It was easy to insert his jemmy under the lids of the cases and give a slight upward wrench to the locks. While he did so he covered the locks with a soft scarf, to deaden the sound of splintering wood. This was child's play to Conn. Not a single lock gave more than a faint groan when he gave the twist needed.

There were valuables of all kinds—jewels, gold, pearls, ivory and onyx, diamonds and rubies. Most of them were set in exquisite form, paired and graduated in small antiques. There were tiny statuettes, treasures from the four corners of the world, all of which had been gathered by past generations and had been handed down as heirlooms; treasures that were too precious for public museums to buy.

Tommy Conn did not need his flashlight to direct his hand towards the best of these valuables. The sparkle of the gems guided him. He went through

every case, taking the best; then he stepped towards the door again, unlocked it, and tiptoed to the window.

He was on the first floor of the house, not a great distance from the garden. He went out as he had entered, took care to close the window after him as he hung on to the gutter-pipe that was within easy reach, and slid down to the ground. He landed on the gravel path and stepped on the lawn. Across this he sped, and leaped for the top of the wall that separated the grounds from a side-street. He had to wait a few moments before the road was clear; a policeman was strolling down towards the main thoroughfare. When the policeman was gone, Tommy Conn clambered over without making a noise. He walked round the corner into the main road and approached a small two-seater car that was drawn up by the gutter.

The lights of this car streamed down the road. The general traffic was streaming past it. The policeman who had come down the side-street was standing not far off. Tommy Conn walked up to the car from the rear, lifted the luggage grid and deposited his bag of loot in the space underneath, tipped the loafer who had been watching it for him, and took his seat.

It was not a new car, but it was a swift one, powerful and capable of tremendous energy. As he was about to start he saw the policeman's eye on the car, taking in its proportions. Tommy signalled to the policeman.

"I was told there was a garage up that street," he said, "but I can't find one. Can you tell me where I may get a supply of petrol? I must get to Oxford to-night."

"There's a garage at the top of that street, sir," answered the policeman, "but it's a long way up. A nearer one is straight ahead, ten minutes' walk from here."

"Thanks, I'll go that way. Good night."

"Good night, sir."

Tommy operated the self-starter, and the car slid forward. He felt the policeman's eyes on his number-plate at the back of the car. That did not worry him. The number-plate had been changed before he started on his job, and the number he showed would take a great deal of tracing. He forged his way among the moving vehicles and put on a little speed. The garage to which he had been directed flared at him as he passed it. He swept

up the first turning beyond it, dodged into Oxford Street, came down through Piccadilly Circus, and headed south. He was bound for Southampton.

Why did Tommy speak to the policeman? He did it because he had learned by bitter experience that to take the bull by the horns is safer, if bolder, than to let the bull take you. The burglary he had just committed had been done as many of his burglaries had been done—on commission. He regarded himself as an efficient burglar, just as a man might regard himself as an efficient plumber, or tailor, or stockbroker. He worked for clients. In Conn's case, the client for whom he worked most was Eckhardt. He was working for Eckhardt now, driving Eckhardt's car, going to the rendezvous on which they had agreed. When he reached the place he would receive his fee, hand over the car to another of Eckhardt's servants, have the number-plate changed, and depart. All clues had been covered, all suspicion could be met, all inquiries answered.

It was one of the biggest hauls he had ever made. The idea had been Eckhardt's, the planning of the theft had been Eckhardt's, the loot would be Eckhardt's—Tommy Conn's percentage was his fee. In this Conn was cunning. He did the work and let Eckhardt dispose of the proceeds. Eckhardt was able to do this because he was a dealer in valuable antiques, with a reputation in America and Europe. It is true that his reputation was shady, but he was always careful in his deals, and he knew that in antiques there are always collectors whose love of possession overtops every other consideration. Watch a salesroom during an auction of famous treasures and the truth of this will become very apparent.

At first Tommy Conn had protested to Eckhardt that the risk of breaking into Lord Calcott's private gallery was too great. It was known in burglarious circles that a policeman was constantly near the house, day and night. The mansion had become a kind of point duty, because Lord Calcott had great influence in political quarters and it was expected that at his death he would leave many of his valuables to the nation.

To all Conn's objections Eckhardt had a reply. The greatest risk was in getting away with the loot. Late at night, when the occupants of the house were asleep, burglar alarms would be working. The obvious thing to do was to get the goods when the alarms were not fixed up for the night. The best

time to attack the house was when the family were elsewhere. Dinner! That was the time.

How to get away swiftly? Eckhardt had a car. He offered to lend it to Conn. The latter had been in the car often enough, and he knew how to handle it. A burglar in a car was sufficiently uncommon to escape remark. A burglar who had a car such as Eckhardt's might laugh at any pursuing taxicab. To disguise the car the number only need be changed, for it was of a popular make, seen daily in the West End.

For the job Conn was to receive three thousand pounds in notes. These were to be handed over to him at Southampton, on board a small petrol yacht-fishing-boat which Eckhardt had hired for the purpose of escape. This vessel was of the type often let out to amateur yachtsmen at south coast resorts. In reality, they are converted fishing-craft, but they have the appearance of stodgy private yachts of heavy beam, and look worth twice their actual value. Eckhardt was taking one of these vessels over the Channel to a French port; from there he could get a ship to America.

The United States was Eckhardt's ultimate destination, because he could get a big price for his loot in that country. He intended to get a big price. He had tapped his market already. He had secured an offer for most of the stolen pieces. Receivers of stolen property have their own markets.

The master stroke of all Eckhardt's arrangements was that by which he was able to give Tommy Conn minute instructions and descriptions of the articles he was to extract. Eckhardt had paid a visit to Lord Calcott, pretending to act on behalf of a "client" who was prepared to offer a large sum for a certain medallion. Lord Calcott had politely declined to sell, valuing his collection as he valued the names of his ancestors who had brought it under one roof; but, seeing that Eckhardt knew his business, he permitted him to view the collection for a few moments. Eckhardt peered into every case, complimented the peer on his possessions, and left. He had seen enough. A month later he called on Tommy Conn, and the crime was discussed.

As he drove the small, powerful car through South London on his way to Southampton, Tommy Conn was under no misapprehension as to the value of the jewels hidden under the luggage grid behind him. He was able to

appraise and judge such things. He estimated that he was carrying loot worth at least a hundred thousand pounds.

A lesser man might have been tempted to make the error of keeping the whole for himself, considering that he was being paid but a small fraction of the value of his burglary. Conn knew better than be tempted. For a lone burglar to sell the jewels would be suicidal. Burglars cannot approach principals in such deals. On the other hand, to have taken the gems from their settings, to have dug them out of the gold, and to have melted down the glittering statuettes and ornaments, would have been to reduce the value to vanishing-point. The truth was that only one receiver in London was able to take the risk, or had the facilities to make it worth while assuming the responsibility, of disposing of them. That receiver was Eckhardt, the dealer in antiques, who knew every avenue by which treasures could be sold, as he knew the worth of every piece he saw. After all, thought Tommy Conn, the main risk was on the shoulders of Eckhardt. When Eckhardt had paid him his three thousand, the deal was closed so far as he was concerned. He was safe, too, for Eckhardt dared not give him away. Their partnership covered too many transactions for one of them to point the finger of accusation at the other.

Conn kept the car at an easy pace, taking a circuitous route—the one which had been mapped out by him when he had detailed his plans to Eckhardt. He went through Bromley, swerved into Croydon, speeded through Sutton, and passed Epsom at twenty miles an hour. It was just nine o'clock when he swung up Dorking main street and headed for the ridge known as the Hog's Back. As far as possible he had avoided the towns, and had not put on headlights when he was in the country. He reckoned that, by putting on speed, he would be in Southampton shortly after midnight.

He was over the Hog's Back and well on his way when he saw, glimmering faintly in the distance, the lights of an inn. He knew the inn. It was one used by those discriminating motorists who prefer quiet and good cooking rather than bustle and feeble imitation of West End restaurants. He was beginning to feel hungry, and wondered if he might stop at the inn for a meal. The matter was decided for him as he was sliding down a slope with his foot on the brake. From immediately behind him a loud report filled his ears, and almost deafened him for an instant.

Tommy Conn's nerves were strong, but for an infinitesimal period of time fear shook him. Presently he smiled. It was not a gun he had heard. He was not being held up. The report had been one of his tyres bursting. He jammed the brakes on, and came to a standstill.

When he dismounted, and looked at the rear tyre which had exploded, he bit his lip. This was no ordinary puncture. The tyre had been cut by a piece of broken bottle and was embedded in the cover. He pulled it out and looked at it curiously.

Taking a lamp, he walked back, flashing his light on the ground. Forty yards from his car he saw a broad band of jagged pieces of glass. Someone had deliberately laid down broken bottle-glass in the path of motorists.

Luckily, the inn was not far off. He decided to go there and see if he could get someone to fix on his spare wheel while he had some supper. He mounted his seat, and rode to the inn on three tyres and a rim, taking the car into a wide yard behind the square building.

There was no mechanic on the staff capable of fitting his spare wheel, so he had to tackle the job himself. To save time, he ordered a meal to be ready for him in the dining-room. He was jacking up his car when the landlord came out, carrying a lantern.

"This will help you, sir," he said, putting the lantern down so that the light fell on the number-plate, which he scanned. "I dassay you'll be surprised if I said a friend expects to get you here."

Tommy Conn gripped the jack tightly, but kept his head down and his back to the landlord.

"Expects me? Someone expects me?"

"That's so, sir. I suppose he'll be back for you by the time you've finished supper."

There was geniality in the man's tone, but Conn was in no mood to appreciate geniality. He turned with a snarl.

"I suppose it was you that laid a trap of broken beer-bottles on the hill?" he cried. "I'd have passed your beastly inn but for my tyre going phut!"

"Beer-bottles, sir? Why, that would be the gentleman who came to look for you. He was anxious to find you, he was. I'll send a lad up to clear the glass off the road at once. That's dangerous, sir, that is."

He bustled into the house, and Conn heard him giving directions. Tommy Conn was no coward, but the landlord's words set his heart leaping. Who had laid the line of broken beer-bottles on the road? It had been done with a definite intention. Through his mind there flashed the thought of the policeman who had stood near his car just after the burglary. The policeman had seen the number beside the rear lamp. There was time for them to find out about the burglary and wire outlying stations. Was it possible——?

His thoughts were disturbed by the return of the landlord. The man was frowning.

"Who was this gentleman who was looking for me?" demanded Tommy Conn. "What was he like?"

"Why, I couldn't tell you that, sir, seeing as he kept inside his car while he spoke to me. He druv up and asked if you had called here."

"How do you know it was me he wanted?"

"Why, sir, he told me the number of your car!"

"What was his name?"

"He didn't give one, sir. Just said it was urgent for him to see you; and then he asked for half a dozen bottles of beer. He said he'd make sure of gettin' you, if you hadn't come this length by that time."

"What time was that?"

"Barely half an hour ago. He said you would be on the road somewhere. He asked me to keep you if he patrolled the road towards Winchester."

"Asked you to keep me, did he?"

"That he did."

"And you intend to do it?"

"Well, sir, he said he'd come back to see if you'd arrived. I fancy he laid them broken beer-bottles up there to puncture your tyres. He laughed funny when he bought the beer-bottles, sayin' as how they would make sure you

called here. His joke, maybe; but if other motorists find it out I'll get into trouble, sure as fate. You can't blame me for the burst tyre, sir, can you?"

"Oh, no. Is my supper ready?"

The landlord bustled off to inquire. Tommy Conn crouched beside the wheel, thinking hard. There was only one explanation. The policeman in London had noted the number of his car. The burglary had been discovered. The telephone wires had been working. It was the police, beyond a doubt, who were after him. Who but a policeman would use the word "patrolled"? It was a local detective who had been sent out to intercept him. The landlord had been asked to "keep" him. That was a localism for "detain." And the broken beer-bottles on the road—that was a mean trick to stop him, a dodge to block his path.

"They haven't got me yet," muttered Conn between his teeth.

He worked feverishly, unscrewing the nuts and bolts. He had the spare wheel almost fitted when the landlord came back again.

"Your supper's ready, sir. Just come upstairs for a wash first. Bathroom is first to the right on the landing."

"All right."

"Can I give you a hand?"

"No. Leave me alone. I can manage."

The landlord went indoors—hesitatingly, as it seemed to Tommy Conn. The latter had made up his mind. He would give them the slip yet. His car was a fast one. He knew the main roads. The route had been well planned.

When the wheel was fixed he pushed the car out to the front of the inn, mounted the seat, and started. He did not look back, though he heard the landlord calling something after him. The answer Tommy Conn gave to the shout was to give the car more speed. He whirled out to the main road and let her go. Speed limits had no terrors for him now.

He had not covered a mile when he was aware that another car was rushing towards him. There were no headlights on his approaching car, but the lamps gleamed brightly—too brightly. Conn glanced at his speedometer. He was going at thirty miles per hour. He opened up, and saw the indicator

move to thirty-five, then forty, then fifty. More than that he dared not venture on the dark road, which was not wide.

As the two cars came near each other Tommy Conn saw a head pushed out of the window behind the driver. He smiled to himself. It was a hired car of the taxicab type—just the kind of car the police used. He had a glimpse of a white face and waving arms thrust out from the window. A voice roared something at him. He did not heed. In a flash and a roar he was past and away.

He sat grimly at the wheel for several miles. He whirled past cottages by the roadside. He saw a policeman's lamp in the middle of the road ahead. This was one of the famous spots where the police had a trap. He took no notice of the warning winking of the policeman's flashlamp. He hurled his car at the darkness. The policeman leaped aside just in time.

Through more than one village he swept, reducing his speed only at corners. When he was on the stretch he let the car go at her utmost—faster than an express train. Once he was compelled to stop altogether. He had reached a level crossing, and the gates were against him. He sat in the panting car grinding his teeth. Minute after minute passed. He rose and looked back. A car was coming on his heels. He recognised the lamps as those of the car he had already passed. The driver had turned and was chasing him.

The desperate resolve to charge the gates of the level crossing was in Conn's mind when he heard the rumble of a train. It came sweeping round the bend and roared between the gates. Conn glanced behind once more. The pursuing car was within a hundred yards of him. He pressed his hand on his hooter, to stir the signalman in the box above him. The signalman looked out, saw him, waved his hand, and nodded. A moment later the level-crossing gates began to move. Conn's car was moving as soon as the gates.

He had bumped over the railroad track and was gathering speed when he heard a voice shouting to him. The cry came indistinctly above the running of his engine:

"Stop! Conn! Stop!"

Tommy did not even turn his head. Was it likely that he would allow himself to be arrested when there was still a chance of escape?

The two-seater bounded forward into the night. Only once did Tommy Conn glance behind. He saw the car still pursuing him, but he was gaining ground slowly. He had underestimated the going power of the taxicab behind. It hung on to his trail doggedly, its hooter constantly sounding a call to him to stop.

Tommy Conn realised that he must do more than run away from his pursuer. The lights of Winchester were in the distance, but he dared not fly through the town. For all he knew there might be other cars there ready to block his path, or to take up the chase. He resolved to skirt the city, keeping to the open roads. His task now became one not only of straight running flight. He had to employ cunning as well as fleetness.

First he put on as much speed as the car was capable of. This had to be done carefully, for the night was dark. He was constantly switching his lights on and off. He turned up side-roads which were strange to him. He took chances that no ordinary driver would have taken. He had to take them. There was no alternative save the arrest that was on his heels.

In one of these side-roads he was almost shaken out of his seat. The car bumped over large rocks, over mounds of earth. A flash of his headlights told him that he had run into a new road; about him were heaps of stones, barrels containing tar, and mounds of gravel. He glanced over his shoulder—cautiously this time. The car was still pursuing, but it was some distance away. Now was the time for a final act. Tommy Conn drew his car into the hedge, switched out the lights, and dismounted.

He went round and put out the tail-light. He stopped his engine. The darkness around him was intense. His car was almost hidden by a high line of bushes. He gritted his teeth and ran towards a pile of stones and rubble.

There was murder in Tommy Conn's brain at that moment. It was his only chance of getting a fresh start. He had but one thought, and that was to escape arrest. If only he could gain Eckhardt's yacht at Southampton he would be free. Eckhardt and he were going over to France together. The idea had been that Conn would return to London as soon as he received his fee; now he saw that he must do something which would keep him away

from London. He did not mind that. With three thousand pounds he could get along in a foreign country.

Besides, it was either his freedom or—this arrest, this pursuing fate that was driving him to desperation. The police had always been his foes. He did not hesitate.

He rolled a barrel of tar into the centre of the roadway. He lifted large blocks of stones, intended to line the edge of the footpath, and dragged them over also. He threw boulders beside them. Already he had piled a heap beside the barrel when he heard the hum of the car. It was turning into the new roadway.

Tommy Conn ran back to the cover of his hedge. He crouched there while the pursuing car came up the road at thirty miles an hour. He heard the driver loosen up to a greater speed. Then he heard the shock.

It was like the explosion of a bomb. What damage was done Conn could not guess. He did not care. He heard the crash, listened to the splintering of glass and wood, the sudden scream of bursting metal, heard the report of the engine, and saw a tongue of flame shoot up into the air. Simultaneously with the explosion, flames burst out around the doomed vehicle.

Tommy Conn was in the seat of his own car by this time. He was gone by the time the tumult died down. Looking back, he saw a figure outlined against the furnace; then he turned his head, grinning to himself. He had checked his pursuers decisively. He did not look back any more.

Less than an hour later he drove steadily, and well within the speed limit, into Southampton. Dawn was coming. He had changed the number-plate of his car again, and now it bore the proper registration. He garaged the car in town, giving the name of Eckhardt for the receipt, took his sack of loot from its hiding-place, and walked towards the docks.

Had the car belonged to him, Tommy Conn would have plunged it into the sea, or sunk it in a river, so that all traces of it would have been lost. In garaging it he was not risking himself. His brain was one divided into two compartments. In one he thought of what he was receiving; in the other of what he was giving. He had agreed to accept his fee for the burglary. The risk of the chase was not included in the bargain, therefore the risk lay with Eckhardt. It was up to Eckhardt to instruct the man he had engaged for the

return journey how to get the car back to London. Since Conn was delivering the goods as promised, he had carried out his part of the agreement. Eckhardt never gave anything for nothing. Why should he?

He found the boat lying near the steps of one of the docks, as he had expected, and he went on board. A seaman was swabbing the deck. He saluted Conn.

"You're the gentleman from London we're waiting for, I suppose," he said. "I'm ready to move as soon as Mr. Eckhardt gets the clearance papers."

"He can get them as quick as he likes for me," replied Conn with a smile. "I'm dog-tired. Show me where I can sleep."

He was given a small, poky cabin, along one side of which was a berth. He shut the door, put his sack on a table, and turned in at once.

He woke with the sunlight streaming through the porthole. He was conscious that he was not alone. A man was standing by his bunk.

"Sorry to wake you, but I came to inquire about the garaging of Mr. Eckhardt's car."

"All right, I know. What time is it? Nearly midday. I'll give you the receipt for the car. You're the one to take it back to London for Eckhardt, aren't you?"

The man took the receipt, and was looking at it as Conn climbed to the floor, stifling a yawn.

"I'll give you a tip, mate," Conn said suddenly. "Be careful on the return. I had a rough trip down, but I beat 'em."

"Beat who?"

"The cops. Oh, I'm not going back to London for a bit, I tell you. They laid broken beer-bottles on the road to stop me. One tyre was punctured, but I put on the spare wheel and got away. Then they chased me, so I built a pile of rock in the middle of the road, and their car charged it and blew up. We'd better get away. Isn't this boat moving yet?"

"What's all the stuff in the sack?" asked the other.

"That's the loot for Eckhardt——"

Tommy Conn stopped and peered into the face of the stranger. Something in the man's eyes glimmered.

"What's it got to do with you?" he challenged.

"A lot. I am a police officer."

Conn gasped, and fell back a pace.

"Where's Eckhardt?" he cried. "Has he squealed?"

"No, Eckhardt didn't squeal. But what you've just told me links things up."

"Links what up?"

"A few things that puzzled me. Last night I called here to request Eckhardt to come to the police station. We knew he had hired this boat. Instead of calling, he went ashore and hired a car to go inland. And then, when we found his own car garaged this morning——"

"He's bolted! Saved his own skin!"

"Well, he tried to save yours, evidently. The driver of the car Eckhardt hired tells me it was Eckhardt who strewed the broken bottles on the road."

"What's this?" demanded Conn hoarsely.

"The driver of the car has made a statement. He says Eckhardt was chasing his own car, trying to stop it from coming down. He must have been frightened by the request to call at the police station. He kept following his own car until they ran into the obstruction. Luckily the driver wasn't hurt, but Eckhardt was inside the vehicle and hadn't a chance. He was killed. As you've stated that you drove that car, you'll be charged with the affair. Your name is Cohen, isn't it?"

"My name is Conn," gasped that individual. "I didn't guess—tell me, what were you charging Eckhardt with?"

"We weren't charging him with anything," replied the officer. "We merely wanted him to sign the clearance papers to let this boat sail. Hold out your wrists. I advise you not to say anything until I have gone through this sack and examined the contents."

"And that," said the Governor, "was the reason Tommy Conn and Eckhardt were unable to help in the defence of Bill Hemsey, as it was also the reason for the sudden and desirable termination of the rivalry between Conn and his friend Billiter, the clever criminal who boasted that he always erected a perfect defence. Each, as I have said, was of the opinion that his own particular method was the best. Alas, is there ever a best in crime?"

"Billiter seems to have proved it," said the visitor with a smile.

"And yet," replied the Governor, "there is an answer to your theory even there. The answer will be found in the twelfth cell in the row. I have Joseph Billiter under lock and key at this moment, and I shall tell you at once how he arrived at that position."

THE STORY OF THE OCCUPANT OF THE TWELFTH CELL

I have already decided (continued the Governor), and I think you will agree with me, that Conn's place is among the Intelligents. But I am going to put Joseph Billiter into the class above that. He is certainly one of the Intellectuals. I have more than one reason for coming to this decision.

Joseph Billiter was a student at one time at a public school. He was intended by his parents for one of the professions, but his whole inclinations were in the direction of engineering and mechanics. He went to one of the big universities, took honours in his examinations, and then came to London to seek a career. He became a teacher in a school demonstrating the sciences. At one of his lectures he stated that it was possible to defy any apparatus that civilisation had ever erected, or could erect, to protect itself against criminals.

That lecture was widely quoted and commented upon. The result was that one of the biggest firms of safe-makers in the country offered to stake a certain sum of money that it was impossible to enter one of their safes within a given space of time. Frankly, I believe the offer was made in order to calm the unrest that had been caused in financial circles by Billiter's declaration. It was felt that his remarks might tempt the criminal fraternity to increase their activities, and, in any case, it was stated over more than one conference-table that Billiter had been most indiscreet in telling openly what had been feared privately. Really the blame, perhaps, ought to have been put on the newspapers who gave prominence to his challenge; but these things are so complicated, and their threads run under and about so many interests, that it is difficult to trace blame, or to define what a man may or may not declare.

Briefly, then, it was admitted in inner circles that if what Joseph Billiter had said was true, it would be a bad thing for the safe-making industry; and, on the other hand, the safe-makers would not sit down to such a challenge, which meant loss of business and lack of faith in their wares. You observe how commerce is delicately balanced, and how even a lecture may cause a

flutter in finance! At this stage the newspaper which had given most prominence to the lecture conceived the idea of staging a test. It was a great idea that came to the news editor of the journal in question. He was not a rich man.

The safe-makers were approached. Joseph Billiter was approached. The test was arranged, but there was one condition imposed by all the clients of the safe-makers. These clients included firms on the Stock Exchange, jewellers in the West End, even banks in the city. They combined in protesting against the test unless it was made in secret. After many discussions this was agreed to. And all the readers of the newspaper ever heard of the affair, in spite of their optimism and their hope of seeing photographs of the scientist at work as a burglar, was a small paragraph which stated that the test had taken place and that its results were "satisfactory."

The truth was that its results were satisfactory to only one of the parties. That one was Joseph Billiter. He had cut through the strongest safe made as if it were cheese.

How had he done this? you may ask. Simply enough. It is a scientific fact that any safe made by heat can be destroyed by a greater heat. And after he had bored his way into that safe he gave the small company another lecture, in which he made one admission. It was to the effect that the only place that was burglar-proof was a specially built bank vault, and then it beat the average burglar because it had several doors and an outside gate, and to get through these required time. In reality, it was time that beat the criminal, not the actual vault itself.

Now, the safe-breaker is certainly the most efficient of all criminals. One cannot be a safe-breaker unless one possesses patience, ingenuity, knowledge. Billiter demonstrated several methods. He used a powerful electric drill, operating it by tapping the cable in the building and showing how a modern burglar could thus add insult to injury if he knew his business. Then he used an oxy-acetylene burner. These burners give an intensity of heat of 3,000 degrees Centigrade—sufficient to cut through the hardest steel as if it were butter. The drawback to this method is the transportation of the oxygen and acetylene cylinders needed.

There was, again, the dynamite and nitro-glycerine method which he showed, and he gave the spectators much information that was new even to

the police, representatives of whom were also present. He showed how, by boiling several sticks of dynamite for a certain time, the "grease," as it is called in the profession, is prepared. This "grease" is actually the stuff used so that there will not be too much noise. It can be carried to the scene of operation in a bottle, and, after a hole is drilled in the safe, it is filled with this "grease," covered with soap, and a fuse is inserted.

Joseph Billiter's demonstrations were very conclusive, and proved what the police have known for many years, namely, that the safe-breaker is the very top-notch man of crime. But success went to his head. He was still young, and he was very conceited, while he was very able. We do not know exactly what incident proved the downfall of Billiter. I fancy it was a woman, or women. It may have been wine, but that was not his failing originally. I seem to remember that he got tied up with a fast set up West, a set that frequented night-clubs and cabaret dancers' haunts. At any rate, he was discharged from his post. He did not get another.

For a time he disappeared from this country. It was said that he went to America; but one thing is certain; when he was next heard of he had turned crook. It is more than likely that he adopted this profession when he was abroad, for he felt very bitter at his discharge, and constantly declared that if Society would not give him the opportunity to live he would have his revenge—a sort of Bolshevik theory of injustice and injury turned to rebellion.

There were several safes burgled in and around London that caused the police to suspect a master craftsman such as he could be. He was shadowed, watched, suspected, but he was never caught red-handed. He always had an alibi, always a perfect defence. But everything pointed to suspicion of him. He married a girl who lived with crooks long before he became a criminal—that is, lived among them and knew their ways and their works. She was one of his assets.

Carney, the detective whose duty it was to investigate these burglaries, was convinced that they were the work of Billiter and no other. This belief almost became an obsession. He tried time after time to catch Billiter. He had him questioned; he questioned the people who supported his alibis; he kept on his trail; but he was always defeated. Billiter never seemed to make a mistake.

One evening Billiter went out on what he anticipated would be one of his best raids. It was a jeweller's shop within a hundred yards of Charing Cross. To see how he worked, let us observe him coming up from the cellar where the safe of his firm was kept.

The job had been done, and Joseph Billiter crept up the stone steps. The goods he had stolen were in his pockets and in the special belt strapped round his waist. He had placed over a hundred gold watches in this belt, in little compartments, every one worth a considerable sum, for he never took cheap goods. In his pockets were pearls, pendants, rings, brooches, necklaces. Taking him as he stood he was, at that moment, worth a few thousands of pounds sterling.

He closed the trap-door gently, and, stooping low, crossed the shop floor and made his way upstairs to the next storey. All was dark here. The single light which cast a dim glow through the shop on the ground floor had been his one danger, for from the street it was just possible that an inquiring policeman might peer through the slit in the iron shutter at exactly the moment Joseph was to be seen. Yet, even then, he would not have identified Billiter; but he would have raised an alarm. This passage from the cellar trap-door to the stairs leading aloft was the one risk Billiter faced.

As will be understood, the opening of the safe was not, to such an expert craftsman as himself, a real risk. He had made no noise, and he wore rubber gloves, which were thin and did not hamper his fingers as ordinary gloves might. There was also another advantage of rubber gloves. Some of the owners of safes had lately taken to leaving live electric wires in positions so that a burglar might be tempted to grasp them, and get shocks that would throw him into a state of panic. It would not, of course, kill him; but to a man like Billiter all these things were child's play. He knew how to evade such traps as well as the best.

Having negotiated the space between the cellar and the staircase, Billiter had still much farther to go. He never rushed. Standing in the darkness that enveloped the upper showroom and the offices of the firm, he listened intently. From the Strand came the distinct hum of taxicabs and the occasional scream of their hooters. The buses were thundering past. In a short time the streets would be crammed with the crowds coming from the theatres, and, by joining these crowds, Billiter had planned to make his

escape without observation. For the present he was not merely listening to the traffic. He was anxious to hear if the policeman on the beat had seen him as he crossed the ground floor downstairs.

He thought he had heard a footstep under the back window. He tiptoed over to the window-sill and peered down obliquely. Yes, there was someone underneath. Had the policeman been watching? He prepared for flight.

Billiter was not afraid that he had been recognised, for he still wore the mask he had donned when he entered the premises. Nor was he afraid of being caught. His entrance had been by a way that was anything but direct. An ordinary burglar would have come into the shop by the back door, or by the side window. A very daring one might have bored his way through the wall from the premises next door, which were under repair at the time. But Joseph Billiter was not an ordinary burglar, even if he was a daring one. He had come to the store by a circuitous route, and he was making his exit the same way—a route that proved his superiority over usual methods.

It was because he had entered in this round-about fashion that he did not fear capture. A policeman, seeing an intruder, would go to the back door; he would call a colleague or two, and they would block likely exits before they entered to search. But by that time Billiter would be gone, without leaving a single clue for them to follow.

He moved back from the window and noiselessly opened a door that led to the top floor. He closed the door after him, locking it with one of his skeleton keys. He went up the narrow staircase without a sound. He was now in the workshop of the store, a small apartment in which were several benches, polishing wheels, and racks littered with the repair jobs of the firm. This room was really an attic, with one dormer window leading to the tiles. Billiter had left the dormer window open when he entered. He now made his exit by it, and pulled it down slowly as he lay with his feet braced against the coping-stone.

He crawled for some distance along the coping on his hands and knees until he reached a flat roof, in the middle of which a square glass studio was built. He was now two doors away from the jewellery shop. Once more his long skeleton key went to work in the lock of the door. He slipped into the studio, once more locking the door behind him.

He knew quite well where he was; he had studied every yard of the way he had travelled. He was just about to leave the studio by going downstairs when he stopped and drew back. Someone was coming up.

He retreated behind a large piece of furniture and pulled a small revolver from his pocket. He had never used his gun on any of his burglarious expeditions, but he always carried it, nevertheless. He did not want to kill; but a gun was always handy to intimidate, to menace, to scare. He told himself that all he needed to do was to put the fear of death into whomsoever was coming up to the room, manœuvre towards the door, and dash out, locking it from the outside. It was a simple enough plan; such a one had served him previously. As he crouched behind the furniture the opposite door of the studio opened, there was a faint "click," and the room was flooded with light.

"Put out that light!"

Billiter's order whipped across the apartment like the crack of a whip. By the door stood a man in his shirt-sleeves, his hands wet, as if he had been washing them. Billiter slid from behind the piece of furniture.

He knew the room quite well. He saw around the shelves were several bottles and jars; pictures were hung on the walls, large and small photographs. From the centre of the ceiling a large, powerful arc lamp was suspended, but this was not the light that was illuminating the studio. The arc lamp was controlled by a hanging pear-switch, the other by a switch on the wall next the door.

The man in the shirt-sleeves was standing on the threshold, startled and hesitating. The sight of a masked burglar had, for the moment, unnerved him.

"Put out that light!"

This time Billiter's revolver was raised. The man obeyed instinctively, without a word; and as the light was extinguished another bored a small circle through the darkness and fell on the figure by the door. This second light came from an electric torch which Billiter held in his left hand.

"What are you doing here?" demanded the man at the door. "This studio _____"

"Cut that out! Step over here and I won't harm you!"

Billiter jerked his torch in the direction he wished the man to walk; but just then the other seemed to overcome his surprise and fright. He stooped, and raised the first thing that came to his hand and threw it with all his force at the gleaming torch. What he threw was inoffensive enough. It was a cushion taken from a chair near the door; but it caught Billiter full in the face, making him drop his torch and bringing an oath to his lips.

"Don't move!" he cried swiftly. "If you make a step I'll shoot!"

The warning halted the man by the door. He did not see, in the gloom, that his missile had torn the mask from Billiter's face just then; but he saw it a moment later, when Billiter stooped to regain his torch, the light of which, as he lifted it, suddenly flashed across his features.

"Stand away from that door!" roared Billiter harshly.

As he spoke he threw the torchlight full on the man once more, jerking it commandingly. He did not want to shoot, angry though he was. He knew the consequences of shooting, and he shrank from murder; besides, the noise of the shot might disturb others. Billiter was playing his game of bluff, of menace, confidently. He saw, by the changing expression on the man's face, that his mind was a prey to swift and changing emotions and ideas. But Billiter held the winning hand. If it came to a fight, he could always shoot; but he would shoot only to frighten.

The man moved hesitatingly from the doorway. Billiter took a step towards it. It was like a game of draughts, each man taking a step, cat-like, watching his opponent, the one gliding towards the interior of the apartment, the other towards the exit.

Suddenly the man seemed to lose his nerve, and ran forward to hide behind the heavy piece of furniture which was placed, easel-like, under the hanging arc lamp, and was covered by a dust sheet. Billiter knew then that he had won. The man was scared stiff. But a scared man may be dangerous, and as Billiter threw his torchlight on the spot he saw the man's hand go up as if to reach the pear-switch. Billiter aimed and fired at the hand.

There was a smash of glass, a cry as one of the bottles on a distant shelf crashed down, and then a blinding flash filled the room. The glare made Billiter's eyes sting. He could no longer see things, but he dashed for the

door, switching out his torch. He reached the door and closed it at his heels, and turned the key in the lock. Then he stood blinking in the darkness of the landing.

"Some of his blinking chemicals," he muttered. "I hit his hand too. That will be a lesson to him not to try tricks. One thing, he never saw me properly, so he can't identify me."

He went down the stairs, confident still, his eyes a little misty, but they soon cleared and he was able to see normally. He no longer feared pursuit, since he had locked the door behind him. He reached the ground floor, put his mask in his pocket, and went out.

A few minutes later he was in the Strand, one of the crowd that was moving along. He was safe. All he had to do now was to present an alibi with which to face the police.

He knew they would make inquiries. He knew Carney would come to see him, as he always came. The same old things would be said, the same old questions asked and answered. He had begun to laugh at the suspicions the police had of him. He had grown used to being suspected. But suspicion is one thing and evidence is another. He never gave them evidence.

In this case he had worked with his usual caution and luck. He reflected, as he walked along, that he had just fired the shot in time. The intruder had hoped to throw his big light on him; perhaps he had intended to attack as soon as the studio was lit up. The shot had prevented this, as it had also prevented any chance of his own identity being discovered.

It had taken Billiter some time to work out this burglary. First he had observed the position of the store. He had never dreamed of entering it by its own doorways. He had observed the premises on either side. One was a small teashop of the kind that provides light suppers and quick lunches. It remained open until after the theatres closed, so that entrance could not possibly be made that way.

Billiter found his means on the other side of the store. Next door to the jeweller's was a sweet-shop, with offices above. Next the sweet-shop was an outfitter's, occupying two floors. The third floor was used as a photographic studio—one of the kind where passport portraits are turned

out in a hurry. Because this studio was erected on a flat roof Billiter chose it as his line of advance.

He had visited the place to get information, as he pretended, about prices; but as he held the assistant in conversation his eyes were on the flat roof beyond the glass studio. He found out when the premises closed at night. Then he made his raid.

The appearance of the photographer just when Billiter was making his escape was but one of the incidents that could not have been foreseen, a risk that had always to be taken; and it was because he was aware of such unexpected possibilities that Billiter carried his revolver. Without it he would have no advantage over an antagonist—a fatal condition for one whose great problem was always escape.

Billiter did not loiter in the Strand. He mounted a bus at Aldwych and rode on the top eastwards. Just beyond the limits of the City proper he got off, and hurried to the destination where he desired to dispose of his loot—the house of a receiver of stolen property. A price was offered and accepted, and Billiter received the hard cash he wanted. He knew that in a few hours the jewellery would be dissected, the gold would be in the melting-pot, and all traces would have vanished.

Having thus dealt with the proceeds of the robbery, the next step was to provide an alibi with which to face the police, and especially Carney, the man-hunter whom Billiter hated (and perhaps feared a little too) more than any other. You see, Carney, if not brilliant, was dogged. He had looked up Billiter's career, and knew his descent, step by step. That descent was curious, for not only had Billiter adopted the manner of criminals; he had adopted the speech of the ordinary East End crook, whose mentality he despised and whose habits he loathed. Indeed, it appeared that he was not only at war with Society, but was also annoyed at his own failings and weaknesses.

In the present instance he had taken Carney into his calculations as usual, and had made provision for the detective's moves. He found everything set as he anticipated when he reached home, which he entered just before midnight. His wife was preparing a late supper, and in the mean sitting-room were several acquaintances. They greeted his arrival with eagerness.

"Everything all right?" asked his wife, a heavy-featured woman who had once been pretty.

"Yes. What was the show like?"

"Fair. We're newly home. Supper's ready."

As they ate the meal, Billiter handed money to each. It was their pay, for they worked to his plans, ready to swear an alibi when asked.

When his guests had gone, Billiter hid his tools and most of the money under the floorboards. His wife watched him curiously.

"Sure everything's right, Joe?"

"What's frightening you?"

"Carney. The last time he was here he said he'd get you. He said you'd make a mistake some time."

"Aw, Carney couldn't get me, nor anybody else, with the defence I've raised. Ain't we able to put forward plenty of witnesses? He wasn't on duty last night. I know his hours. Give me that half-ticket of the show."

She handed over the torn portion of the entrance ticket to the theatre, which she had retained. He put it into his waistcoat pocket.

"Ain't that proof?" he grinned. "Carney can't get over that. I'm going to bed. If he comes at all, he won't come before morning."

His knowledge of police routine was sound; they had just finished breakfast, and Billiter was reading a newspaper, when a knock sounded on the door. Joseph glanced at his wife knowingly.

"Let him in. I'll bet it's Carney."

It was Carney, and with him was another man in plain clothes. They entered quietly, and Carney sat down on a chair facing Billiter.

"There was a burglary in the Strand last night," he announced quietly.

"I was just beginning to read about it in the paper," answered Billiter, glowering. "Go on, get the questions over. I know you've come to try to pin it on me."

"It looks like your work, Billiter."

"Aw, you've said that before about other things. It makes me tired. I suppose the cop on the beat saw a man, and you jumped to it that it was me, same as you have done before? And then I've to show you that it couldn't have been me. You've got a down on me, Carney, that's what."

"The burglar last night got away with a lot of stuff," went on Carney, taking no notice of the indignation of Billiter. "He entered a jewellery store by crawling along the roof. As for the policeman on the beat, he didn't see anybody. But the burglar got clear away after shooting at a man who tried to stop him."

"Humph!"

Billiter was as cool as usual. He suppressed a smile. He had asked the question about the policeman on the beat as a feeler; he wanted to make sure if he had really been seen, or if he himself had guessed right in regard to the figure under the window in the yard. The answer relieved him immensely. He now knew that the figure under the window must have been that of the worker coming up to the studio.

He folded the newspaper on his knees and faced Carney.

"Well? Spit it out. You've been after me long enough."

"I've always hoped to get you—you and your friends."

"Keep on hoping, then."

It was a jeer, but they knew each other well enough to dispense with formalities. The duel had begun again.

Carney was a big man, heavy and rotund—a contrast to Billiter, who was wiry and agile. The detective seemed too deliberate for Billiter. He was on edge to get Carney away; he wanted to hurry the examination.

"Have you come to prove that I did it?" he demanded.

"Can you prove that you didn't?"

"You bet. I'll give you an alibi that'll satisfy any magistrate."

"In that case you will be able to tell me where you were between the hours of nine and eleven last evening. I'd like a statement."

He made a motion to the plain-clothes man beside him, and the latter prepared to write in his note-book. Billiter felt amused. He had seen the same performance on previous occasions. It was always the same—questions and answers, then inquiries to prove the statements, and after that nothing happened. This time Billiter did not wait for the questions. He brought the torn theatre ticket from his waistcoat pocket and threw it on the table.

"That'll tell you where I was."

Carney looked at the ticket, examining it thoughtfully.

"You were at this theatre?"

"That's what I'm telling you. Some friends were with me. I'll give you their names, if you like."

"We'll take them down right away."

The plain-clothes man wrote the names and addresses down as Billiter gave them. The latter's wife stood behind the writer, biting her lip as she watched his pencil glide across the paper. Carney looked up and caught her eye.

"Were you with your husband at the theatre?" he asked.

"Yes," she snapped.

Carney rubbed his chin thoughtfully, then turned to his colleague.

"Better go along to these people right away and take their statements and signatures. Mrs. Billiter will go with you to direct you. And notify them to come to the station before midday."

"Going to question them there?" snarled Billiter bitterly. "Maybe you'll want their finger-prints too. You officials give me a pain."

He pulled out his pipe and began to fill it from a tobacco-jar held between his knees. His wife and the plain-clothes officer departed as he was striking a match. The first puff of smoke had just escaped Billiter's lips when Carney rose to his feet.

"And now," he said, "I think you'd better be coming along."

"Where to?"

"The station."

"Same old routine, Carney. I know all about it. I go there, and you write out a long rigmarole, and I sign. And then I walk out until the next time you get a hunch——"

"Not this time, Billiter. You won't walk out this time."

Billiter threw his match down with a gesture of protest.

"You can't detain me," he cried. "You haven't got a charge, and I've given you a perfect alibi."

"The alibi doesn't work on this occasion, Billiter. It is too perfect. Listen to me. The photographer's assistant who came back to the studio to develop some prints has given us a statement. The burglar tried to keep the studio in darkness so as to escape, but as he was making for the door he passed the screen usually used for portraits, and the assistant reached for the hanging switch that controls the camera."

"Well?" cried Billiter.

"The result was that a flashlight picture of the room was taken, and we have a portrait of the burglar with his mask down about his neck. Here it is."

He threw on the table a large print, in which Joseph Billiter was shown in the very act of firing his revolver.

"As for the alibi your friends helped you to make up," went on Carney, "I expected that defence, as usual, from you, but I'll rope them in on a charge of making false declarations. Now will you come quietly?"

"I'll come," said Billiter hoarsely. "You've got me at last, Carney."

And Carney marched him off.

The Governor paused, and glanced at his visitor.

"I daresay," he remarked, "you have noticed how events of importance sometimes have a way of treading on each other's heels, so to speak. It was while he was making arrangements at the police station for the disposal of

Joseph Billiter that Carney came into touch with the last case that interested the celebrated Dr. Caffyn, criminologist and pathologist. It was he who had so often advanced his theory of a cure for murder——"

"A cure?" interrupted the visitor.

"That is what Dr. Caffyn called it. A case had just cropped up that enabled him to apply his tests finally in front of Carney, who, as you know, was opposed to theories. It was a curious case, and baffled investigators greatly."

"Did Dr. Caffyn find a cure?" asked the visitor scornfully.

"The best way to answer that question is to show you how Dr. Caffyn arrived at the answer; and this I intend to do right away."

THE STORY OF THE OCCUPANT OF THE THIRTEENTH CELL

Having refreshed himself from the glass at his elbow, the Governor then began the story of the occupant of the thirteenth cell, while his visitor, beyond a glance at the clock, made no attempt to interrupt. The fact was that the visitor found this eccentric prison official very entertaining.

There is no doubt (said the Governor) that, of all crimes, murder is at once the most interesting and the most repellent. On the average we have about one hundred and fifty every year in Britain, and, though this may seem a large number, it is small compared with the record of some American cities—Chicago, for instance—where the average is about one per day. We are also in the happier position, if you will allow me to say so—I speak from the point of view of a representative of the law—of having a much smaller number of murders unsolved. Indeed, there are very few in Britain that have not been brought home to the culprits——

"I could name a few," cried the visitor triumphantly. "Since the year 1912 there has been a growing list of undiscovered killers, and most of them were killers of women. Take the case, in 1919, of Mrs. Ridgley, of Hitchin; of Miss Nellie Rault, at Bedford, a few months later; of Nurse Shore in a Hastings train the following year; of Mrs. Buxton, at Chelsea, shortly afterwards; of Henrietta Weightman, at Bushey, in 1921; of Miss Lawn, at Cambridge, and Violet Mansfield, at Farnham, both the same year; and there are others—Mrs. Luard, at Sevenoaks; Emily Dimmock at Camden Town, Lily Templeton at Brixton, a child named Bailes at the Elephant and Castle, the boy Willie Starchfield. There's a list to go on with."

I realise (replied the Governor) that you have taken great interest in those crimes to have them so glibly on your tongue, but it may be that there were exceptional circumstances at work in those instances which you do not take

into account. I do not claim that the police, and the law, are always flawless and that they are without failure. But what have you proved? That out of, say one hundred and fifty, one person has succeeded in escaping. I think you have even here over-estimated the chances of escape, slender though they are on your own showing; but if I were to give you proof of this I might incur the penalty of infringing the Act which binds Governors, as well as the humblest of prison staffs, to secrecy in certain matters. I am not saying that such an Act is good, or that it is bad. I am a servant and carry out my orders.

As for those who have escaped, I could mention a dozen for your one of those who, by all the laws of chance and calculation, ought to have escaped, but did not. The man Bennett, who murdered his wife on Yarmouth sands a score or so years ago, was convicted because of a gold chain which he gave away to a girl in a moment of forgetfulness. Bodart, the Frenchman, who murdered a widow, was discovered because of the grease spot on his clothes, the dripping of a candle. The finding of a few brads was the cause of the conviction of a boot repairer named Lafargue, who murdered Madame du Bois. The famous Professor Webster was sent to the scaffold because he forgot that, while he might burn to ashes the body of his victim, Dr. Parkman, the latter's false teeth were made of a composition that resisted fire. Wainwright made a similar mistake when he tried to destroy traces of a murder by covering the body with chloride of lime, which preserves and does not destroy. The man who shot Mrs. Breaks at Blackpool had filed off the maker's name from the outside plate of the revolver, but did not know that the name was also printed on the backbone inside. A child's claim to the ownership of a toy lantern was the cause of Fowler being hanged for the Muswell Hill crime. In Buckinghamshire a cobweb on a man's shoulder took him to the condemned cell.

And what shall we say of those would-be assassins who, though they have thought out their schemes, have either erred at the crucial moment, or have been caught by a simple, unforeseen circumstance? I could tell you of cases wherein it might seem that the intended victims have a charm against violent deaths. The present King of Spain, who has come to London quite often, has a private collection of relics of incidents where he was saved from the assassin's murderous intent. Many monarchs have likewise escaped. Only recently we have had the most prominent man of Italy telling

his friends, after an attempt on his life, that it was useless for enemies to try to kill him. What a faith!

All this, of course, leads us back to the primary question: Why do men commit murder? It was this question that Dr. Caffyn had considered for many years. As a matter of fact, Dr. Caffyn was writing a treatise on the subject when the ringing of his telephone bell interrupted his labours. Detective Carney was at the other end of the wire, telling him that a murder had been committed.

Dr. Caffyn was a man of method, not one to be easily thrown from his well-trained habits; and he was training his only son, Dick, to walk in his own footsteps. Both father and son were fine specimens of men; both were surgeons, both were pathologists, but the son was sufficiently independent not to accept every theory put forward by the parent without himself being convinced of its accuracy.

It was because he wished to put his theories to the test in front of his son that Dr. Caffyn was regretful that Richard was not present when the telephone message informed him of this new case.

The first thing that Dr. Caffyn did after having received the message was to sit down again at his desk and add a few sentences to the treatise he was writing. The sentences seemed to be singularly appropriate. Here are the sentences which the doctor wrote on that occasion:

"The answer to the question, why a man commits a murder, is to be found in the state of the man's mind. To understand this mental state we must analyse the mind's material counterpart—the brain. The problem becomes pathological. The lower forms of life are governed by instinct and rude emotion where self-control is practically absent. Self-control is gained by education."

There Dr. Caffyn stopped. He then pressed an electric button on his desk and waited. The door of his study opened, and his man appeared on the threshold.

"Jones, has Mr. Richard arrived yet?"

"No, sir," replied the man, "but he is expected any minute for dinner."

"I shall not be able to see him at dinner," said Dr. Caffyn, "but when he comes tell him that I hope to join him at the theatre. I am leaving a ticket for him in case I do not come back. There has been a murder and I am called away. You needn't wait up for us. We shall have supper in town. See that we are awakened early to-morrow, and that his things are packed. He is going to lecture at college to-morrow."

The man bowed and withdrew.

Dr. Caffyn fingered his watch-chain absently, his brows contracted. He had hoped to work much longer at the manuscript in development of his views on murder and the question of capital punishment. But he had to go where duty called, and in a few minutes he was walking rapidly along the street.

Let me here point out that Dr. Caffyn had held for many years the position of perhaps the most famous pathologist in London. His knowledge was so great that he was retained by the authorities to aid them with his evidence. He had for years been on practically every kind of murder case as soon as the police. He had been called to examine murderers as well as their victims. At the trials his voice was the voice of authority. He was as steeped in the science of psychology in relation to crime as he was steeped in the pathological knowledge of it. To those who advocated the abolition of the death sentence Dr. Caffyn was an opponent whose scientific reasoning could not be answered.

He was thinking of his manuscript when he reached the block of flats where this latest murder had been committed. It was a fashionable district, such as are becoming more and more common in London—blocks of flats with silent lifts to every floor and stairs carpeted with rich material. A policeman at the door saluted as Dr. Caffyn presented himself. He directed Dr. Caffyn to the flat where he was expected.

The victim was a woman. She lay on her settee, her head thrown back and her rounded arms stretched limply over the upholstery. She had been a very pretty girl; was, indeed, still beautiful even in death. Her age was about twenty-five or twenty-six. A bullet had caught her square in the forehead.

The weapon from which the bullet had been fired was in the hands of Carney, who stood on the other side of the settee. He was examining the revolver, which was one of service pattern.

Dr. Caffyn returned the greeting of Detective Carney with a curt nod. He was more interested in the dead woman than in the weapon with which she had been killed. A few drops of red stained her golden shaded semi-evening gown, turning the colour of the fabric to a strange and fascinating hue. Beyond a smear of blood half hidden by her wealth of bobbed hair there was nothing to mar her beauty. She had bled inwardly and had died at once.

"We thought it was suicide at first, sir," said Carney, "but the finding of this revolver on the rug and a man's glove puts that out of court. It's murder."

Dr. Caffyn nodded and slipped his sensitive fingers along the wrist of the dead woman. It was merely a formal matter. Her pulse had stopped when the bullet cut short her young life.

"She has been dead for about an hour," said the doctor quietly. "Yes, it is murder. The shot was fired from the chair on the other side of the fireplace."

There were no signs of a struggle, no agonising contortions of the victim's features. Her eyes were open, almost wide. The blue pupils were slightly turned upward, and seemed to express mild surprise. There was a hint of a smile on the well-moulded features. Her lips were parted, showing heavy traces of lipstick. Her teeth were white and dazzling. There were rings on her fingers. On her feet were a pair of small, green slippers, half buried in a thick woollen rug in front of the gas fire, which was burning.

There she lay, retaining her attractiveness, her pose suggesting the audacity and daring which even death could not subdue.

"Who was she?" asked Dr. Caffyn.

"An actress—a chorus girl. Gladys Crieff," replied Carney. "She lived in this flat with a maid. She was due at the theatre this evening. It was the maid who gave the alarm."

Carney gave his replies shortly because he did not want the specialist to begin theorising. He wanted to get on with the hunt for the criminal. He distrusted the intricacies of psychology and the conclusions of pathology. He got his men by team work, by inquiry, by elimination; which was the recognised method of the police.

"It is a *crime passionnel*, some love affair that has ended disastrously, I suspect," said the doctor. "I fancy you will find it so, Carney."

The officer was a little nettled at the swift conclusion.

"I'm not sure of that, sir. It may be that burglary is the cause. Of course, this girl could not afford to keep up a flat on her own. Chorus girls can't. But she was not an ordinary chorus girl. She had played parts, and was waiting to get a leading one in a new show."

"You know her, then?"

"Oh, no. The maid told me, and I verified it on the telephone. Of course, I didn't spill the news that she was dead. Then there is something else. The maid says that this girl had a very expensive necklace and was intending to wear it to-night at the theatre. The case is here, but the necklace has gone. And I found a small gold watch on the staircase, which the murderer must have dropped on his way down. Further, a locket which she had round her neck lay on the settee beside her. The chain was broken as if it had been snatched from her. A tiny fragment of a photograph remained in the locket."

"Then you have nothing very substantial as a clue?"

"Oh, we'll manage on what we have, Dr. Caffyn. The maid, whom I have questioned, is a new one, and did not see the visitor—she was out shopping; but she says that when she returned she heard voices in the room, one of them being a man's. The maid had to go out again, but before she went out she listened, as maids do. She heard the man say that this dead girl would never belong to anyone but him. And this dead girl seemed to be soothing his temper."

"Then the maid did not see the man?"

"No, she had to go out again. When she came back the door was open and she saw—this. I examined the stairs and found a glove. The man left that. It is a rubber glove. There isn't a finger-print anywhere."

"What about the revolver, Carney?"

"A common service one. No prints on it."

Dr. Caffyn was silent for a moment, looking at the dead woman. Her beauty was not the beauty of an intellectual woman. It was the beauty of physique.

"Had she many friends, Carney?"

"You mean men? They generally have. She was to be married soon, I know that. If she had other friends I'll soon round them up."

"Not a vampire, then?"

"Most likely a butterfly, sir."

Dr. Caffyn looked at his watch and began to button his coat.

"When you find the murderer, Carney, I should like to see him as well, for observation. There are points of similarity in all murders which I have noticed. This man, I suspect, is some poor, unbalanced individual whose brain has been overturned by a flood of jealousy. That is, if he was the girl's friend. If he was a common burglar, he must also be a degenerate. Only such an one would kill a woman. A hidden hereditary instinct suddenly flashed out, and he shot her. Lack of self-control. Lack of the necessary education. Don't you think so?"

"I don't worry about that. He shot her, and I have to get him. To my thinking, education has little to do with murder."

Dr. Caffyn raised his head and gazed piercingly at the detective who had dared to challenge his theories.

"Ah," he said, "I fancy you will agree with me later, Carney. In the meantime, if you have completed your examination, the body may be removed. I shall attend the mortuary later and let you have my report to-night."

"Very good, doctor."

Dr. Caffyn went out.

It was too late to return to his home for dinner and too early to go to the theatre, so he decided to dine at his club.

He dined alone, as was his custom at the club. He had a favourite seat by the window, and there he sat apart thinking over the crime. It seemed to prove to him once again that there was a cure for murder, just as there was a penalty for it.

So absorbed was he in his reflections that he sat longer than he intended; but he decided to go and see one act of the play before returning to the mortuary and making the examination so that his report would be accurate.

A great deal depended on his report. The counsel for the accused would scrutinise his wording, searching for a loose expression or a hesitating phrase. He would be in the witness-box to be questioned and to explain the nature and cause of death. From the witness-box he would see the prisoner in the dock.

Dr. Caffyn smiled grimly as he thought of this. It was interesting to him to note the expressions on the faces of prisoners while he gave his medical testimony. He watched their varying emotions, the functioning of their brains, as he destroyed the hypotheses which the defending counsel laboured to erect. As a scientist, Dr. Caffyn was never embarrassed by the frightfulness of crime. His interest was in studying the men who had committed the crimes. He studied them in their cells, from his stand in the witness-box, when they waited for the verdict; and he had given certificates of their deaths when they had paid the penalty.

A taxicab drove him quickly to the theatre, where he met his son Richard. It was in the middle of an act when he arrived, but he did not hesitate to make his way to the empty stall. He and Richard nodded to each other, and then they turned to watch the play.

Richard Caffyn was one of the rising young surgeons of the day, heading straight for a fame, as his colleagues agreed, that would make history in his profession. But, then, he had his father at his back, a father who was very proud of his son.

When the curtain fell at the end of the act they sauntered out to the corridor to enjoy cigarettes. They had reached the doorway when a voice spoke at the father's elbow.

"Sorry to bother you, doctor, but have you finished the examination?"

Dr. Caffyn turned to see Carney at his side.

"Not yet, Carney, but I'll give you the report to-night. I want you to meet my son Richard. I think you have heard of him."

Carney shook hands with the young man, and they continued towards the bar. They sat down on a couch facing the counter.

"Found your degenerate yet, Carney?" asked Dr. Caffyn.

"Not yet, sir, but I'm hoping."

The doctor turned to his son and explained the case in a few sentences.

"Do you know, Dick," he said smilingly, "Carney is too polite to say he doesn't agree with me, but I know he holds antagonistic theories to mine generally. But that, I fancy, comes of the discipline and routine of police methods. I was telling him that undoubtedly all murderers are degenerates. Look here, Carney, when you are hunting a man, one of the best rules is to get at what makes him a criminal—for the time being, of course."

"Well, sir," replied Carney, "I have had some experience in hunting men, and I find all sorts of things make them bad; especially murderers. Fear, hate, love, lust, selfishness, greed—these are some, but there are others."

"I agree, and yet I have a notion that a cure for murder may be found."

"A cure?"

"Yes, a cure. Dick, my boy, you know my theories. Now, take this murder to-night. I told Jones to tell you why I had been called away——"

"He told me," replied Dick, who was looking absently towards the bar and listening to the orchestra. "Have you been trying to convert Carney to your point of view?"

"I have, but it takes some doing. Let us go into it again, Carney. The reasons you have named are but the forces that convert the thought of murder into the act. We must get behind that. The murder-plan has its origin in pathology in most cases. In a few one finds it in psychology."

"We do not deal in these sciences when we are after a man," said Carney doggedly.

"Perhaps not. You represent the material side. I represent the other. Yet it is material in the end. The mind governs the brain. We have two brains, an upper and a lower. The upper functions in thought. The lower functions in emotions and instincts which require no thought. This lower brain is in every animal that has a skull. It is this brain which functions when men commit murder. Civilisation has developed the upper brain; and murderers are men whose upper brain is primitive. That is what I mean by a degenerate."

"Does it matter much?" asked Carney.

"It matters a great deal. It supplies the key to the great mystery as to why men commit murder."

"How about your cure?"

"Ah, the cure. It is pathological."

The bell above the bar buzzed, signalling that the curtain was about to rise again, but the three men did not take notice of it.

"I'm not sure, father," said Richard Caffyn, "that I don't find sound sense in what Detective Carney says. Pathology can only apply to habitual criminals. Spasmodic acts are outside rules."

The detective glanced at Dick and nodded.

"My job is to get my man," he persisted. "I don't think we shall ever find a cure for murder, with all respect to your father's knowledge."

"Tut, tut," cried Dr. Caffyn. "There you are again, ignoring all I desire you to observe! Pathology is the science of the nature, cause, and remedy of disease. Murder is disease. It is degeneracy. The causes of degeneracy are several—among which are debauchery, depravity, poverty."

"Murderers are not always poor men," said the detective.

"No, but they are always degenerates. They have reverted to the primitive type. The animalism of their forebears clings to them. Dick, you and I have talked this over——"

"That is true, father, but still there is a lot in what the detective says. I cannot always agree with you, as you know. Let me put it this way."

He turned and spread out his hand as if he were delivering a lecture at his hospital.

"There are such things as uncontrollable impulses. Take the case of a mother who sacrifices herself to save her child. She does not think. It is her lower brain that is working—her instinct. She is not responsible, really, for the act, yet she is heroic——"

"But, Dick——"

"Wait a moment, father. I am trying to show that there is a force, or forces, against which we cannot fight. Pathology does not enter here. Psychology

may. In any case, the law does not take much note of either, as Carney says. I could put up a good case for impulsive acts arising from instinctive and automatic feelings. Is a man responsible when urged to act under a wave of extreme emotion?"

"The law says," replied Carney, "that acts are irresponsible only when a person does not know the nature or quality of those acts."

"In that case, the best plan would be for a defence to put forward a suggestion of insanity. The truth is we are hard put to it to define responsibility. It is a tangle of conflicting emotions."

He yawned and strolled towards the bar to get a match for his cigarette.

"Dick will come round to my view after he has had experience," said the doctor to Carney, "and so will you. At present he does not distinguish between compulsive acts and obsessions, which are two different terms. They do not affect the result, however. Heredity—there you find the reason for most cases of degeneration. If we admit such arguments as my son has put forward we might as well abolish the death penalty."

"As for me," retorted Carney, "I have seen cases where the death penalty might have been better set aside—and I say that though I brought such men to the cells."

"There may be cases of persons who are utterly insane—raving lunatics—but for the others of man-kind the one law must remain. Society must be protected. I commend these views to you in the course of your labours—for instance, in the case of this girl who was shot this evening."

Detective Carney was silent for a few moments.

"What was your cure, doctor?" he asked quietly.

"My cure for murder lies in the future generations. If a man commits a murder there is no proof that he may not commit another. There is only one way to deal with him. He must be removed—painlessly if you like, but effectively."

The detective did not answer, and seemed to be pondering the standpoint of the specialist. The doctor went on.

"If we remove evil environment and substitute education for ignorance we shall have no more murders. That is a pathological fact, and when you have found your man in this case——"

"We'll find him, sir."

"Very well. When the trial comes off I shall certainly use all my influence to oppose the torrent of sympathy which seems to go out at every recent case towards the criminal in this country. Think of the dead girl! Is it safe for the community that a man who deliberately took her life should live? Is it wise that he should be kept alive?"

"Well, there may be the plea of insanity——"

"Bah, that has become a common plea! Murder by a proved maniac is an exception to the general rule. You know that as well as I do. The only safe cure for murder is to send the guilty into oblivion and educate the community."

Detective Carney got to his feet, gnawing at his moustache. He had spent more time than he had expected.

"Are you going to remain until the play is over, sir?" he asked.

"Oh, that report!"

"I really wanted to suggest, sir, that if you could let us have it immediately we should be obliged. I could get a taxi for you, right away. I was asked to see you about it and to suggest——"

Dr. Caffyn sighed and nodded. He was a slave to duty.

"Very well. I'll have the taxi. Shall I dismiss it at the mortuary?"

"Why, sir, you could just keep it and bring your report to the station, where it is expected. I may be there when you arrive, as I have a call to make on this case."

"All right, I'll tell my son."

He went out with Carney, and the latter obtained a cab and sent the doctor off. As he rode to the mortuary, the doctor wondered if he had been wasting his breath on Carney; he was, at least, sure that the detective did not fully appreciate all he had been saying.

The examination of the victim at the mortuary was not lengthy. When it was over Dr. Caffyn made his notes and ordered the driver to hurry to the police station.

As he entered the reception-room, he saw Detective Carney standing with his back to the fire. A frown was on Carney's face.

"There is the report, Carney," said the doctor. "What are you worried about? Have you been thinking over what I told you, or have you failed to get your man?"

"We have got him, sir," replied Carney, coughing.

"Got him? Congratulations. A degenerate, I'll wager, as I said. May I have a look at him—just a look, or a word, maybe, to support my theory? You promised."

The detective nodded and led the way to the cells. As he was about to put the key into a door, the surgeon touched him on the shoulder.

"A *crime passionnel*—and a primitive brain, I suppose? Or perhaps a burglar of the base type?"

"He has written a confession," said Carney, without looking at the doctor. "He shot her because she threw him over for another man."

He swung the door open. The prisoner, his face buried in his hands, was huddled in a corner of the cell.

He raised a haggard countenance to the visitors.

Dr. Caffyn looked into the face of his son.

THE STORY OF THE OCCUPANT OF THE FOURTEENTH CELL

The visitor looked at the clock once more.

"Don't you think," he said in a grave tone, "that in the recital of these stories, which I confess are full of interest and are the best I have ever heard, you are losing sight of the reason of my presence?"

"Not at all. I have kept that constantly before me, I assure you," smiled the Governor. "But to a man in my position the great matter is to cram into the limited time at his disposal as much of the work he most desires done before——"

He stopped, and the visitor interpreted the wave of hand which the Governor made.

"I understand," said the visitor. "To tell the truth, I shall not relish the business of killing you, but if you leave me no alternative, what can I do? I merely point out that time is slipping past rapidly. It is now some time after dawn—a while after, in fact. The limit I set you is within measurable distance."

"Alas," said the Governor, "how true it is that time waits for no man! Let me repeat that I had for my object the desire to prove to you that criminals make mistakes in practically all cases. I have shown you how, in a selection of the most carefully planned and deliberately executed crimes, the unforeseen something gave the law-breakers away. But did you notice, in the case of the story I have just ended, that there is one point left in the air, so to speak—one item unexplained?"

"I fancy I did. You mentioned that a necklace was missing from that chorus girl's flat. You did not say if young Caffyn had taken it. I thought it must have been one of his presents."

The Governor shook his head.

"I have the greatest pleasure in congratulating you on your observance," he said pleasantly. "The item I was compelled to leave unexplained was the disappearance of the necklace. Richard Caffyn did not take it, and the police hunted high and low for it. As a matter of fact, it had been stolen by Alfred Mushet."

"Who is Alfred Mushet?" asked the visitor.

"He is at present in the fourteenth cell, and he is there because he made one of the most curious mistakes ever heard of in crime. And so, though I observe that you are inclined to be impatient—which I perfectly understand—I do, in the words of the charming Scheherazade whose example I am following, humbly entreat you to listen to the queer history of Alfred Mushet. I promise that the time will not be wasted."

The Governor then began in these terms:

One day, some weeks after the tragic death of Gladys Crieff, the actress, Alfred Mushet stood in the shop of Abe Hartz, a little be-spectacled Jew in the East End. Mushet was in a temper, and he did not disguise it.

"It is no good denying anything," he cried fiercely. "You can't deny it. I left my attaché-case with you yesterday. You promised to look after it until I came back. Just you hand it over."

"You 'ave called me many names without letting me eggsplain," answered Hartz mildly, as he clawed at his beard and gazed innocently through his thick spectacles. "It was not me that you gif your case to. You mus' come back."

"I want it now, you old crook! I'm in a hurry. Don't finger your spectacles, but get a move on and look for my attaché-case!"

"But I cannot see without my spectacles," smiled Hartz. "And even with them I cannot see your case. Go away and then come back——"

"I will not come back. You hand the case over, or you'll be sorry."

"But, my dear sir——"

"Don't 'dear sir' me. I know your kind. And don't try any tricks with me."

Hartz raised his hands and waved them in indignation.

"What for it is that you insult me? If you think I want your case, you bring in a policeman, and to him I shall eggsplain——"

"I don't need any cop to settle with you," flared Mushet. "I know why you are keeping it. I'll fix you for that, you dirty little Yid."

And he picked up a counter weight and flung it at Hartz's head as he left the shop.

He walked along the street biting his finger-nails and fuming internally.

There is no doubt that Alfred Mushet was in an awkward predicament. In the attaché-case was the necklace which the police were seeking throughout London. How he had taken it was simple enough. He had been in the pit of the theatre one night and had seen it on the neck of Gladys Crieff, and he had made up his mind to steal it; and, by a remarkable chance, he had gone to the flat at the very time that Gladys Crieff was alone, waiting for the visit of Richard Caffyn. All this came out afterwards, of course.

Mushet had watched the flat carefully. He had seen the maid go out on her shopping expedition. He had seen Richard Caffyn go up to the flat, and he had seen Caffyn leave. He followed at once, intending to make his raid. He had a skeleton key with which to open the door, but he had no need to use it. The door, as I have already mentioned, was open when the maid returned from her second shopping expedition. Caffyn had left it open, and Alfred Mushet had, between the departure of Caffyn and the return of the maid, entered and secured the necklace.

He had seen the actress lying on the settee in front of the sitting-room fire. But he had thought she was resting, and he did not enter that room. He had found the necklace in the jewel-case on the dressing-table in the bedroom. It was a case of a swift raid and flight. I don't suppose it would have made any difference to him had he known that the girl was dead.

But, once he had the necklace, he found that it was a difficult thing to hide. The police were seeking it everywhere. No dealer would handle it; no receiver would look at it until the hue and cry had died down. From place to place Mushet had taken it with him until he had borrowed enough money to

take a run over to the Continent. But when he was getting his passport and making his arrangements he could not always carry the necklace in his possession, lest the police took it into their heads to suspect him. For this reason he had placed the necklace, inside the attaché-case, in the keeping of Hartz. He chose Hartz's place because Hartz did a quite respectable business in the pawnbroking line, and Mushet had pawned his watch and had asked Hartz to keep his case until he called for it the next day or so.

It was a small shop in a mean thoroughfare. Above the door was the one word, *Hartz*, in faded letters, and the three golden globes that proclaimed the kind of business transacted. Mushet had never been across the threshold until he entered to sell his watch and leave his case. And now, having secured his passport, and with his ticket already purchased, he was held up because Hartz pretended that he could not find the case. It was a very annoying situation.

Alfred Mushet had reckoned to be in Paris that night, and the more he thought over the situation the more he came to the conclusion that Hartz was trying on a piece of bluff. The barefaced way that Hartz had denied having received the case was exasperating. Mushet saw through the whole thing. The old rascal had opened the case, had seen the necklace, and had recognised it, and was either keeping it, or intended to hand it over to the police for the sake of the reward that had been offered for its recovery. Yes, Hartz was a wily one!

If Hartz had been a regular receiver of stolen property, Mushet would have handled him differently than by merely threatening him; but Hartz was not a receiver. He was a hard old man who loaned money and bargained with all the cunning of his race. He had no friends locally. He was available for business at any hour. It was said that he never slept; he was always the same when his door bell rang. He was too mean, the neighbours declared, to leave his shop on any pretext. If he ever went to bed, he must have gone with his clothes on, for at every hour he was ready to answer a summons without delay.

Mushet knew that Hartz had this reputation. He knew that Hartz was sneered at, and derided, by those who borrowed from him or pawned their goods with him—a sort of Ishmael in the wilderness of London.

Mushet had lodgings in the street from which he could see the shop; and he ground his teeth as he marched along trying to find a plan by which he could compel Hartz to disgorge the swag.

Now, Mushet was a clever man in his way. He had started life as a chemist's assistant, having been given this chance by a friendly chemist who took an interest in the welfare of needy boys. Mushet had learned a great deal in the shop; but he had turned out a bad speculation, for he had robbed his employer and had been sent to prison. After that he no longer tried to redeem his lost character. Prison had taught him one thing—the advantage of waiting and planning. He was clever enough to see that if one acted on the spur of a moment the results might be disastrous. It may have been that his life as a chemist's assistant had taught him much in this way also, for he had been sent to school where he had learned Latin, and had reached the stage where he could dispense prescriptions. This requires care and concentration.

The more he thought of Hartz the more he felt a terrible desire for revenge. Hartz had taunted him with the suggestion that he could fetch the police in order to "eggsplain" the situation. That taunt rankled. It was very obvious, of course, that Mushet dared not fetch a policeman. To prove that any case was his he would be compelled to state the contents. To state the contents would send him to the criminal dock.

He smiled grimly the more he considered the audaciously simple way by which Hartz had drawn his prize from him; and when Alfred Mushet smiled in that way there was cruelty in his expression—ice-cold ferocity as relentless as it was deep.

Taking a bus to Hyde Park Corner, he entered the Park and sat down to think it out. There was one point that troubled him. Was it possible that Hartz had already handed over the attaché-case to the police? Was Hartz in league with the police? Or was the case still in the shop? As he sat in Hyde Park, there came to Alfred Mushet an idea whereby he could find out this and also exact a nice revenge on Hartz.

It was late when he left Hyde Park and made his way to his lodgings. He did not wait there long—just long enough to secure a pair of rubber gloves, a new pair—for it was one of his that had been found at the flat of Gladys

Crieff—a few tools, three small phials, and a flashlamp. Having put these into his pockets, he started out for Hartz's shop.

It was quite dark, and the street was fairly quiet. To enter the shop was an easy job for Alfred Mushet. He was used to taking risks, to cutting out glass and sawing off locks. He did not require much energy to get into the little pawnbroker's place. Everything seemed to be in his favour. In the yard at the back of the shop there was a back window to the premises. Mushet tore the catch off the rotten sash and pushed the window up without noise. He stepped inside.

His first precaution was to pull down the blind. He was in the back shop, and it looked like a lumber-room. The edge of a large safe peeped out from a litter of old clothes, parcels, boots, all kinds of goods thrown around. On the shelves were more articles, crammed together without care or any semblance of order.

Between the front shop and the back was a narrow staircase, uncarpeted and dusty. It was up there that Hartz lived; but Mushet did not intend to disturb him. He was bent on other work. He was searching for the attaché-case.

Into the front shop he stepped gingerly, his flashlamp shedding its ray over the counter and the shelves. He searched everywhere—under the counter, among the piles of goods on the shelves, behind the shelves. He drew blank. The back room was still to explore. He returned to it, and was on the point of stepping over a heap of goods on the floor when a board creaked on the stair. Mushet stiffened suddenly and extinguished his flashlamp.

Another board creaked. Someone was coming down the stairs. A glimmer of light flickered from the narrow opening between the two rooms. Next moment the figure of Hartz appeared.

He was clad in his shirt and trousers, and above his head he held a candle. He looked the queerest figure imaginable as he stood on the bottom step, clawing at his beard and peering about like a hawk, startled and suspicious. His large round spectacles glinted as the glass caught the light of the candle. He did not see Mushet, who had drawn himself close to the wall behind the heap of goods; but Mushet saw him, and acted at once.

He bounded forward and threw his arms round the man's neck, dragging him to the ground and pressing his throat so that he could not utter a sound.

The candle dropped to the floor and the flame was extinguished. Hartz's spectacles were knocked off in the attack, but he had a resistance that surprised Mushet. It was the hysterical strength of an old man.

Mushet held him down, nevertheless.

"Lie still," he commanded.

"My spectacles! My spectacles!" cried Hartz. "I cannot see."

"I don't want you to see," answered Mushet. "I knocked them off on purpose."

"A burglar, is it?" gasped Hartz. "But you will find nothing! I am poor. You are killing me."

Mushet released the pressure on Hartz and rose to his feet. He believed he had frightened Hartz, but, as soon as his grip was loosened, the latter threw his hands out and clutched Mushet by the shoulders.

"I know you! Your voice! You are the one who came for an attaché-case and would not let me eggsplain. Help! Help! Robbers!"

It was the worst thing that Hartz could have done, but he was frightfully afraid, and his nerves were all to pieces. Mushet gave him no chance to repeat the cry for help. They fought it out in the darkness.

It was an unequal fight. But Mushet was desperate, since he had been recognised. It was a brutal fight. It ended when Mushet struck Hartz with all his force above the heart. Hartz dropped, and lay still.

Mushet found his flashlight, which had been lost in the struggle, and pressed the trigger. He saw that Hartz was dead, or, rather, he tried not to believe it. He had never killed anyone, though he had been in fights; and it seemed unbelievable that a man should die from a blow. And then, as he looked down at Hartz and remembered how he had struck him, the truth penetrated his brain. It is comparatively easy to kill a man with a blow on the heart when the victim is being pressed against a wall and half strangled as well.

And now, out of the medley of emotions that surged up within Mushet, there emerged the clear need for keeping his head. The death of Hartz

shocked him, but he still saw how he could get clear away. All he had to do was to carry out the scheme he had come to execute.

Mushet did not see, of course, that he was just then proving what criminologists have always held. One crime must take place to cover another, until it ends in the grand climax. That is the usual way, according to theorists; but Mushet now unconsciously began to work that theory backwards. With the death of Hartz events must be made to resolve themselves into their original unsuspecting parts. By carrying out his original plan he could cover the greater crime.

He let Hartz lie as he had fallen, and set about taking what was worth stealing. There was not much—mostly trinkets and old things that would fetch a small sum. Mushet took his choice.

He next attacked the large safe in the back room. It was a tough safe, but he used a chemical from one of the phials in his pocket, and the liquid bit deep into the metal and softened it for his tools. But when at last he swung the heavy door open he found that the safe contained only a cash-book, deeds, and documents connected with loans. This proved to Mushet that Hartz had handed the necklace over to the police.

The time he had spent on the safe had been wasted. He had been over an hour on the premises, and he must leave quickly. But before he left he laid the most cunning plan to cover his tracks that could be conceived. His chemical knowledge prompted it.

He returned to the front shop and found the electric bell, operated by the front-door bell-push. With a screwdriver he took off the bell and balanced in its place a thin phial. This phial contained sulphuric acid. Then he went upstairs to the living-room and returned with a cup. Into this cup he poured some sugar and chloride of potassium. He fixed the cup under the phial of sulphuric acid; and around it, leading to the floor, he placed some inflammable material. He had not intended to do this so elaborately, but, now that Hartz was dead, he took his time. The idea was a masterpiece.

This is how he had planned. When the button of the door-bell was pressed the hammer would be thrown on the phial of acid. The thin glass would break, the acid would fall on the contents of the cup, and a flame would arise sufficient to set alight the material surrounding it. The fire would

destroy any clue of an intruder's presence. It would do more. It would also supply a reason for Hartz being found lying in his shop—if he was found at all. What theory was more likely than that Hartz, being awakened by a fire, had hurried downstairs? Without his spectacles, he had fallen. Or even with them; it did not matter. Accidental death! And if the fire got a good hold, there would be no need for any theory at all!

Having set everything in proper working order, Alfred Mushet left the premises as he had entered them. It was now the small hours of the morning. He sauntered past the front door of the pawnshop and pressed the bell. He listened intently. He peered through the window. He saw a tiny flame spring up in the depths of the shop. He went home to his lodgings.

A few hours later, as he lay in bed, he heard a commotion in the street. Voices were shouting; a policeman's whistle was sounding. People were throwing up their windows. Mushet was knocked up by his landlady. She called that there was a fire. Alfred Mushet leaped from his bed and dressed. It was now dawn, and getting lighter every minute.

Mushet joined the people who crowded to their doors to see the fire-engine when it arrived. The premises of Hartz, the pawnbroker, were blazing. To Mushet there came a great satisfaction, for he knew that by thus getting rid of Hartz he had taken from the police the only witness who could accuse him of having handed over the attaché-case containing the necklace. Thus he had preserved his freedom.

A crowd stood in front of the burning shop, and Mushet strolled down to watch. A fire-escape came at last with a rattle as the flames burst from the windows and the door fell inward. Mushet pushed his way to the front of the crowd. The excitement was intense.

"There's someone inside! There's someone inside!"

The word was taken up and repeated on all hands, but Mushet did not listen to the babble, for he knew better. Hartz was dead. A strange exhilaration filled Mushet as he watched the flames gain hold of the ramshackle place. He wanted to fan the blaze. The firemen were sending streams of water on the shop by this time, and clouds of smoke were filling the street. The police were keeping the crowd back as more hose was laid down.

And then, as he stood in the front rank of the crowd, Alfred Mushet uttered a shout. There, through the smoke and flames, he saw a moving figure emerge from the burning house. The figure was outlined against the red glow of the interior for a moment, then faded in the smoke that swirled down and blotted out the flames.

Alfred Mushet felt the hands of a policeman on him, forcing him backward. He staggered, his eyes riveted on the figure that loomed up, struggling through the smoke. His eyes started from his head. He screamed, and threw a finger out towards that figure that seemed to move towards him.

"Hartz!" he cried. "It can't be Hartz! He's dead! It's his ghost! Take it away! Hartz is dead! I killed him!"

The figure came forward; and, the smoke clearing, showed to Alfred Mushet the shabby figure of Hartz as he had been in life. His spectacles were on his nose, his beard was thick and matted, his hands clawing at it, as was his habit. Mushet cried out in agony, and fell in a faint to the ground.

Well, he was considerably shaken at the sight, and one could excuse him losing his wits, and his nerve also.

He was carried to his lodgings, and when he came to consciousness a policeman was sitting by his bed.

"Hartz is dead," murmured Mushet. "But I saw his ghost. What are you doing here?"

"I'm here," said the policeman, "because the inspector ordered me to stay. Hartz has identified you as the man who gave him the attaché-case, and found a necklace we have been hunting for. You'll have to explain that. Here comes the inspector."

At that moment the inspector entered the room and came over to the bed.

"Hartz is dead!" cried Mushet doggedly. "I saw his ghost."

"Wait a minute," said the inspector. "About that attaché-case. A fireman helped Hartz to bring out a small safe that was in the bedroom upstairs, containing the valuables of the shop. You called out that you had killed Hartz, and we have found a body. But, Mushet, didn't you know there were two of them? They kept that shop between them, and not many people knew there was more than one Hartz. The one to whom you gave the attaché-case

was the one that did the outside business. He arrived back from the North by the night train, in time to raise the alarm of fire. It was he you saw, not a ghost. We'll have to question you about the death of his twin brother."

And an hour or so later Alfred Mushet was on his way to prison. His nerve and imagination deserted him during the interrogation. He broke down and confessed.

THE STORY OF THE OCCUPANT OF THE FIFTEENTH CELL

As the Governor concluded the story of Alfred Mushet, he yawned involuntarily.

"I was thinking," he said, "that Mushet ought to go among my Intellectuals _____"

But he got no further, for the visitor suddenly picked up his revolver and backed away menacingly.

"My dear sir," cried the Governor in expostulation, "is there anything I have said——"

"I have no fault to find with your stories," replied the other, with an alarming grimness, "but that is the last I wish to hear. You have run it very close. I ask you to look at your clock!"

The Governor turned his head and saw that the time was exactly five minutes to seven.

"Which is it to be?" pursued the visitor; and as he spoke he lifted his revolver so that the barrel pointed straight towards the Governor.

The Governor glanced round the room. He saw the fog swirling up outside the window, the glass of which was streaming with moisture. Not a sound came from any part of the large prison.

"You have just time," said the visitor quietly.

The Governor shrugged his shoulders, and a faint smile passed over his features, which had become somewhat haggard with the strain of his recitals.

"You are right," he said. "I have just time."

He lifted the bogus order of reprieve and glanced at the wording. Then he took up a fountain-pen that lay on his pen-tray.

"I am afraid," he said, in a gentle tone, "that you have more than one advantage over me. I do not refer to your gun, in the manipulation of which I admit you are an expert. If this thing is to be done, I must ring for my warders; and I think you will remember that you somewhat dislocated my bell. Now, if the warders are to come here they must not, for your own sake, find anything suspicious, or they would make a scene. The result of a scene might be deplorable——"

"For you!" interrupted the visitor.

"For both of us, I fancy. You might shoot *me*, you might shoot my warders, you might escape through the window. But, as I remarked at the beginning of our prison night's entertainment, *you* would ultimately be caught. I am not thinking, believe me, of this matter without experiencing a personal interest in it. I wish to avoid bloodshed."

"You alone are able to provide the other way out."

"That is exactly what I have been thinking. You seem to hold the trump cards. Why should I permit you to kill me in cold blood? I daresay my warders, if the point were put to them, would feel the same emotions as I do. Therefore I propose to sign this warrant."

He lifted his pen and bent over the order; but, just as he was about to sign, he looked up at his visitor.

"I am afraid you do not quite follow," he said. "Would it not be as well if you put the bell into working order and yourself pressed it? There is my cut telephone line also—but I do not insist on that."

The visitor picked up the small piece of metal that formed the contact of the bell, and also the wooden top.

"I'll attend to it while you sign," he said. "But—*sign!*"

The Governor at once complied with what was no longer a request, but had become an order.

As he finished the signature he saw his visitor insert the contact and screw the top of the bell-push into position.

The visitor then pressed the ivory knob and walked swiftly towards the position he had previously taken up. In this way he was on the opposite side

of the desk, and was near the window. He put his revolver into his pocket; but he kept his hand there also.

The two men faced each other in terrible silence.

The Governor once more looked at the clock.

The hands marked the time as three minutes to the hour.

"My friend," said the Governor in a low tone, suddenly, "you have forgotten something."

"What is it?"

"You have not unlocked the door!"

"Ah!"

The visitor strode over, took the key from his pocket, and inserted it in the lock. He twisted it quickly and returned to his position, his right hand once more in his coat pocket, covering his revolver.

"You observe," said the Governor, with a faint attempt at a smile, "that what I said originally was true. You people almost always forget something. Now, supposing my warders had come and found that door locked? Would that not have been a suspicious matter? It was I who remembered. You see how I am really protecting you from yourself? Alas, prison is an institution where we always try to protect criminals from themselves. That is the second function of a prison, as I took pains to explain to you when I invited you to listen to my theories."

The visitor was about to reply, but the Governor continued quickly:

"You will observe that I have signed this order in the proper way." (He held the document up for inspection, and the visitor satisfied himself that everything was as the Governor stated.) "I will give this to the warder who is now on the way here. He will take it to my deputy——"

"Why to your deputy? I want the condemned man brought here!"

The visitor flashed out his question suspiciously, but the Governor spread his hand in a gesture of explanation.

"My dear sir, a warder has no power to release a prisoner, especially one in the condemned cell, until he has been given the proper authority, and the

Governor, or his deputy, is present. That is routine. You cannot complain of it, since you went to the trouble to get a reprieve in the authoritative way; and you are wise enough to know that any departure from routine would imperil your scheme, as it would imperil my reputation. Here comes my warder, I fancy."

The visitor was about to say something in reply to the Governor, but at that moment feet could be heard in the corridor. A knock sounded on the door. The Governor did not move.

"Come in!" he called.

The door opened, and a warder stood on the threshold, saluting stiffly.

The Governor lifted the order of reprieve, folded it up, and held it out towards the warder.

"Take that to the Deputy-Governor at once," he said. The visitor's eyes were watching closely.

"Any answer, sir?" asked the warder.

"Yes, there will be an answer. Tell my deputy I have a gentleman here who has come urgently on behalf of the condemned prisoner. I am waiting. Make haste."

The warder saluted, and went out hurriedly.

As soon as he had departed, the Governor turned towards his visitor.

"I think you were about to make a remark when my warder approached," he said. "It was not a complaint, I hope."

"I was about to say that, with all your talk, lasting throughout the night, you have proved nothing to convince me that I shall fail to do what I came to do. I still hold the winning hand. In a few minutes I shall be gone with my friend. When the Deputy-Governor comes with the prisoner, you will bid him leave the matter between you and me, as I proposed originally. I shall still see that your reputation does not suffer. You object to taking either of two methods I suggested—that of being bound to your chair, or that of taking a drink that would send you to sleep. You have chosen to pretend that the reprieve is all correct. Perhaps it is the best way out for you. And yet I must inform you that I have formed a conclusion. It would not be safe for

me to take my friend out by the prison gates, because you could raise an alarm immediately I left this room. I shall see to it that we have some time to make our escape."

"What do you intend to do?"

"That must be left to me. As soon as your deputy leaves, and my friend and I are alone with you, it will be simple. I shall not injure you in any way. We may go out by the window after all. The fog is very thick."

He had lost the attitude of antagonism that had until then been dominant in his speech.

"We have been opponents," he went on, "and we have come to an understanding, as I knew we would. I thank you for having told me the stories; but, while I enjoyed them, I would remind you that, while these narratives have been entertaining, they have not proved a single point in your contentions. The reason is very obvious."

"What is the reason?" asked the Governor humbly.

"It is this: you have been telling stories concerning *persons who have been captured*. The thought came to me this moment. And the fact that you have been forced to carry out my wishes proves that your theories are all wrong. In my one triumph lies the destruction of your many axioms. Of course, had I not been interested in your eccentricity I would never have allowed you any latitude; but, for a crank, I find you a very engaging one—a theorist, with all the faults of one. On the other hand, you are not oblivious of the fact that you have been beaten, and that your life is being spared because I see that you have surrendered without useless opposition. I admire you for it."

The Governor bowed.

"In my turn," he said, "let me ask you one question. If, by some fluke of circumstances, by some unforeseen error on your part or on mine, you had been unable to save your accomplice from the scaffold—which is a fate he richly deserves—would you have admitted failure with the same readiness, and in the same spirit, with which you give me credit?"

"I would. It has always been a point with me to surrender when it is impossible to escape." Then he added with emphasis: "But, at the same

time, my code of war is such that I have never yet admitted that every chance was lost. If, however, such a position should arise in the future, I am well aware that resistance would be an aggravation, and it would probably lengthen the sentence a judge might hand out."

The Governor held out his hand frankly.

"It is refreshing to hear you speak in this way," he remarked. "I will be able to pass the expression of your views to the quarter where they will be duly appreciated."

As the two men clasped hands a loud bang, like the shutting of a heavy, distant door, disturbed the silence that had fallen on the room.

The Governor's fingers tightened on those of his visitor and held them firmly, his left hand fell gently on the man's shoulder. They stood for a fraction of time facing each other. They might have been two friends taking grave farewell of each other.

The Governor spoke.

"I am glad my poor attempt to emulate the feat of the amiable Scheherazade has been pleasing to you. As the Sultan Schahriah you have been excellent. But, nevertheless, the result *has* convinced me in my theories."

"How?" demanded the visitor, with a start of uneasiness.

"You have claimed the victory; but, sir, victory ought not to be claimed until a game or a contest is ended."

"Explain yourself."

"Ah," said the Governor steadily, as he still held his visitor's right hand and increased the pressure of his hold on the man's shoulder, "my deputy and two warders will, according to routine, be here in a moment. I hear their footsteps."

A knock sounded on the door. The Governor called, "Come in!" and, without turning his head, continued to his visitor:

"The victory is not yours after all. *Your accomplice is dead.* The bang we heard a moment ago was the noise of the trap-door on the scaffold falling into the pit. You did not know, of course, that my clock is an hour slow! You are under arrest!"

Two warders and the deputy had meanwhile entered the apartment, closing the door behind them.

The visitor's face went livid. For a frightful instant he stared at the Governor; and then the Governor's cry to his men changed, even as it was uttered, to one of sharp pain. He staggered back, bent double like a half-shut knife, into the arms of his deputy.

The visitor had dealt him a fearful blow in the abdomen with his knee: and as he dealt it he leaped backward with a snarl that might have come from a wild beast.

"Put up your hands, all of you!" His gun was thrust forward in a lightning movement. "Up! Quick!"

One of the warders disregarded the order and sprang forward, but he had not advanced a yard when "ping!" and he fell like a sack, gasping, blood streaming from his throat.

"My God!" he cried in a strangled voice. "My God! My God!"

"Up with them!"

The Governor obeyed, though his face was twisted with pain; the deputy and the remaining warder followed suit.

The wounded man on the floor continued to call "My God!" in a curious, gurgling, monotonous way, the exclamation becoming feebler every time.

It might have been part of a play, so swiftly, so definitely, had act followed act, so like a series of tableaux had movement followed movement. But there the resemblance to a play ended.

The countenance of the visitor was transformed. The previous minute he had been listening calmly to the Governor's harangue. Now he stood facing the three men, his body thrust forward, shoulders hunched, teeth gritted, passionate fury sweeping over his face in dark clouds, his eyes gleaming with a brightness that was no longer human. He was now an animal at bay. He was a wolf.

And from the bleeding warder on the floor there came the unceasing whimpering, "My God! My God!" No one took notice of his agony.

The visitor was the first to speak.

"If one of you three move an inch!" He made a significant movement with his gun. "I have four shells left!"

The Governor nodded towards the fallen warder.

"That," he said quietly, "was a mistake, my friend."

The visitor replied with savage exultation.

"Sure. His, not mine."

As he spoke the wailing of the wounded man died away, his frame quivered and then was still.

The visitor's left hand fumbled at his waist and a coil of thin rope fell at his feet. He bent down, never once taking his eyes off the others, and picked up an end formed into a loop. He stepped backward towards the window, his left hand feeling along the wood work until his fingers touched the heavy metal hook that held the curtain fastener. He slipped the loop of his rope into the hook.

Next his fingers unfastened the window catch. He threw up the sash. A billow of fog swirled into the apartment. Not for an instant while he was doing all this did he cease to face the three officials. A terrible, grim leer spread over his features. He tossed his rope backward out of the window, then brought his gun into position so that it pointed straight at the Governor's breast.

"I told you there was always a chance for me," he sneered. "It's you that hasn't a chance now. Listen. I have four shells in this gun. One is for you because you hanged Floxton, another is for the electric bulb——"

Suddenly the Governor started. His eyes, wide with astonishment and what seemed relief, fastened themselves upon the open window beyond the visitor. An instant of fearful tension followed, in which the visitor sought desperately to read the truth in the Governor's eyes without turning to see what menace was at his back. Then, as if answering the agonizing doubt, the curtain at the window moved with a crisp sound. At the very instant, the Governor shouted in the direction of the noise:

"Quick! Get him, men!"

As the visitor, in startled alarm, swung his gun round towards the open window, the Governor bounded forward, his left arm crooked and poised.

Crack!

All the weight of his muscular shoulders was behind the fist that struck the visitor's jaw with fearful force. The action was piston-like, a flash out and in and under that terrific blow the man's head jerked oddly, his body arose, then crashed, his gun flew across the carpet.

The deputy and the warder were upon him like cats, but the visitor was incapable of resistance. He lay motionless and unconscious.

The Governor looked for a moment at his own knuckles, then rapped out his orders.

Handcuffs were snapped on the wrists of the prostrate visitor, the body of the dead warder was removed, the window was closed.

The Governor sat down at his desk and toyed with the visitor's gun which he had picked up. Two warders were working on the unconscious visitor bringing him back to life. The deputy was standing by. The Governor looked up.

"Was the execution carried out expeditiously?"

"All correct, sir," replied the deputy.

"You will see to the repairing of my telephone and window."

"Yes, sir."

"You will inform Scotland Yard that we have here the man they want—Steve Jenkins, the accomplice of the murderer who has just been hanged."

"Very good, sir."

"Take charge of this fake reprieve and this gun. They are necessary evidence."

The deputy took the articles, and as he did so he remarked: "I think that was a great trick you played him, sir, and most original."

The Governor shook his head as his eye rested on the visitor who was now being hoisted to his feet.

"Steve Jenkins," he said, "you came here to dispute my theories and you have merely succeeded in proving them. All criminals make mistakes. Apart from the murder of my warder, for which you will hang, you made two bad mistakes within five minutes."

He rose to his feet and assumed his official manner.

"To be a professional criminal and expect to get away with it every time," he continued gravely, "is really to presume too much. It involves the possession of knowledge that must never be at fault. Why, you fell for the old trick of false alarm! I staked—correctly, it seems—on your ignorance of the historic precedent of Lord Berkeley who, one night on Hounslow Heath, shot dead, by the same ruse, a highwayman who held up his carriage at pistol point."

The prisoner eyed him balefully.

"Your next mistake was more gross. It is true I did not possess a pistol like my Lord Berkeley; but was it carelessness that made you overlook what a reference book might have told you about my few accomplishments? If so, the oversight led you into the error of leaving open a mark for an ex-champion heavy-weight of the Army who had watched all night for it."

The Governor sat down.

One of the warders who held the prisoner saluted.

"Where shall we take him, sir?"

The Governor replied grimly.

"To the fifteenth cell."

The wheels of routine began to grind once more.

THE END.

THE HOUSE OF HARPER

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[Transcriber's Note: Inconsistent hyphenation left as printed.]

*** END OF THE PROJECT GUTENBERG EBOOK THE FIFTEEN
CELLS ***

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